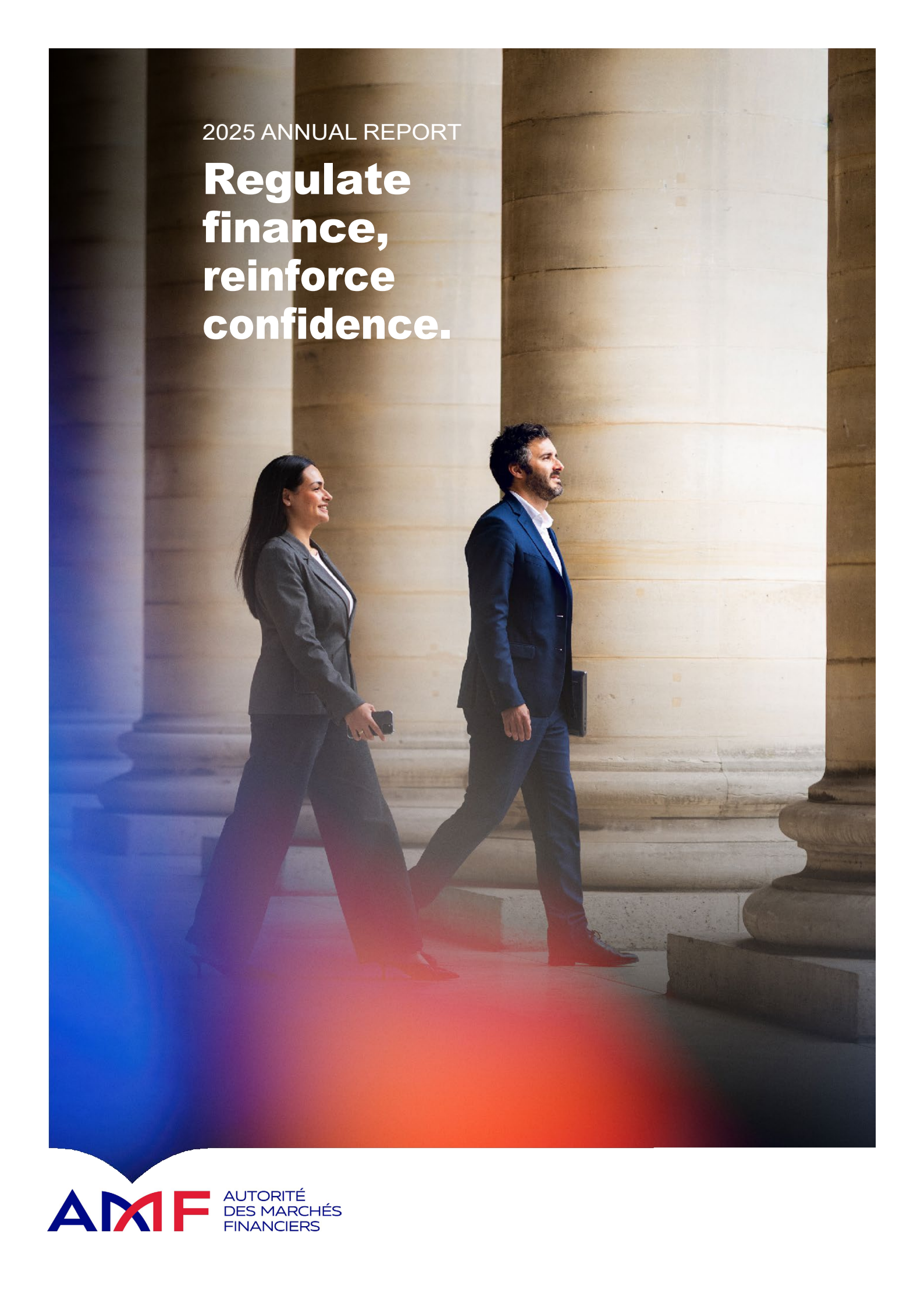




2025 ANNUAL REPORT

Regulate finance, reinforce confidence.

2025 ANNUAL REPORT

**Demanding regulation
that enlightens as much
as it oversees.**

Letter to the French President

Marie-Anne Barbat-Layani, AMF Chair



Dear President Macron,

‘Regulate finance, reinforce confidence’. This is the course we want the work of the Autorité des Marchés Financiers to take in 2026.

Reinforcing financial stability

In our 2025 Markets and Risk Outlook, we highlighted geopolitical uncertainties and cyber security as being some of the key risks that could affect the financial world and investors.

The war in Iran has borne out this first risk. At this point in time, the financial markets have reacted in an orderly and resilient way, even though volatility has increased and valuations have experienced significant corrections, particularly in Europe. Everything will depend on the duration of the conflict and its economic effects. The current uncertainties allow the progress made since the 2008 major financial crisis in terms of the robustness of the financial sector to be seen. They also confirm certain new vulnerabilities in the capital markets, such as high valuations, the concentration of stock market indices, the importance of leveraged strategies and changes in market structures. The very rapid growth of private finance raises questions. No one disputes its usefulness. But, at a time when it is experiencing its first growth crisis with the difficulties of certain debt funds in the US, its links with traditional finance need to be better analysed and regulated.

The announcements made in April about the capabilities of the new ‘frontier’ artificial intelligence (AI) represent a potential disruption to cybersecurity, and the financial world needs to prepare for this as quickly as possible.

Against this backdrop, the AMF must, now more than ever, fulfil its role as a guide and regulate rigorously to reinforce confidence. Financial stability is inseparable from economic and social stability. Confidence in the financial system is a fundamental public good. Market regulators have increasing responsibility in this respect, given the development of non-bank finance.

The AMF is working on this and devotes a large part of its work to the resilience of market finance.

In the summer of 2025, the AMF, the Banque de France and the Autorité de Contrôle Prudentiel et de Résolution (the French Prudential Supervisory and Resolution Authority) launched an initial cross-sector stress test to analyse the interactions between the bank and non-bank sectors when under stress and their impact on financial stability.

Last autumn, the AMF welcomed regulators from the world's leading financial centres to Paris for a meeting of the Financial Stability Engagement Group of the

International Organization of Securities Commissions, which I co-chair with my British counter-part. To mark this key moment of 2025, the AMF organised a high-level international conference on the impact of new technologies (AI and quantum computing). Their applications in finance will revolutionise the industry and create new opportunities, but also new risks.

Since April, we have been stepping up our efforts to address the accelerating cyber risk associated with new AI models, the global nature of which shows just how crucial this multilateral work is. Faced with this challenge, it is important that bank and non-bank financial institutions, in particular market infrastructures, including European ones, have access to the skills to evaluate these models, and that regulators are fully involved. The pioneering European regulatory framework on the digital operational resilience of financial market participants (‘DORA’), which is currently attracting growing interest from our international colleagues, must be a powerful lever, alongside the AI Act.

Rules and regulation are also essential.

The AMF's priorities for 2026 focus on three key areas: contributing to European financial sovereignty through the Savings and Investment Union project; enhancing the attractiveness of the Paris

financial centre through relentless support for innovation at the time of artificial intelligence and tokenisation; guaranteeing the protection of retail investors and the integrity of the financial system at a time of globalised threats and an explosion in financial scams through legislative developments to our punitive powers to combat financial insecurity.

Mobilising finance to serve Europe's economic and strategic sovereignty

In a world where power is increasingly based on the ability to mobilise the financial resources needed to make sovereign political choices, the deepening of the European capital markets is a major imperative.

This is the purpose of the Savings and Investment Union project, which France actively supports. This is the major financial project of our generation, just as the transition to the euro was in the past. It is vital for Europe's sovereignty, and more crucial than ever in the current geostrategic context. It is attracting more and more interest from international financial market participants, who now appear particularly drawn to the European model of balancing innovation and regulation.

This project involves reducing regulatory fragmentation and the heterogeneous nature of market supervision, which are sources of legal uncertainty, competitive inequalities, complexity for cross-border participants, risks for investors and financial stability, and less effective supervision. Therefore, the AMF strongly supports strengthening the direct supervisory powers of the European Securities and

Markets Authority, as proposed by the European Commission in December 2025.

Enhancing the attractiveness of the Paris financial centre and supporting innovation

Paris is continental Europe's leading financial centre. It must be the primary lever for the development of the European capital markets, and our economy must benefit as a result.

France's ability to attract capital, talent and financial market participants, particularly fintechs, is a key factor in its growth, influence and economic sovereignty. Against a backdrop of heightened competition between financial centres, the AMF is working to enhance the attractiveness of the Paris financial centre. We have made this one of our strategic priorities. The goal is clear: to make the quality of regulation a factor in competitiveness, by guaranteeing a stable, simplified framework that is conducive to the development of financial activities and innovation, and protective of investors.

The AMF is strictly adhering to its commitment to no longer gold-plate European legislation. It is constantly questioning and modernising its texts and practices – as it did in 2025 by creating a fast-track procedure for Defence funds – in order to apply the best standards, with a constant concern for predictability and simplification.

At the same time, true to its DNA, the AMF encourages the development of innovation. Progress in the tokenisation of assets is opening up new prospects in terms of financing

and market liquidity. The AMF is promoting an ambitious reform of the European regulatory framework, as well as the mobilisation of the Paris financial centre to place France at the heart of this promising innovation, within the framework of a strategic financial centre group with the Banque de France and the French Treasury. In the summer, we will make concrete recommendations. Similarly, the entry into application of the European framework for crypto-assets (MiCA) constitutes a major step forward that the AMF is implementing with particular care in order to reconcile innovation and risk management.

Finally, the AI boom is radically reshaping the financial sector. AI offers considerable opportunities to democratise investment. The AMF itself is taking advantage of AI to strengthen its financial market supervision capabilities, contributing to the development of sovereign, high-performance models. AI, however, can also entail risks. Beyond cyber risks, financial market participants' dependence on highly concentrated service providers, many of whom are non-European, and the potential for scams, call for collective vigilance.

Protecting retail investors and guaranteeing the integrity of the financial system

In a fast-changing savings landscape, retail investor protection is now, more than ever, at the heart of the AMF's works. Investor confidence is a duty owed to our fellow

citizens who are planning their financial future: it is the primary condition for the proper

functioning of the financial markets.

The AMF monitors the quality, clarity, appropriateness and accessibility of the information provided to investors. It checks that the financial advice and service provided to investors are honest and in their best interests, and takes action against unjustified fees where needed. It is also committed to financial education, with the aim of better equipping citizens to make increasingly complex investment decisions. With this in mind, we have just launched a dedicated plan to boost investment by women, whose considerable shortfall is undermining their financial independence and the financing of the economy.

Changes in the savings landscape have unfortunately been marked by an increase in financial scams. According to our study, 16% of French people say they have fallen victim to a financial scam (32% of the under-35s). This massive social phenomenon, amplified by digitalisation, AI and social media, calls for a resolute response. The AMF is continuing its discussions with online platforms to obtain their cooperation in achieving this public interest objective, in line with the work undertaken by the Government and Parliament. In 2026, it will propose that the blocking of illegal content step up a gear.

The AMF is also faced with the worrying rise of international insider networks, often linked to money laundering and organised crime. These networks use inside information

At the heart of the issues of stability, sovereignty, competitiveness and integrity, the AMF is helping to build a robust and innovative financial framework that inspires confidence.

obtained through corruption or fraud to invest opportunistically, thereby seriously undermining the integrity of the markets. We are cooperating more closely than ever with our international counter-parts and the relevant authorities, in particular the French National Financial Prosecutor's Office, to combat this organised crime, and we welcome the first judicial decisions in this area handed down last April by the Paris *Tribunal Correctionnel* in the Airgas case.

However, to fully face up to these challenges, the AMF's punitive tools must be strengthened. Discussions held since 2023 have fed into a draft law, tabled in September 2025 by deputy Daniel Labaronne, aimed at combating financial fraud and strengthening financial security. We welcome the vote on the law to combat social and tax fraud, which contains five important measures that appeared in it. The AMF calls for the rapid adoption of the other provisions to strengthen the effectiveness of its work.

At the heart of the issues of stability, sovereignty, competitiveness and integrity, the AMF is helping to build a financial framework that is robust, innovative and based on confidence.

To properly fulfil its remit, the AMF must have the appropriate resources. In keeping with the recommendations of the *Cour des Comptes*, in 2027, the AMF should pursue its multi-year trajectory to adjust its resources in line with its responsibilities in Europe's leading financial centre, where the excellence of the regulator is one of its recognised assets.

President Macron, you can count on the AMF's full commitment to striving for a financial system that serves the independence of France and Europe and the financing of the economy, and one that is honest, efficient, innovative and protective of investors. This is the French vision of finance that we promote, a vision that makes us unique and drives the success of the great financial country that we are and must continue to be.

France has a number of major assets at its disposal to remain a major financial power. It is central to Europe's sovereignty and strategic autonomy. It is up to us, collectively, to consolidate these assets and put them to use for the goal of a strong and free Europe. This is what the AMF will continue to strive for.

These are the points that I wanted to bring to your attention as the AMF submits its 2025 Annual Report.

Yours sincerely,

Marie-Anne Barbat-Layani

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A photograph of a man and a woman in profile, looking out over a city skyline. The man, with a beard and wearing a dark jacket, is in the foreground. The woman, with dark hair, is slightly behind him. The background shows a blurred cityscape with many windows. A red and orange gradient overlay covers the bottom right portion of the image.

AMF key information



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The AMF in brief

As an independent public authority, the Autorité des Marchés Financiers ensures that the savings invested in financial products are protected, that the financial information provided is of high quality and that the markets function properly. Through its involvement with European and international bodies, it strengthens the stability of the financial system and the effectiveness of regulation. The AMF contributes to the setting of clear rules, oversees their implementation and cracks down on regulatory breaches. It supports the transformation of finance, particularly in terms of innovation and sustainable finance. As an impact-driven regulator, the AMF acts in the public interest.

Remit

The AMF's remit is laid down by law. It ensures:

- the protection of savings invested in financial instruments;
- investor information;
- the proper functioning of the financial instrument markets;
- that the information provided by investment management companies about their investment strategy and their management of the risks linked to climate change is of high quality.

It contributes to market regulation at the European and international levels, and cooperates with the competent authorities in other countries.

It takes account of the financial stability objectives in the European Union and the European Economic Area, and contributes to the convergent implementation of European Union provisions in Member States.

Areas of intervention

The AMF regulates financial market participants and products. Its scope of intervention encompasses:

- the financial markets and their infrastructures;
- listed companies;
- the financial intermediaries authorised to provide investment services (credit institutions authorised to provide investment services, investment firms, asset management companies, financial investment advisors, crowd-funding service providers and direct marketers);
- collective investment products invested in financial instruments;
- token issuers (ICOs) and digital asset services providers.

Its powers and competence

To fulfil its remit, the AMF regulates, informs, sanctions and protects. As a result, it:

- lays down rules (General Regulation) and formulates doctrine;
- authorises market participants, approves financial operation information documents, ensures that listed companies disclose periodic information and approves collective investment products;
- authorises crypto-asset services providers;
- oversees the financial markets and financial transactions;
- carries out investigations and inspections;
- has the power to sanction and reach settlements;
- informs and alerts retail investors;
- has a mediation system.



Find out all about
the AMF's remit

2025 in figures



13
asset
management
companies
authorised in
2025



671
asset
management
companies
monitored



16,934
requests
processed
by Épargne
Info Service



2,772
mediation handled
processed



486
financial operations
approvals issued

19
public offerings
initiated

13 659
collective investment
undertakings (CIUs),
with assets under management of
2,298
billion euros

11
crypto-actifs
services providers
authorised



36
investigations
opened,
32
completed



59
inspections opened
46
completed,
of which
33
SPOT

13
sanction decisions
published



for a total of
14 505 000
euros
paid to the Public Treasury

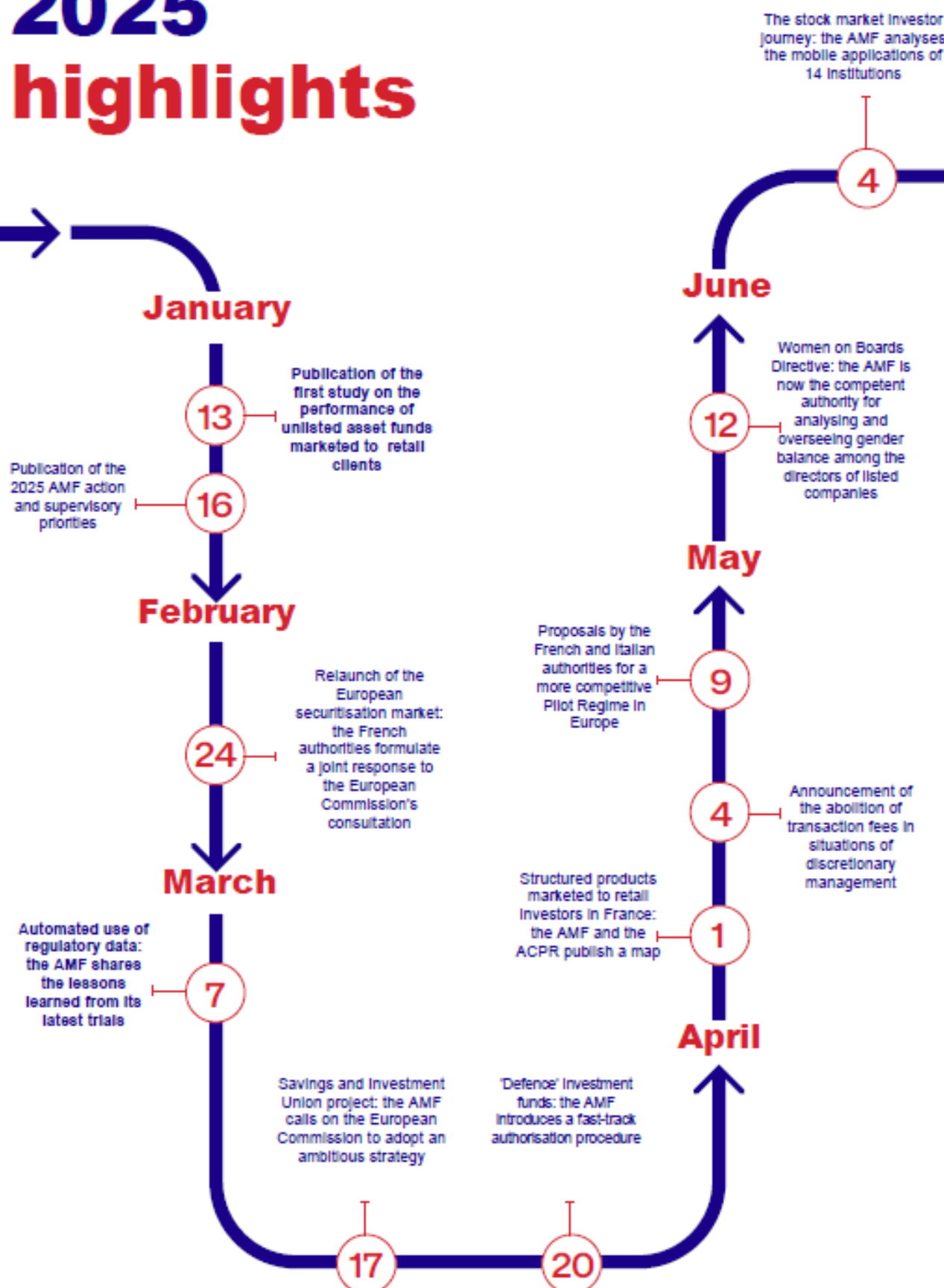
18
settlement agreements
approved

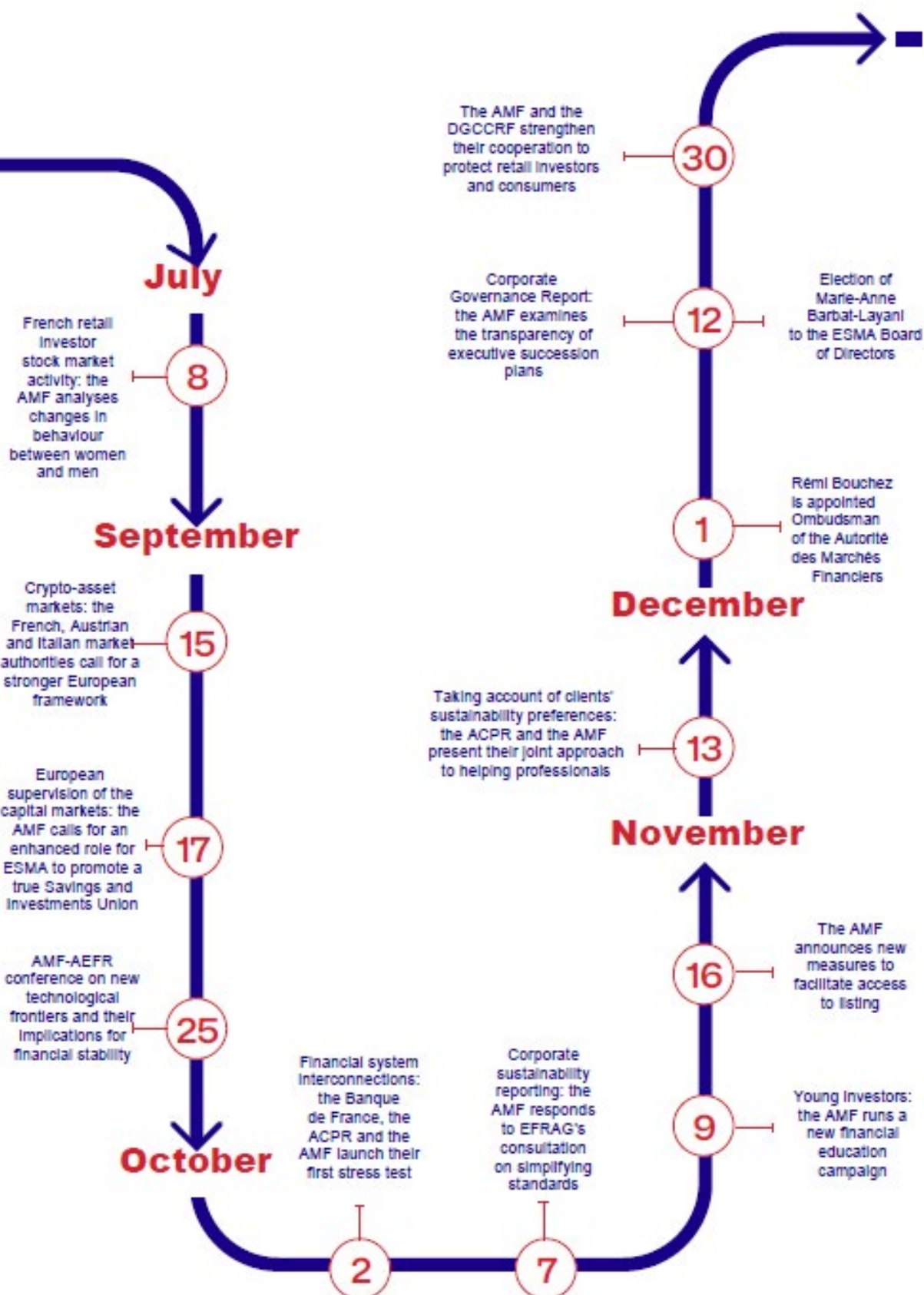


for a total of
4 380 000
euros
paid to the Public Treasury

* Average annual full-time equivalent

2025 highlights





Relations with Parliament

Through its exchanges with Parliament, the AMF aims to improve understanding of the issues it faces, and to share its expertise and vision of financial regulation. These discussions help to enhance the effectiveness of public action in the constantly evolving economic and financial field.

Each year, the AMF presents its activities and budget to Parliament in its annual report and in the documents annexed to the Finance Bill (the *Jaune Budgétaire*). The publication of the Annual Report also serves as an opportunity for the Chair and Secretary General to report on the AMF's activities to the Finance Committees of the National Assembly and the Senate, and to set out the challenges facing the AMF.

Against a backdrop of rising numbers of scams and instances of market abuse by international insider networks, in 2025, the AMF strove to combat the financial insecurity affecting investors. To achieve this, the AMF needs greater legal powers. The bill to combat financial fraud and strengthen financial security, tabled on 16 September 2025 at the initiative of deputy Daniel Labaronne, is a step in this direction (see p. 40).

Informing Parliament

In 2025, Parliament's legislative activity, and the draft and proposed laws being debated necessitated recourse to the AMF's expertise in important areas.

This was the case for the bill containing various measures for adapting to European Union law in the fields of eco-nomics, finance, the environment, energy, information, transport, health, agriculture and fisheries (DDADUE), which gave rise to the AMF Secretary General being heard by senator Hervé Maurey on the following topics:



- the transposition into French law of the directive on multiple voting rights;
- the adaptation of French law to the Listing Act Regulation;
- the transposition of the AIFM II Directive on alternative investment fund managers and the simplification of the legal framework for securitisation vehicles;
- the transposition of the directive to strengthen the treatment of the concentration risk arising from exposures towards systemically important central counterparties (CCPs), which forms part of the revision of the EMIR Regulation;
- the transposition of the provisions of the European anti-money laundering package.

Several provisions of the bill to combat tax and social security fraud include measures contained in the bill to combat financial fraud and strengthen financial security. As part of the preparation of this proposal, the Chair of the AMF was heard by deputy Daniel Labaronne. She was also heard by deputy Jean Terlier and senator Louis Vogel during the work on the bill on the confidentiality of consultations by company lawyers. She pointed out that the AMF is not opposed to the principle of legal privilege, which is a political choice. On the other hand, as is the case for the tax authorities, it is asking that this not be enforceable in relation to its investigations and inspections, so as not to affect their effectiveness.



**The Chair,
the
Secretary
General or
staff
members
attended
a dozen
hearings
in 2025.**

Sharing its expert vision

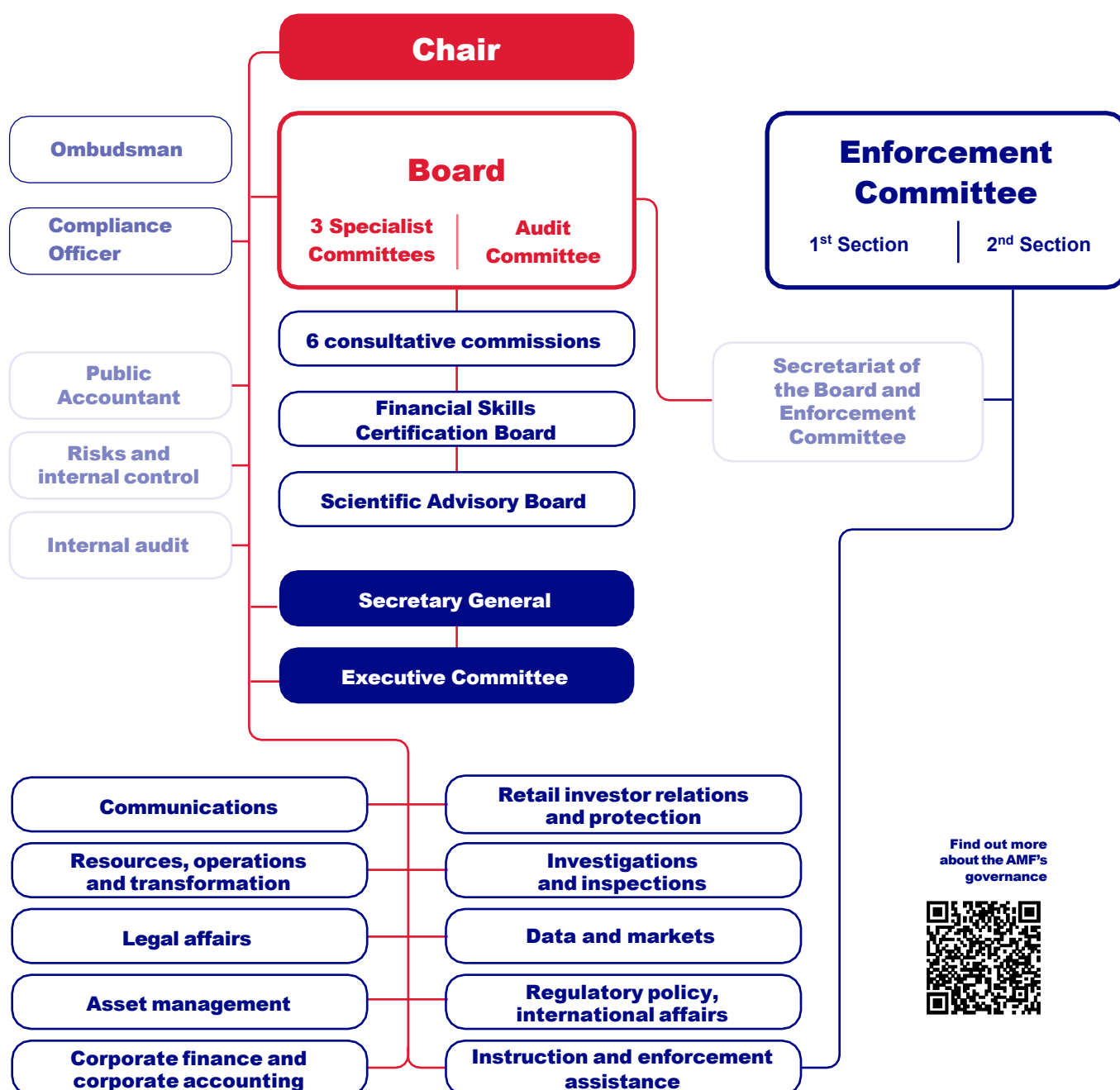
In 2025, the AMF was heard on several occasions as part of fact-finding missions or inquiry committees. This was the case with the mission entrusted by the Prime Minister to Stéphane Vojetta and deputy Arthur Delaporte on emerging digital issues, new problems linked to the content creators and influencers sector, and the role of these participants in the fight against the excessive exposure of minors to screens. The report entitled: *Influence et réseaux sociaux : face aux nouveaux défis, structurer la filière de la création, outiller l'État et mieux protéger* (Influence and social media: in the face of new challenges, give structure to the creation industry, equip the State with tools and provide better protection), published on 13 January 2026, contains two recommendations, 55 and 56, to enable the AMF to gain automated access to publicly accessible content on online platforms (web scraping) for investigative purposes, to extend the scope of the use of an assumed identity for the purposes of inspection and investigation, market supervision and monitoring of illegal financial products and services, and to introduce a procedure for the administrative blocking of websites organised by the AMF.

As part of the fact-finding mission on the Capital Markets Union, the Chair of the AMF was heard by deputies Charles Rodwell, Sylvie Josserand and Daniel Labaronne. She reiterated the AMF's commitment to promoting the growth of the European capital markets and the attractiveness of the Paris financial centre, as the Savings and Investment Union is essential if Europe is to have the means to make its own political choices (see p. 42).

Finally, the Inquiry Committee set up to assess the tools used to combat financial delinquency, organised crime and the circumvention of international sanctions in France and Europe, and to propose measures to meet the new challenges (Chair: senator Raphaël Daubet and Rapporteur: senator Nathalie Goulet) heard the AMF Chair and Secretary General. This gave them an opportunity to present the AMF's role in promoting the integrity of the financial markets.

Our governance

The Autorité des Marchés Financiers' governance is based on two separate collegial bodies with different remits, whose gender parity is set by law: the Board and the Enforcement Committee. To advise the Board on decisions likely to have an impact on professionals or on the protection of retail investors' interests, the AMF also has six consultative commissions, composed of experts and chaired by Board members.



Find out more
about the AMF's
governance



The Board: decision-making body and prosecuting authority

Find out more
about the
Board



The AMF Board, which has equal numbers of women and men, adopts new regulations and takes individual decisions (takeover bid compliance, investment management company and collective investment product authorisations, approvals, etc.). It examines the inspection and investigation reports produced by AMF staff members. As a prosecuting body, it is the Board that decides whether to initiate sanction or injunction proceedings. It may also propose to

initiate administrative settlement proceedings, a dispute settlement mechanism that is an alternative to sanction proceedings and that can be applied to all regulatory breaches prosecuted by the AMF, except those in which its investigations or inspections have been obstructed. It validates the administrative settlement agreements thus obtained. Finally, it adopts the budget and approves the AMF's financial statements.

Members



Marie-Anne Barbat-Layani
Chair



Catherine Bergeal
Appointed by the Vice-President of the Council of State



Sylvie Tréard
Appointed by the First President of the *Cour de Cassation*



Arnaud Oseredczuk
Appointed by the First President of the *Cour des Comptes*



Denis Beau
Appointed by the Governor of the Banque de France



Robert Ophèle
Chair of the *Autorité des Normes Comptables*



Jérôme Bascher
Appointed by the President of the Senate



Corinne Dromer
Appointed by the President of the National Assembly



Bernard Kuhn
Appointed by the Chair of the Economic, Social and Environmental Council



Olympe Dexant-de Bailliencourt
Appointed by the Minister for the Economy, Finance and Industrial and Digital Sovereignty



Jean-Marc Eyssautier
Appointed by the Minister for the Economy, Finance and Industrial and Digital Sovereignty



Muriel Faure
Appointed by the Minister for the Economy, Finance and Industrial and Digital Sovereignty



Nathalie Gay Guggenheim
Appointed by the Minister for the Economy, Finance and Industrial and Digital Sovereignty



Jean-Baptiste Massignon
Appointed by the Minister for the Economy, Finance and Industrial and Digital Sovereignty



Marie-Pierre Peillon
Appointed by the Minister for the Economy, Finance and Industrial and Digital Sovereignty



Loïc Desmouzeaux
Appointed by the Minister for the Economy, Finance and Industrial and Digital Sovereignty

Tribute to Claude Nocquet, an eminent member of the AMF Board, who died in September 2025

A former student of the école nationale de la magistrature from 1973 to 1986, Claude Nocquet was a magistrate at the central administration of the Ministry of Justice. During this period, she was promoted to Head of the Legislation Office by Minister Robert Badinter, and worked alongside him on the abolition of the death penalty and the abolition of the State *Cour de Sûreté*. She was next appointed to the Paris *Tribunal de Grande Instance* as Senior Investigating Magistrate, then, in 1989, as Vice-President and, in 1997, First Vice-President. She was subsequently appointed as judge and then senior judge of the Criminal Division of the *Cour de Cassation* from 2003 to 2015, when she retired.

Claude Nocquet joined the AMF in 2003 as chair of the second section of the Enforcement Committee, and was elected Chair of the Enforcement Committee in 2011.

Over the years, Claude Nocquet worked to enhance the transparency of sanction proceedings, and the educational and punitive value of the Enforcement Committee's decisions. She chaired a working group that produced a report published in October 2013 containing proposals on the pronouncement and enforcement of



Her sharpness of mind, rigour, agility, legal analyses, intellectual honesty, fair and pertinent observations, as well as her kindness, ability to listen and sense of collegiality were much appreciated by everyone, both AMF staff and Board members. Claude Nocquet embodied the values of justice and integrity. She will remain an example to us all.

**MARIE-ANNE
BARBAT-LAYANI,**

AMF Chair

sanctions, and the post-ruling phase, some of which were taken up by the legislature, such as raising the sanctions. She left the Enforcement Committee at the end of 2013.

In 2017, she was appointed a member of the AMF Board and served as vice-chair and then chair of the Retail Investors Consultative Commission. In 2024, her term on the AMF Board was renewed.

The Enforcement Committee: judgement-issuing body

Find out more
about the
Enforcement
Committee



This is the body of the Autorité des Marchés Financiers that issues judgments. Comprised of 12 members – magistrates or professionals – it is independent of the Board and can sanction any person or entity whose practices are contrary to the laws and regulations falling under the AMF's remit, or that are likely to undermine

investor protection or the proper functioning of the market. It rules on the objections referred to it by the AMF Board. It approves the administrative settlement agreements submitted to it by the Board. Finally, it plays a role in the AMF's educational work by clarifying financial regulations when motivating its decisions.

Members

● First section ● Second section



Valérie Michel-Amsellem
Chair of the Enforcement Committee, appointed by the First President of the *Cour de Cassation*



Edwige Belliard
Appointed by the Vice-President of the Council of State



Jean-Claude Hassan
Appointed by the Vice-President of the Council of State



Philippe Coirre
Appointed by the First President of the *Cour de Cassation*



Frédéric Bompaire
Appointed by the Minister for the Economy, Finance and Industrial and Digital Sovereignty



Alain David
Appointed by the Minister for the Economy, Finance and Industrial and Digital Sovereignty



Sophie Langlois
Appointed by the Minister for the Economy, Finance and Industrial and Digital Sovereignty



Anne Le Lorier
Appointed by the Minister for the Economy, Finance and Industrial and Digital Sovereignty



Appointment pending
Appointed by the Minister for the Economy, Finance and Industrial and Digital Sovereignty



Ute Meyenberg
Appointed by the Minister for the Economy, Finance and Industrial and Digital Sovereignty



Aurélien Soustre
Appointed by the Minister for the Economy, Finance and Industrial and Digital Sovereignty



Claude Baj
Appointed by the Minister for the Economy, Finance and Industrial and Digital Sovereignty

AMF Chair



Marie-Anne Barbat-Layani was appointed Chair of the AMF on 26 October 2022 by decree of the President of the French Republic for a five-year term. She is empowered to act on behalf of the AMF before any court, represents the AMF in all civil acts and is responsible for authorising income and expenditure. After consulting with the Board, she may appeal against a decision of the Enforcement Committee. The AMF's staff work under her authority and she exercises the powers of the 'business head' for the purposes of the application of the Employment Code. She proposes the internal regulations and rules of ethics applicable to staff to the Board. Finally, each year, she submits the AMF's Annual Report to the French President, and to the presidents of the National Assembly and Senate, and may be heard by Parliament on financial regulation issues.

Secretary General of the AMF



Sébastien Raspiller was appointed Secretary General on 5 October 2023 by the AMF Chair. He is responsible for the functioning and coordination of the AMF's staff, under the authority of the Chair, and reports to the Board on the management of the departments. He decides to initiate investigations and inspections, and authorises the investigators and inspectors to carry these out. Finally, he negotiates and signs administrative settlement agreements.



From left to right and top to bottom: Jérôme Reboul – Regulatory Policy and International Affairs, Maxence Delorme – Legal Affairs, Pauline Briand – Communications, France Mayer – Retail Investor Relations and Protection, Philippe Sourlas – Asset Management, Sophie Baranger – Investigations and Inspections, Amélie du Passage – Investigations and Enforcement Assistance, Marie Seiller – Resources, Operations and Transformation, Philippe Guyot – Data and Markets, Astrid Milsan – Corporate Finance and Corporate Accounting, Marie-Anne Barbat-Layani – Chair, Sébastien Raspiller – Secretary General.

The Executive Committee: guarantor of the attainment of operational and strategic objectives

The Executive Committee is headed by the AMF Chair. It brings together the heads of the main directorates. Its role is to decide on and ensure the coherent implementation of the AMF's strategy and activities.

Its main remits:

- **to examine the proposals made to the Board** as regards general strategy, its annual implementation, the annual supervisory priorities and the AMF's budget;
- **to broach issues relating to the AMF's human resources** (allocation of staff in accordance with the strategic orientations, approval of remuneration policy, etc.);
- **to address issues relative to the proper organization** of the AMF, as well as the supervision of its activities, including the process for identifying managing and monitoring the main issues.

Our staff

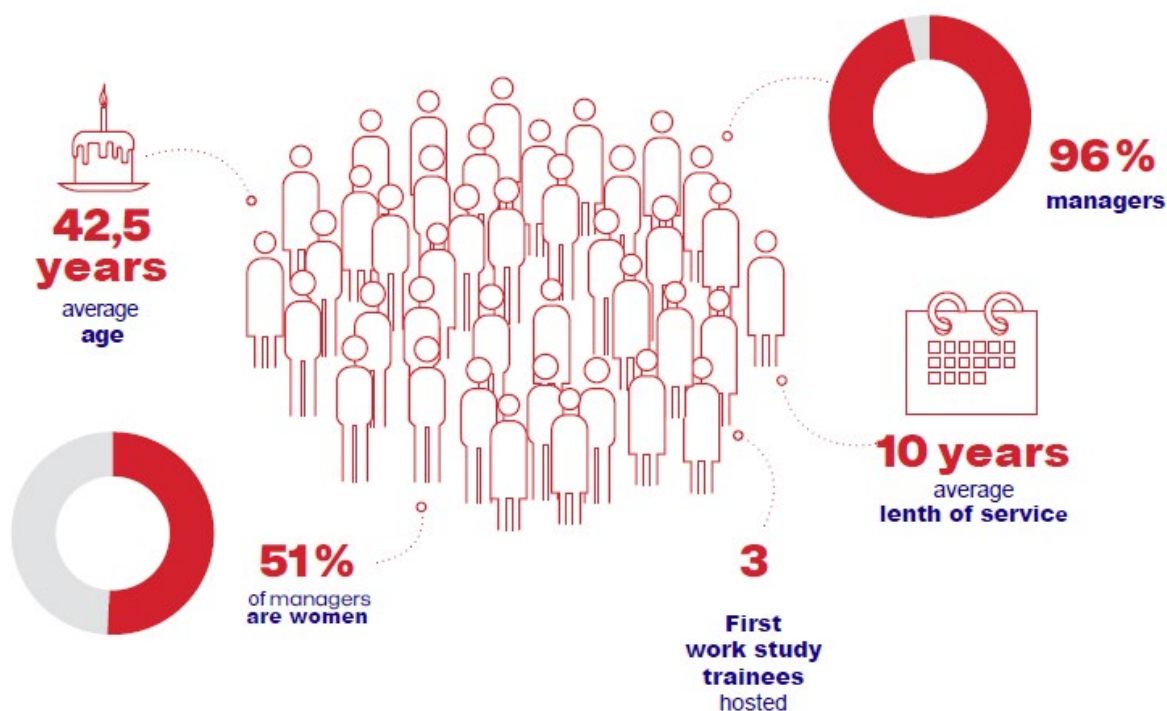
To successfully fulfil its remit, the AMF relies on nearly 530 members of staff⁽¹⁾. The AMF welcomes both recent graduates and more experienced professionals. Coming from both the public and private sectors, they include lawyers, financial market specialists, data scientists, cybersecurity experts and IT specialists. Regulation, supervision, analysis, support, information... Whatever their field of work, they develop their approaches and tools to adapt regulation to innovations in the financial markets and anticipate their transformation.

The AMF's employees embody a demanding regulation, A demanding regulation that enlightens as much as it frames, a high-impact form of regulation that is based on competence, responsibility and a sense of the public interest. They combine rigor and pedagogy, and have a common sense of pride in regulating finance to reinforce confidence.

(1) Full-time equivalent.

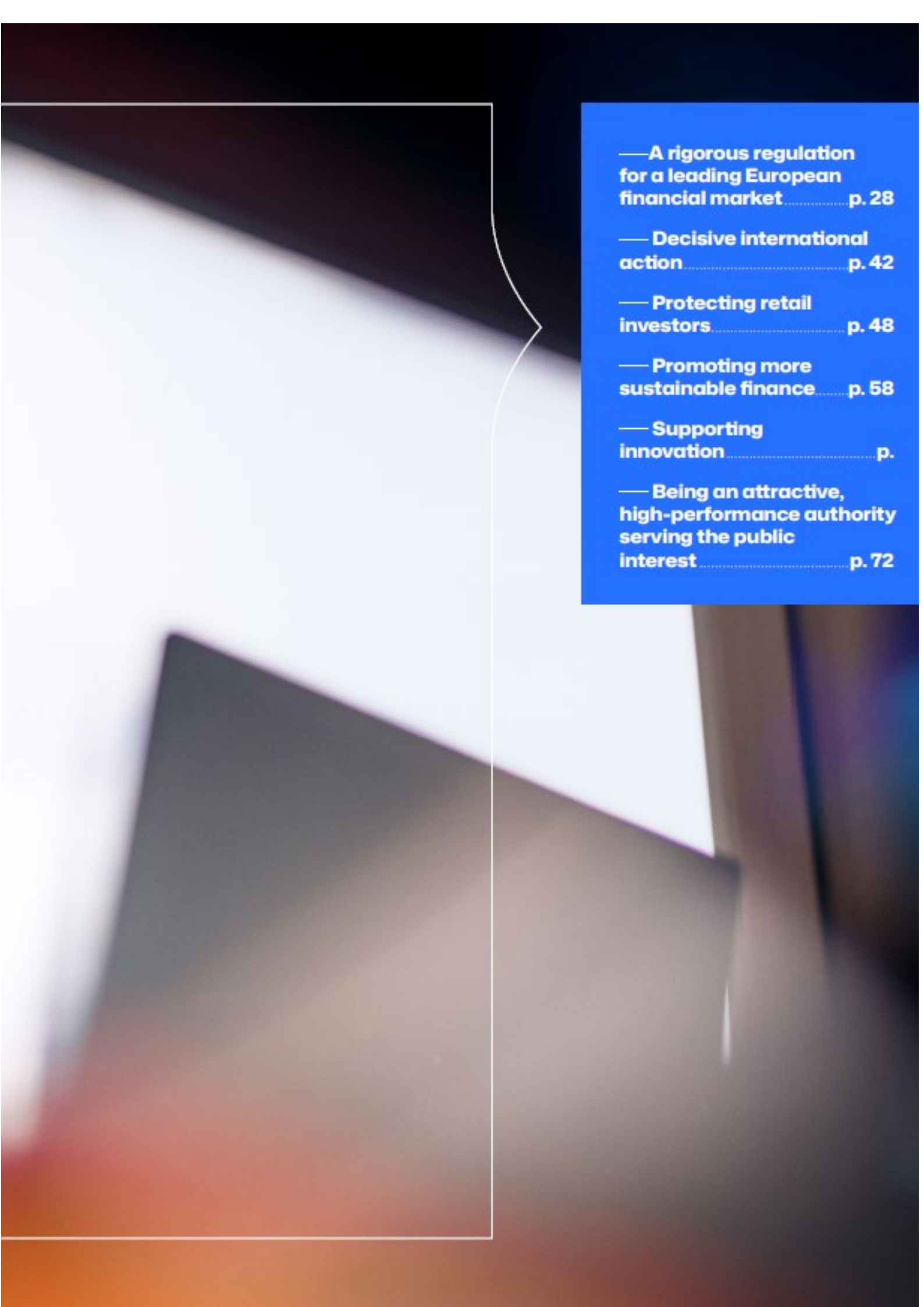
Regulate finance, reinforce confidence

In a context marked by major uncertainties, the role of public institutions is more crucial than ever. As a benchmark and anchor for society, the AMF takes its role of financial centre compass seriously. Its new slogan, 'Regulate finance, reinforce confidence', conveys this ambition and sums up its day-to-day work. It reiterates that AMF serves a financial system that is honest, resilient and competitive, one that takes care to protect investors and helps to finance the real economy. Confidence is a precious asset that is built up over time. Therefore, this slogan reflects the collective determination of the AMF's staff to provide independent, rigorous and agile regulation in the public interest.



A man in profile, looking towards the right. The image is overlaid with a red and blue gradient, with the red being more prominent on the left and the blue on the right. The man's face is partially in shadow, and the background is bright and out of focus.

Impact 2027: monitoring our strategic orientations



— **A rigorous regulation
for a leading European
financial market** p. 28

— **Decisive international
action** p. 42

— **Protecting retail
investors** p. 48

— **Promoting more
sustainable finance** p. 58

— **Supporting
innovation** p.

— **Being an attractive,
high-performance authority
serving the public
interest** p. 72

Rigorous regulation for a leading European financial market

Market integrity and investor confidence, underpinned by robust supervision, are essential to support an attractive financial centre that supports the real economy. In 2025, the AMF continued its efforts to enhance the attractiveness of the Paris financial centre. At the same time, it pursued a rigorous, risk-based supervisory approach and continued to strengthen the effectiveness of its enforcement action.

The AMF's work on financial attractiveness

Reaffirmed AMF support for financial centre attractiveness

In 2025, against a still challenging backdrop, the AMF continued to support the development of the Paris financial centre, a key driver in the financing of the economy. The AMF has kept to its commitment to no longer gold-plate European legislation. It has simplified and modernised and opened up new areas of activity.

Work on French fund ranges to develop private asset management

The revised Regulation on European Long-Term Investment Funds (ELTIF 2), which came into application on 10 January 2024, established a harmonised European framework for private asset funds (private debt, private equity, real estate, infrastructure) that can be marketed to retail investors within the European Union. After having carried out work to relax and modernise the rules governing French funds, in 2025, the AMF supported the development of funds invested in private assets. The



growth in assets under management is noteworthy and could be even more significant in the years to come, as funds receive inflows and deploy these strategies. In 2025, 37 ELTIF 2 funds were authorised, bringing the total number of ELTIF funds to 73 and making France the second-largest domicile for these funds in the European Union. By the end of 2025, their assets under management had exceeded €8.4 billion.

The AMF's staff worked hard to authorise the ELTIF II funds within a short timeframe, while ensuring a high level of compliance by setting up a specific authorisation process for these funds.

At the same time, in Q2 2025, the AMF and the French Treasury launched a consultation on the changes needed to the rules governing French ranges. The aim is to create a clear and coherent offer that includes ELTIF funds and historical vehicles, and one makes it easier for the general public to access unlisted asset classes. After analysis and discussion with the financial centre, the results of this consultation should lead to regulatory and doctrine changes in 2026.

Creation of a fast-track authorization process for 'defence' funds

As part of the work launched by the Government on 20 March 2025 to strengthen the financing of the defence technological and industrial base (DTIB), the AMF introduced a fast-track authorisation process for investment funds making material investments in

(2) Regulation (EU) 2024/2809 of the European Parliament and of the Council of 23 October 2024 amending Regulations (EU) 2017/1129, (EU) No 596/2014 and (EU) No 600/2014 to make public capital markets in the Union more attractive for companies and to facilitate access to capital for small and medium-sized enterprises.

(3) Regulation (EU) 2017/1129 of the European Parliament and of the Council of 14 June 2017 on the prospectus to be published when securities are offered to the public or admitted to trading on a regulated market.

(4) The IPO Forum is a working group created in 2022 under the aegis of Paris Europlace. It brings together bankers, financial advisors, lawyers, investors and representatives of public authorities. On 9 July 2025, it published its final report, entitled: Recommendations on possible developments in IPO practices in France.

DTIB firms. This approach aims to facilitate the channelling of savings into this sector, while ensuring compliance with regulatory requirements in terms of investor protection and the quality of the information provided.

The implementation of this process resulted in:

- priority and fast-track processing of authorisation applications;
- enhanced support for the asset management companies concerned.

In 2025, six investment funds were authorised under this procedure, reflecting the interest shown by asset management companies in this sector. This figure does not include declared or authorised funds on related themes such as sovereignty.

The AMF has also initiated a dialogue with the *Direction Générale de l'Armement* (the French Defence Procurement Agency) on issues relating to DTIB financing and on questions of sovereignty in the broadest sense.

Easing of prospectus language rules

In 2025, the AMF supported the implementation of changes to the Prospectus Regulation stemming from the Listing Act² by making the prospectus language rules more flexible. This flexibility concerns the summary of prospectuses approved in France, and applies to both issuance and admission prospectuses for equity or debt securities on a regulated market, when the offer is primarily aimed at international investors.

Until then, the French rules generally required a summary of the prospectus to be drawn up in French, even where the documentation was drawn up in English in accordance with market practice. This specific requirement generated additional translation costs and delays for issuers and, against a backdrop of heightened competition between European financial centres, risked making the French market less attractive.

The new regime clarifies and broadens the conditions under which prospectuses may be approved in English. It affords greater predictability for issuers while protecting retail investors, in particular by requiring a summary in French when the offer is addressed to them. Accordingly, in line with the framework laid down in the Prospectus Regulation³, which allows each competent authority to determine the applicable language requirements, the AMF has eased the rules and now leaves companies free to choose the language of the prospectus (with the exception of the summary), including where they intend to address their offer to retail investors.

New measures to facilitate access to listing

In 2025, as enhancing the attractiveness of the French stock market remained a strategic priority, the AMF continued its efforts to make facilitate companies' access to public markets. Building on reforms initiated in 2015, these efforts also reflect the phased implementation of the European Listing Act and of the French Act of 13 June 2024 aimed at strengthening corporate financing and enhancing France's attractiveness

The AMF notably drew on the work of the Paris Europlace IPO Forum⁴ and updated its doctrine and practices to make IPOs simpler and safer, while ensuring that investors have access to reliable and comprehensive information.

The measures introduced concern, in particular, the format of the prospectus, by recognising the tripartite prospectus structure; the possibility of communicating ahead of a planned IPO, irrespective of the format chosen; the introduction of mechanisms designed to enhance the reliability of information throughout the prospectus preparation process; and greater flexibility in the arrangements for disclosing the offer price. They also provide greater flexibility regarding the language of the prospectus, subject to the publication of a French-language summary where the offer is addressed to retail investors in France, and give issuers greater discretion to organise an investor meeting at the launch of the transaction..

These changes are designed to reduce operational constraints and execution timelines, thereby making France's IPO framework more attractive. Drawing on the work of market participants and best practices in Europe, the AMF pursued its efforts to facilitate access to the stock market for companies wishing to raise capital, while complying with European regulatory requirements and taking investors' needs into account.

AMF commitment in relation to the entry into application of the DORA Regulation

The entry into application of the Regulation on the Digital Operational Resilience of the Financial Sector (DORA) on 17 January 2025 has strengthened the scope of the AMF's remit. To this end, the AMF has helped market participants to achieve compliance, in particular as regards compiling registers of their third-party service providers, and reporting operational incidents and cyber attacks. The AMF has also played an active role in defining the European supervisory framework for critical third-party service providers and will be involved in European supervisory initiatives from 2026.

In addition, the AMF is working closely with the ACPR and the Banque de France to pilot threat-based penetration tests as part of a joint system set up in 2025. Finally, the AMF is working with the French Cybersecurity Agency (ANSSI) to define methods for sharing information and good practices in the cyber field.



Supporting the transition to the T+1 settlement- cycle

On 18 June 2025, the European Parliament and the Council of the European Union reached an agreement to shorten the settlement cycle to T+1 for transactions on EU financial markets. Regulation (EU) 2025/2075 of 8 October 2025, published in the Official Journal of the European Union on 14 October 2025, provides that it will apply from 11 October 2027. At European level, work on T+1 has been organised under a specific governance structure comprising: an industry committee made up of experienced industry representatives; technical working groups dedicated to the operational adaptations to be put in place; and a coordination committee composed of representatives of ESMA, the European Commission and the European Central Bank. On

(5) Available online at: 1ap.fr/roadmap-securities-settlement

30 June 2025, the industry committee published a report⁵ containing recommendations relating to the transition to T+1. Work of a more technical nature is still in progress.

Domestically, the AMF has worked to ensure a smooth and orderly transition by 11 October 2027. In particular, the AMF and the Banque de France have set up a French working group on T+1 with three main objectives: to sustain the momentum of the French financial centre's preparations; to gather feedback from market participants on France-specific operational, technical and legal issues; and to determine the best way to disseminate the progress of French and European work to stakeholders. This group brings together a wide panel of market participants and groups representing the entire industry. In 2025, it met three times in plenary session. AMF staff also took part in numerous technical working meetings with the main industry groups concerned, in particular to monitor the progress of the industry's preparations.

Implementing an exacting risk analysis-based supervision

Regulated entity inspections: three categories depending on the objective pursued

The AMF's inspections look at regulated entities' compliance with their professional obligations (mainly investment services providers, including asset management companies, market infrastructures, financial investment advisors and their professional associations, and crowdfunding service providers). They have both an enforcement and an educational aspect, and thus

contribute to the proper supervision of market participants, in the same way as the AMF's day-to-day monitoring activities.

The AMF carries out various types of inspections, document-based and/or on-site, using a risk-based approach:

- 'standard' inspections, which are regular inspections of major market participants, or those that present particular risks or have been the subject of specific alerts;



- SPOT (Operational and Thematic Supervision of Practices) inspections, carried out in parallel at several entities (usually five per campaign). Their purpose is to gain a better understanding of a given activity or practice, to assess the implementation of regulations or to explore potential risks for investors or markets;
- document-based inspections, known as CORE (Risk Observation and Lessons Learned Campaign, see box). At this stage, these are limited to financial investment advisors (FIAs) and are carried out on a broad population of market participants. They do not give rise to a written inspection report, rather they lead either to a

standard inspection or to the closure of the file and transmission to the professional association to which the FIA belongs.

The procedures for selecting the entities for inspection differ depending on the objective. A thematic-based approach is used to select the companies eligible for a SPOT campaign (see next page). Standard inspections and document-based inspections of FIAs are based on size or risk criteria.

In 2025, 80% of the inspections initiated involved issues related to the thematic priorities of the Impact 2027 strategic orientations, i.e. retail investor protection, sustainable finance and innovation.

The AMF is evolving its document-based inspections of FIAs using a methodology called CORE

Inspection campaigns are now carried out using exclusively internal resources, and no longer with the assistance of the Banque de France. For missions that do not give rise to an on-site inspection, observation letters are sent to the FIAs, together with an analysis grid, thus contributing to supporting and bringing market participants into compliance, and facilitating the processing of transmissions by professional associations. A summary of the lessons learnt from these document-based inspections will be produced and published annually. This will reinforce their educational aspect and complement the punitive approach applied to the most serious cases. This new inspection methodology is called CORE, which stands for *campagne d'observation des risques et d'enseignements* (risks observation and lessons learned campaign).

Focus on 2025 SPOT inspections

At the beginning of each year, a risk analysis (based on the AMF's risk map, ESMA's risk map, the Impact 2027 strategic orientations and the findings of monitoring and inspection work) guides the supervisory priorities and determines the topics to be covered by the SPOT inspections for the coming year. These inspections, which take an educational stance, are designed to complement the AMF's standard inspections. The AMF publishes summaries of the SPOT inspections on its website to highlight good and poor practices, and draw lessons from these. In 2025, SPOT inspections targeted 15 asset management companies (AMCs), 13 investment services providers (ISPs) and five crowd-funding service providers (CSPs). They were selected as they were representative, and their activities and practices were relevant to the chosen theme.

In the asset management sector, the AMF has published four summaries based on SPOT campaigns launched in 2024. These looked at:

- monitoring funds' investment ratios, and related compensation and claims;
- employee qualifications and knowledge (see p. 49);
- AMC voting and shareholder engagement policies (see p. 62);
- governance and the role of senior managers at AMCs.

The AMF also finalised work on two SPOT campaigns at investment services providers in 2024. These looked at:

- sustainability preferences in investment advice (see p. 64);
- the involvement of the compliance function in cross-functional processes relating to employee conduct.



The publication, in 2026, of a summary reporting the good and poor practices observed during the SPOT inspection of CSPs will enable us to continue our support to these market participants, while protecting the retail investors who invest through crowdfunding platforms.

JÉRÔME FILS
Inspections Department

Monitoring fund investment ratios, compensation and claims: the need for robust internal processes in the interests of investors

When managing funds, asset management companies are required to comply with ratios imposed by the regulations. Since 2021, they have been required to report to the AMF any 'active' ratio breach, i.e. those resulting from an action taken by the fund manager. The data communicated to the AMF in this context contributes to the knowledge about and monitoring of regulated entities and products. It enables the regulator to detect situations requiring its attention.

In addition, if the ratios are exceeded, fund unitholders may be entitled to compensation if they have suffered prejudice, whether or not as a result of claims brought by them.

As part of a SPOT campaign conducted at five generalist asset management companies, the AMF observed that the risk control function was configuring the ratios in an IT tool integrated into the order management system and that enables pre-trade and post-trade checks to be carried out on each transaction to verify ongoing compliance with the ratios. The lack of regular reviews of the consistency of the configuration of the tool used to monitor these ratios is a poor practice revealed by the inspection.

With regard to the procedures for monitoring ratios, the asset management companies on the panel had established clear rules, enabling them to investigate breaches alerts according, in particular, to their level of severity. This also includes mechanisms for identifying false alarms, dealing with the causes of recurring over-runs and escalating cases to senior management where necessary. With regard to compensation, the AMF noted the good practice of defining an internal policy for quantifying impact and compensation in the event of active breaches.

However, the AMF identified anomalies in the reports sent to it on ratio monitoring and breaches observed.

None of the claims received by the asset management companies in the panel related to a ratio breach. In fact, retail investors do not generally have access to information on the existence of such breaches, or on their possible impact, as there is no legal obligation for them to be provided with such information. Hence the need for a robust internal process for monitoring these breaches in order to meet the regulatory obligation to act in the interests of investors, even in the absence of a claim.

The decisive role of governance in ensuring compliance with professional obligations

Governance is a determining factor in asset management companies complying with their professional obligations, whether they are small, independent or part of a group. The principle of proportionality, based on criteria of size, activity and legal form, offers eligible asset management companies a certain latitude in implementing the obligations related to this governance.

The AMF carried out a series of inspections at a diverse sample of five asset management companies, independent or part of groups, and managing assets ranging from a few hundred million to in excess of five billion euros. These entities are incorporated in the form of public limited companies or simplified joint-stock companies, with or without a supervisory body.

Among the good practices, the AMF noted:

- the adoption of internal rules specific to the supervisory function, which precisely define the organizational and operational arrangements as well as the remit of this function;
- the implementation of a systematic process for informing employees of changes in procedures affecting them and including, where appropriate, a request for an acknowledgment of receipt for policies or procedures covering activities deemed to be the riskiest;
- the regular presentation by the Chief Compliance and Internal Control Officer (RCCI) of the important points of his/her reports to the persons responsible for the supervisory function;
- prior validation by senior managers of reports to be sent to the AMF, such as the annual disclosure sheets and annual internal control reports.

Among the poor practices observed, the AMF identified:

- the absence of a defined minimum meeting frequency for members of the asset management company's senior management;
- the absence of a formal communication channel for transmitting the main decisions adopted by the investment committee to senior managers.

Heterogenous involvement of the compliance function in cross-functional processes relating to the conduct of employees of investment services providers

As part of this SPOT campaign, the AMF chose to approach the compliance function from an angle that differed from the traditional approach. The study looked at the involvement of this function in the systems designed and managed by other operational departments at the investment services providers, in particular the human resources department.



We found that compliance officers did not always have access to employees' remuneration, even though they need this information to carry out appropriate controls. We hope that this SPOT campaign will make it easier for the compliance function to carry out the tasks assigned to it by the regulations in terms of employee remuneration policies.

PIERRE LARCHER
Inspections Department

The AMF noted that the involvement of the compliance function varied across the four institutions in the panel for various reasons. Thus, with regard to the disciplinary process, the compliance function is correctly positioned, demonstrating the attention paid by each institution to the ethical rules and compliance with these. The same is not true in the area of remuneration. It is in fact regrettable that this function, which is central, cannot fully exercise its role as its access to essential information is restricted. This decision, which the institutions justify by reasons relating to the confidentiality of this data, compromises the correct positioning of the compliance function. Furthermore, the relevance of those second-level controls that can be carried out despite this significant limitation is significantly impacted.

Anti-money laundering and combatting the financing of terrorism

Analysing and understanding the risks

Anti-money laundering and combatting the financing of terrorism (AML/CFT) contributes to the proper functioning of the financial markets. To this end, the AMF monitors compliance with AML/CFT obligations by the professionals it supervises, such as asset management companies and financial investment advisors. It ensures that their systems are compliant, effective and tailored to the risks of money laundering and the financing of terrorism (ML/FT).

An analysis and understanding of ML/FT risks are therefore essential to the effectiveness of the preventive framework. The AMF is making an active contribution in this area. It prepares a sector-based assessment of ML/FT risks (SRA), which is based on the national risk assessment (NRA) carried out by the *Conseil d'Orientation de la Lutte Contre le Blanchiment des Capitaux et le Financement du Terrorisme* (COLB).

These assessments, which should be updated again in 2026, fulfil two functions:

- they help professionals to assess their own ML/FT risks and adapt their systems;
- they help to develop the supervisory work and the framework for the inspections carried out by AMF staff on AML/CFT issues. As in previous years, the AMF used the annual AML/CFT questionnaires and the annual AML/CFT internal control reports submitted by asset management companies in 2025 to assess each company's AML/CFT risk profile, define supervisory actions and, where appropriate, make inspection proposals.

The new European AML/CFT package (see interview p. 39) and the work being carried out by the new European Anti-Money Laundering Authority (AMLA) will, from 2027, lead to significant changes in this risk-based supervision and in the methods used to assess individual AML/CFT risks.

Find out more
about the AMLA



(6) See the final report on the draft RTS under Article 40 of Directive 2024/1640 (AMLD VI) (1ap.fr/draft-rtss-art40) and the final report on its draft RTS under Article 12 of Regulation 2024/1620 (AMLAR) (1ap.fr/draft-rtss-art12-7).

(7) See the public consultation on the implementing technical standard (ITS) provided for in Article 15 of the AMLAR Regulation.

The AMF's contribution to the work of the AMLA

The AMF has played an active role in the various working groups that the AMLA has gradually set up. The aim of these groups was to draw up or finalise the first drafts of framework laws, some of which were initiated by the European Banking Authority (EBA) prior to the effective transfer of its AML/CFT responsibilities to the AMLA at the end of 2025.

At the end of 2025, the AMLA published two draft laws setting out the framework for the assessment of ML/FT risks by the competent authorities, for the purposes of their own supervision and for selecting the entities or groups subject to the AMLA's direct supervision⁶. It has also published an

initial consultation paper on a draft law to supplement this framework⁷. Data to be used to test the methodology resulting from these laws will be collected in 2026, in order to supplement the data collection exercises initiated in 2025 in which the AMF took part.

This new framework will result in a harmonised methodology for assessing ML/FT risks, the first step towards an AML/CFT supervisory framework based on the risks defined by the AMLA. This will provide for greater homogeneity at European level and could inspire the work currently being carried out by the co-legislators on the European supervision of capital markets.

Focus on the EBA consultation

In March 2024, the European Commission identified various RTS as priorities for the rapid implementation of the new AML/CFT framework. It then sent a call for advice* to the EBA to initiate their drafting and allow their finalisation by the AMLA, which was then in the process of being set up.

The EBA's Anti-Money Laundering Standing Committee (AMLSC), which was the European authority responsible for AML/CFT matters before the AMLA was created, drew up four draft texts, which were the subject of a broad public consultation in the first half of 2025 and culminated, in October 2025, in the EBA's publication of a response to the call for advice from the European Commission**. The AMLA used this work as a basis for finalising the draft texts on ML/FT risk assessment.

The AMF has been monitoring this work as a non-voting member of the AMLSC. In particular, it ensured that any sector-specific characteristics of the market participants supervised by the AMF were taken into account, as far as possible, and it regularly informed the professionals under its supervision of the progress of this work.

* Read the call for advice: 1ap.fr/call-for-advice

** Read the response to the call for advice: 1ap.fr/reponse-call-for-advice



The AML/CFT package

In June 2024, the European Union adopted a set of texts known as the AML/CFT package. What is this and what does it want to achieve? Sylvain Aubert from the Asset Management Directorate answers our questions.

What is the AML/CFT package?

The 'AML/CFT package', published on 19 June 2024, consists of a directive (AMLD VI) and three regulations, dealing respectively with the creation of the new European anti-money laundering and countering the financing of terrorism authority (AMLA), the requirements that supervised entities must meet to prevent ML/FT risks (AMLR) and the information that must accompany transfers of funds and crypto-assets (TFR II).

What role will this new AML/CFT authority have?

Established in June 2024, the *Anti-Money Laundering Authority* (AMLA), based in Frankfurt, is responsible for direct and indirect supervision of the financial sector, and for drafting a large number of legal instruments implementing

the new European AML/CFT package*.

How will the AMLA exercise its supervisory powers in practice?

It will work in two different but complementary ways. **Direct supervision:** the AMLA will directly supervise at least 40 entities or groups selected on the basis of their risk profile. The selection procedure will begin no later than 1 July 2027 and will be completed within six months of the date on which the selection process begins. The selected entities will then come under the direct supervision of the AMLA from 1 January 2028. The AMLA will ensure that they comply with the obligations set out in the AMLR and, to this end, will carry out inspections and assessments, both at the level of the supervised group and at the level of individual entities.

Indirect supervision: in particular, the AMLA will have to develop a harmonised ML/FT risk assessment and supervision methodology using a risk-based approach in cooperation with the national authorities. In collaboration with the national supervisory authorities, it will contribute to the convergence of AML/CFT supervisory practices.

* In the form of regulatory technical standards (RTS), implementing technical standards (ITS), guidelines and recommendations.

Find out more
about the AML/
CFT package



Enhancing the impact of the AMF's enforcement work

Legislative measures to make enforcement more effective

The AMF has long been considering ways of making its enforcement policy more effective. This work has identified a number of organisational, legislative and regulatory measures designed to speed up the AMF's enforcement processes and improve the comprehensiveness of its action.

This is the background to the bill to combat financial fraud and strengthen financial security tabled by deputy Daniel Labaronne in September 2025. Several of the measures contained in this bill can also be found in articles of the bill to combat social and tax fraud, which was passed at its first reading in the Senate on 18 November 2025.

Measures to step up the fight against organised crime, insider networks and scams

- Granting the AMF automated access to publicly accessible content on online platforms (web scraping) for investigative purposes, and as part of its supervision and monitoring of illegal products and services, including in relation to crypto-assets.
- Extending the use of an assumed identity, currently limited to services provided by regulated entities, for the purposes of investigations, market supervision, and illegal product and service monitoring.



- Enabling the French National Financial Prosecutor's Office and financial investigating judges to refer cases to AMF investigators as part of criminal investigations into market abuse.
- Limiting the scope of the offence of obstruction to obstruction observed in investigations into market abuse and subjecting facts that may be classified as obstruction to the same signalling process as exists for market abuse, so as to bring the provisions of the Monetary and Financial Code on obstruction of the work of AMF investigators and inspectors into line with the Constitution.
- Enabling prosecutors' offices, rather than just the National Financial Prosecutor's Office, to forward documents to the AMF that are directly related to facts that may be submitted to the AMF Enforcement Committee for review.
- Introducing a clemency scheme to encourage the perpetrators or accomplices of regulatory breaches and/or financial offences to cooperate with the AMF in return for an exemption from or reduction in sanctions.
- Enhancing the effectiveness of the home search and seizure operations carried out by AMF investigators after these have been authorised by the *Juge des Libertés et de la Détention* (judge tasked with release and detention decisions).
- Allowing the AMF Secretary General to require regulated professionals to carry out external audits to ensure compliance with applicable regulations.

Measures to make proceedings before the Enforcement Committee more effective

- Enabling the Enforcement Committee rapporteur to obtain reliable and up-to-date information about respondents' financial situation and assets from the relevant government departments or public bodies.
 - Giving the Enforcement Committee the power to ban professionals who are not regulated for market abuse, either alternatively or additionally, from holding a corporate office in a listed company or from dealing in financial instruments on their own account.
 - Giving the Enforcement Committee the power to sanction illegal public offers of shares in commercial companies or cooperative companies that have not been incorporated as public limited companies.
 - Introducing the possibility for sanctioned persons or entities to lodge a cross-appeal against Enforcement Committee decisions in the same way as the AMF Chair.
- ### **Measures to make procedures simpler, faster and more efficient**
- Creating a new settlement mechanism for the punitive handling of certain minor reporting breaches that do not require an investigation or inspection.
 - Enhancing the effectiveness of the AMF Board's power to issue administrative injunctions by adding the option of imposing a fine.
 - Enabling the AMF to communicate about ongoing investigations, inspections and sanction proceedings, while respecting the presumption of innocence.

Decisive international action

Equipping Europe with the means to make its own political choices is the goal that drives the Savings and Investments Union project. In 2025, the AMF continued to support this project, which is vital to Europe's financial sovereignty, by contributing its expertise to the work on reforming the securitisation framework. Financial stability at national, European and international level is another key issue to which the AMF continued to contribute in 2025.

Supporting the Savings and Investments Union

Reform of the European securitisation framework: a priority lever for the Savings and Investments Union

Securitisation is a financial technique that consists of obtaining financing by transferring assets to a special purpose vehicle, which in turn finances their securitites by issuing financial securities on the capital markets. It plays an essential role in financing the economy, and its relaunch in the European Union has now been clearly identified as one of the priority levers of the Savings and Investments Union.

On 17 June 2025, the European Commission published a legislative package aimed at reforming the European securitisation framework, both in terms of its prudential aspects (amendments to the Regulation on prudential requirements for credit institutions and investment firms, the CRR) and market operation aspects (amendments

to the Securitisation Regulation). On this last point, which falls within the AMF's remit of the AMF, the Commission is proposing to relax the transparency and due diligence requirements for investors, in return for the introduction of a system of sanctions for investors who fail to meet their obligations. A derogation from the homogeneity criteria for SME loan securitisation has been introduced, provided that at least 70% of the underlying exposures are loans to SMEs.

The draft reform also affects supervision: in particular, there is a proposal to transfer the governance of the Joint Committee Securitisation Committee (JCSC) from ESMA to the European Banking Authority (EBA) and to make national prudential authorities responsible for supervising compliance with STS label criteria (this label identifies simple, transparent and standardised securitisations). However, supervising STS label third party verifiers would remain a national responsibility.

Finally, the draft reform introduces the concept of 'lead supervisor' for cross-border securitisation.

Negotiations in the Council took place under the Danish Presidency in the second half of 2025 and led to the adoption of a general approach in December 2025. As part of this process, the AMF provided its supervisory expertise to the French Treasury, which was responsible for pre-sending France's position to the Council. Negotiations continue in 2026 with the finalisation of the European Parliament's position, followed by inter-institutional trilogues.

The need to channel household savings into the European economy

The recent Noyer, Draghi and Letta reports⁽⁸⁾ on the Savings and Investment Union highlighted the link between the lack of development of EU capital markets and the sub-optimal allocation of European household savings. Against this backdrop, it now appears essential for European household savings to be better channelled towards capital markets through the introduction of long-term savings plans accompanied by appropriate tax incentives.

A label to promote investment in the European economy

In June 2025, the finance ministers of seven Member States, including France, launched the Finance Europe label. This optional label may be applied to funds, insurance products and securities accounts, subject to them meeting certain common criteria in terms of eligible assets and a minimum quota (70%) of European assets. The aim of the label is to promote long-term investment in the European economy, while financing the EU's strategic objectives.

This initiative was followed up in September 2025 by a Commission recommendation (Blueprint for Savings and Investment Accounts), which encourages Member States to set up

savings and investment account schemes that incorporate a number of good practices already observed in some European countries, including multiple providers, simplicity, flexibility, investment opportunities, tax incentives and simplified tax procedures.

Progress in investor information and the 'client journey'

Throughout 2025, the AMF provided technical support to the French Treasury on the issue of the European Retail Investment Strategy. The Treasury was responsible for conveying France's position to the European Council. This legislative package, proposed by the Commission in May 2023, consists of a wide-ranging reform of the conduct of business and information rules governing the provision of investment services to European retail investors, as set out in the MiFID II Directive on financial markets and the PRIIPs Regulation on key information documents for packaged retail and insurance-based investment products. This reform aims to offer investors clear information, fair treatment and high levels of protection, regardless of the investment products or marketing channels they use.

The political agreement reached by the co-legislators on 18 December 2025 enshrines a number of significant advances. This is particularly true of the 'value for money' component: to help retail investors compare investment products, investment services providers will have to identify and quantify all the costs and fees borne by investors in connection with the products they design and provide advice on. They will also have to assess, on the basis of a comparison with similar products, whether these costs and fees are justified and proportionate and, if necessary, take corrective measures before marketing.

(8) Noyer (1ap.fr/rapport-noyer), Draghi (1ap.fr/rapport-draghi) and Letta (1ap.fr/rapport-letta) reports.

With regard to the rules specific to the 'client journey', the suitability test will be supplemented to take into account the need for client diversification, while a new simplified framework will make it possible to simplify client questionnaires in those distribution networks offering certain non-complex products. In addition, information on the costs and fees incurred by clients in connection with their investment will be rationalised through the introduction of harmonised formats and common calculation methodologies.

Finally, to address conflicts of interest, the co-legislators have strengthened investment firms' obligation to act honestly, fairly and professionally, in the best interests of their clients. In particular, they will have to ensure that any remuneration they receive from the products they market is in return for a tangible benefit to their client, and that the amount of the incentive is published clearly and separately from the other fees and commissions borne by the investor.

Given the two-year period for transposition into national law, and subject to the dates of final adoption, the amended texts are expected to come into application between 2028 and 2029.

AMF advocacy for integrated European supervision

The AMF has fed into the discussions held over the past two years on the Savings and Investments Union by participating in the drafting of ESMA's report on the Capital Markets Union, by contributing to the work from a number of leading figures (the Noyer, Letta and Draghi reports), and by publishing various position papers aimed at contributing to these debates, such as the one on strengthening European level supervision.

In a paper, published in September 2025, the AMF argued in favour of moving towards a more unified European supervisory architecture. It believes that this is a necessary condition for building the Savings and Investments Union, strengthening financial stability and investor protection, and simplifying financial regulation. The fragmentation of financial market supervision within the EU has engendered a number of difficulties:

- level playing field issues between market participants, while dispute resolution and coordination mechanisms are slow and costly;
- stability risks, particularly for cross-border participants and infrastructures, due to the dilution of responsibilities and the lack of consolidated supervision;
- risks to investor protection, particularly when financial services are provided to retail investors across borders;
- damage to the competitiveness of European markets by making cross-border activity more complex and more expensive, particularly as, in the absence of unified supervision, laws tend to become too detailed, including at level 1, which prevents any real simplification.

The AMF recommends a differentiated approach:

- for entities, it proposes drawing inspiration from the banking model with direct supervision by ESMA of large cross-border participants and supervision delegated to the competent national authorities for smaller or domestic participants, starting with crypto-asset market participants and then moving on to large pan-European market infrastructures and asset management groups;
- for products, the AMF recommends a more cautious approach, as the diverse nature of the applicable regimes and investor protection issues justify not making this an immediate priority.

Such a development would require changes to ESMA's governance and funding. The AMF is proposing a dual model: the Board of Supervisors would retain competence for regulatory policy and matter, while a select executive committee, made up of high-level professionals appointed by the Board on a proposal from the Commission on the basis of their experience, skills and knowledge of the operation and regulation of financial markets, would be responsible for individual supervisory decisions.

This solution, like the architecture proposed by the AMF, is in line with the European Commission's proposals on supervision, set out in the Market Integration and Supervision Package published in December 2025.

The AMF is active internationally

The AMF is consolidating its position as a leading regulator internationally, and is bringing the many issues relating to financial stability, investor protection and market integrity to the attention of the various European and international bodies in which it participates.

It promotes multilateral and bilateral cooperation with its counterparts.

Thus, the AMF organised its 15th annual international seminar, by videoconference, bringing together more than 950 representatives of financial market regulators from around the world. This served as an opportunity to discuss issues such as the use of artificial intelligence, cybersecurity, data quality and financial education.

The AMF also hosted a FSEG meeting in Paris, co-chaired by the AMF Chair. Alongside this event, by all the world's major market regulators worldwide, it organised an international conference on the risks and opportunities associated with artificial intelligence and quantum computing (see p. 68).

Working for financial stability

The AMF pays particular attention to non-bank finance

In fulfilling its mandate to protect financial stability, the AMF focuses its work and analyses on non-bank finance, particularly asset management, at international, European and domestic levels. The AMF is involved in the work of the Financial Stability Engagement Group (FSEG), which it co-chairs with the UK's Financial Conduct Authority, and of the Financial Stability Board (FSB). These bodies deal with financial stability issues and their priorities coincide with those of the AMF. A significant part of their work is dedicated to elaborating frameworks to support the development of non-bank financial intermediation (NBFi), with the size of this sector growing at a rapid pace: according to a 2024 FSB publication, NBFi accounted for around 50% of total global financial assets.

In particular, the AMF contributed to an FSB report on leverage in non-bank financial intermediation, published on 9 July 2025, and IOSCO recommendations for liquidity risk management for collective investment undertakings, published in May 2025. At national level, it supported the implementation of liquidity management tools by investment funds, preparing them for the transposition of the AIFM II Directive into French law (see below).

Deploying liquidity management tools at investment funds open to redemptions

The revision of the UCITS and AIFM Directives stipulates that, by 16 April 2026, any investment fund that is open to redemptions must have at least two of the seven liquidity management tools listed in the Directives⁹. The main objective of these tools is to facilitate the fair treatment of investors by protecting those remaining in the fund from the costs generated by other investors' subscriptions and redemptions. Managers have two types of tool at their disposal:

- 'anti-dilution' tools, which make it possible to allocate the cost of the liquidity of the fund's assets to those investors who are subscribing or redeeming units, and therefore who are generating these costs, so that the remaining investors do not bear them;
- tools that allow redemptions to be staggered over time (gates) to prevent an influx of redemptions from forcing the fund manager to sell portfolio assets hastily, to the detriment of the investors remaining in the fund.

In recent years, AMF staff have taken steps to encourage managers to adopt liquidity management tools. Although these initiatives have borne fruit, several thousand funds still do not have two such tools. To facilitate the adoption of liquidity management tools within the deadlines imposed by the revised directives, the AMF has introduced a transitional regime for authorisation, information provision to unitholders and fee-free exit, which eases operational constraints while preserving a protective framework for investors.

⁽⁹⁾ Money market funds are an exception and will only have to implement one tool; this exception reflects the fact that money market funds are, by their nature and design, highly liquid and are intended to honour redemptions in all circumstances.



Implementation of the first cross-sector stress test

In anticipation of the discussions expected at European level following the Commission's consultation on strengthening the Union's macro-prudential framework, the Banque de France, the AMF and the ACPR carried out an integrated stress test of the French banking, insurance and asset management sectors. Following a preparatory phase in Q1 2025, co-construction workshops were organised between the end of March and the end of April with volunteer firms from the three sectors concerned, to refine the scenarios and adjust the reporting templates. Two exchange sessions were also organised with academic researchers specialized in financial interconnections and systemic risk.

On 1 August 2025, the exercise was formally launched. The exercise had two main phases: the participants ran the initial scenario, filled in their shock

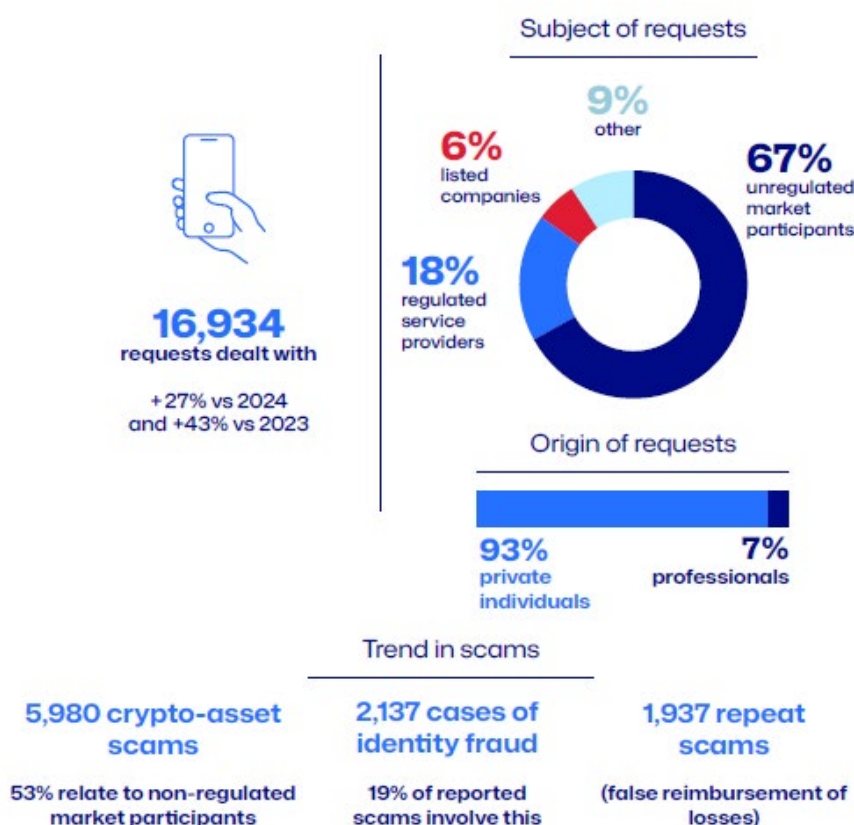
response strategies, and reported the results to their supervisor (bottom-up stress test). The latter then analysed the consistency of the responses and their aggregate effects in order to adjust the stress scenario to the new parameters revealed by the market participants (e.g. disposals of the same type of securities, revision of redemption assumptions). This scenario will be re-submitted to the market participants for a second test phase. At the same time, a top-down stress test model, based on the interconnected system-wide stress test analytics (ISA) model developed by the European Central Bank will be used to compare the results and estimate the market impact of the scenario.

The first phase is currently underway, with submissions expected by 31 March 2026. Response review and reconciliation by the AMF, ACPR and Banque de France should be finalised at the beginning of Q2, for a rapid launch of the second phase.

Protecting retail investors

Protecting retail investors is the AMF's top priority. In 2025, the AMF took action on all fronts – training for professionals, alerts, awareness raising, dispute resolution assistance – to protect investors, especially young people, who are increasingly active on the financial markets.

AMF Épargne Info Service in 2025



Improving training for professionals to better protect retail investors

Professional certification: a key protection issue

Mechanisms for verifying and assessing knowledge: an update on the AMF's policy

As part of a series of SPOT inspections (see p. 34) at five asset management companies, the AMF examined the knowledge verification and assessment systems adopted by these companies.

In terms of employee knowledge verification, the inspections revealed that, for the AMF examination, the process for selecting and monitoring the training body responsible for administering the examination is based on objective criteria. In addition, the system precisely defines the people concerned, the timing and training constraints, as well as the arrangements for taking the examination. With regard to the internal knowledge verification system, the AMF found that this was less stringent and of lower quality than the AMF examination, given that the internal pass rates were lower than those required for the AMF examination. It also noted that the arrangements for taking the internal examination were not defined in the agreement binding the asset management company and its service provider, nor in an internal procedure.

With regard to the assessment of the knowledge and skills of client-facing employees, the AMF found that the procedures of the two companies inspected in this area did not clearly distinguish between those employees subject to knowledge verification and those subject to knowledge assessment.

However, these two concepts correspond to distinct obligations. Among the good practices observed, the AMF noted the use of a monitoring tool to manage knowledge and skill assessment.

In line with the lessons learned about knowledge verification from the SPOT campaign, the AMF has supplemented the Q&A on the system for verifying market participants' minimum level of knowledge by specifying the expected requirements for the internal system to verify employees' knowledge and the procedures to be followed when implementing the internal examination, in order to harmonise this system with the AMF examination system. The updated position came into application on 1 January 2026.





Fifteen years of professional certification

In 2025, professional certification celebrated its fifteenth anniversary. This served as the occasion to interview Valentin lehl, from the Retail Investor Relations and Protection Directorate.

Why has the AMF introduced this system?

The knowledge and skills of financial market professionals are crucial in ensuring compliance with the principles of client protection and market integrity. Their training is key in their ability to exercise their profession, as well as in the financial education of investors, which consequently contributes to their protection.

To ensure that these professionals have the necessary skills and knowledge, in 2010, the AMF introduced a system that requires professionals to ensure that their employees who hold key positions have a common core of minimum knowledge.

How is knowledge verified?

Knowledge verification is carried out by means of an examination, either organised internally, or externally with an AMF certified body ('the AMF examination').

The examination consists of 120 multiple-choice questions covering knowledge of the financial, legislative and regulatory environment, technical knowledge of financial instruments, the operation and organisation of markets, and commercial relations with clients.

To pass it, a score of 80% is required for the financial literacy questions and for the questions on the knowledge that is essential to the exercise

of the profession (primarily legal or ethical knowledge). Since its creation, over 145,000 candidates have passed the test!

And what about the Sustainable Finance certificate?

This is a complementary and optional module that is aimed in particular at sales professionals, but also anyone else, wishing to acquire a general understanding of the regulatory and economic framework for sustainable finance. It enables them to understand the essential concepts and to acquire a frame of reference for the products and methodologies used, so that they can identify clients' sustainability preferences and thus offer them products tailored to their needs.

Review of sustainable finance examination questions

The AMF also conducted a review of the sustainable finance examination. Since August 2022, advisors have had to collect their clients' sustainability preferences in order to offer them products tailored to their needs.

The examination questions are written by AMF-certified training bodies. A review of these questions and the certification of twelve bodies was carried out four years after the launch to ensure that they were still appropriate. Questions that were too complex or insufficiently relevant were modified or deleted by mutual agreement between the AMF and the certified bodies.

Retail investor expectations of their financial advisors in terms of responsible investment

In May 2025, the biennial responsible investment survey was carried out on a representative sample of 2,006 French adults. The aim of this survey is to track changes in French people's knowledge and perceptions in this field. Previous editions have shown that while many French people, particularly younger people, are interested in responsible investment, their understanding of it remains limited.

The 2025 survey showed that interest in these products had held up, despite a slight downturn and persistent doubts as to their real sustainability.

Thus, sustainable development issues remain important for 63% of French people (66% in 2023). 42% of them consider these investments to be attractive for retail investors (44% in 2023). The youngest people are still the most convinced.



A structured training plan, materials tailored to the specific nature of the business and a clear indication of whether the sessions are compulsory or optional are examples of the good practices identified during the SPOT campaign on employee knowledge of sustainable finance (see p. 62).

NELLY LEBEL
Inspections Department

The main finding of 2025 was that the role attributed to financial advisors, which was already important, has increased significantly over the last two years. They are the preferred source of information for people wanting to know more about responsible investments. More generally, 69% of French people think that it is important for their advisor to ask them if they want to make responsible investments (65% in 2023).

In addition, 16% of the French people surveyed said they had already had to answer questions from their advisor about their sustainability preferences, and 12% had already been offered a responsible investment. Since August 2022, this has been a requirement for investment advice.

Strengthening the AMF's work in an increasingly digitalised financial world

New tools to strengthen the AMF's online monitoring

On 16 September 2025, a bill to combat financial fraud and strengthen financial security was submitted to the National Assembly by deputy Daniel Labaronne (see p. 40). The intention of this text is to equip the AMF with the tools it needs to improve the effectiveness of its work to repress these proven and formidable threats, and to combat organised crime, insider networks and financial scams. Articles 2 and 3 of this bill are designed to enable the AMF, as part of its remit to monitor illegal financial products and services, to gain automated access to content published by influencers that is publicly available on online platforms (web scraping) and to use an assumed identity to gain access to investment offers hidden behind the contact forms of many fraudulent sites or those resulting from phishing *campaigns*.

Regulating the influence and online promotion of financial products

The law aimed at regulating commercial influence and combating the abuses of influencers on social media, or the 'influencers law'⁽¹⁰⁾, has been amended to take account of the MiCA⁽¹¹⁾ Regulation and the Digital Services Regulation (DSA)⁽¹²⁾. Article 4 of this law prohibits influencers from promoting certain financial products and services, including risky derivatives, or the provision of services on crypto-assets, by market participants who have neither digital asset services provider (DASP) nor crypto-assets service provider (CASP) status. In the course of

its monitoring, the AMF has observed a number of abuses by influencers, with an audience of between 10,000 and 2,000,000 subscribers, who promote a crypto-asset trading platform that is not authorised to provide its services in France. To do this, they provide referral links in their publications accompanied by a promotional code offering a bonus or lower transaction fees.

The AMF is working closely with the Directorate General for Competition Policy, Consumer Affairs and Fraud Control (DGCCRF) to implement this law. In 2025, it forwarded 14 reports to it to alert it to the poor practices of certain influencers, with a view to an investigation being opened. On 10 December 2025, the AMF and the DGCCRF formalised this long-standing collaboration by signing a cooperation agreement together with a work programme. This agreement sets out the terms of cooperation between the authorities (information exchange, national task force to combat economic scams, training, awareness-raising and communication initiatives, organisation of bilateral meetings).

As part of its partnership with the *Autorité de Régulation Professionnelle de la Publicité* (ARPP) signed in 2011 and updated in 2022, on several occasions, the AMF has alerted the ARPP to advertisements for financial products or services that are deemed problematic. In April 2025, the AMF and the ARPP also updated the Responsible Influence Certificate module on financial advertising to incorporate changes linked to the European MiCA Regulation. By the end of 2025, 97 influencers had validated this module.

(10) Law No. 2023-451 of 9 June 2023 aimed at regulating commercial influence and combating abuses by influencers on social media.

(11) Regulation (EU) 2023/1114 on markets in crypto-assets, the MiCA Regulation.

(12) Regulation (EU) 2022/2065 of the European Parliament and of the Council of 19 October 2022 on a single market for digital services, the DSA Regulation.

Responsible influence is a matter for everyone, including platforms themselves. Therefore, in May 2025, ESMA encouraged several digital platforms (X, Meta, TikTok, Alphabet, Telegram, Snap, Amazon, Apple, Google and Reddit) to take proactive measures to prevent the promotion of unauthorised financial services. This move echoes the initiative launched shortly before by IOSCO, which highlighted the global nature of online prejudice linked to breaches of financial regulations. IOSCO has also upgraded its alert portal, now I-SCAN, a single gateway to the blacklists of 150 regulators. For its part, the AMF has initiated several contacts with the main platforms and is continuing its efforts in 2026 with these market participants, which have become key participants in the promotion of financial products and services, to better combat online investment fraud.

Mystery shopping visits to assess customer journeys and commercial practices on mobile phones

With the digitalisation of financial services, investment methods are evolving rapidly, allowing investors to carry out transactions in just a few clicks using mobile applications. Between November 2024 and January 2025, the AMF conducted mystery shopping visits at 14 investment services providers offering their services on mobile phones, to assess customer journeys and sales practices from the investor's perspective. The objectives were, firstly, to observe the information provided to clients before they make a decision and, secondly, to observe the extent to which market participants use marketing levers to encourage investment.

The results of this study highlight several points:

- mobile journeys are generally smooth, accounts are often opened quickly and at most establishments financial instruments can be subscribed in fewer

than ten clicks. This speed is made possible by the use of a range of digital solutions to optimise the onboarding journey. This speed not only improves the user experience, but can also reduce the thinking time before investing;

- in terms of regulatory information, the majority of establishments do provide the mandatory documentation. Nevertheless, some documents are provided in a foreign language, and information about the total costs or the nature of financial instruments may be considered insufficient or ambiguous at some of the institutions;
- in terms of commercial practices, some institutions adopt an understated approach, while others actively solicit their clients through notifications, pro-motions, video-game-like mechanisms or by providing community functions that can influence investment decisions;
- finally, educational support remains heterogeneous. Some applications provide tutorials, webinars and FAQs, while others provide fragmented information which limits understanding of the risks and associated issues.

Monitoring issues relating to the transfer of PEAs between institutions

Monitoring financial centre practices

In 2022, the AMF set up a working group on equity savings plans (PEAs) in response to retail investor feedback to EIS and to numerous referrals to the Ombudsman, which had led the AMF Ombudsman to alert the Board. Following on from the work undertaken by this working group, an agreement was made to monitor financial centre practices over a three-year period in order to measure improvements in:

- reducing transfer times between institutions;
- reducing the time taken to block arbitration in the event of a transfer;
- improving client information.

From 2023 to 2024, the indicators measured were satisfactory and showed a steady reduction in transfer times between institutions and better client information.

97% of transfers were completed in less than a month in 2025. This improvement was also reflected in a drop in the number of referrals to the AMF Ombudsman on this subject.

During 2025, new market participants launched commercial offers linked to the PEA. Therefore, the AMF will pay particular attention to ensuring compliance with the proposals put forward by the working group in conjunction with the stakeholders concerned.

One investment bank fined in 2025

At the same time, the AMF has taken punitive action. In July 2025, the AMF Enforcement Committee fined an investment bank whose branch had breached certain professional obligations in connection with PEA transfers (see p. 143).

Employee savings schemes: satisfied employees, but an enduring need for support

A survey on employee savings schemes was carried out in January 2025 among a representative sample of 751 French people aged 18 and over.

Its aim was to explore employees' perceptions of employee savings schemes (profit-sharing and incentive scheme bonuses, employers' contributions, employee savings plans, etc.). The findings showed that these schemes enjoy a

high level of satisfaction among employees, who see them as a lever for attracting and retaining staff. 86% find them to be interesting and 73% consider them to be good investments, with more than half highlighting their positive impact on motivation and loyalty.

However, knowledge of the funds and control over investment choices remains limited: only 21% of employees

claim to be familiar with the options available. As a result, 62% of beneficiaries express a need for support, particularly those aged under 50.

As far as companies are concerned, almost half of small businesses have already introduced an employee savings scheme, primarily for managerial reasons (employee motivation, loyalty, attractiveness of the firm).

Informing and raising retail investors' awareness

'Les mystères d'Investipolis' back for a second season

As part of its financial education strategy aimed at young investors, the AMF has reopened the doors to Investipolis, 'the city where anything is possible when it comes to investing' (see 2024 Annual Report, page 41). The aim of the second edition of the '*Les mystères d'Investipolis*' campaign was to help young investors get to know themselves better and become aware of the behavioural biases that can influence their investment decisions more or less consciously. In this campaign, the hero, still guided by the mentor character 'the pilot', was confronted with four main biases: copycat behaviour (or sheep-like behaviour), the illusion of control, the illusion of knowledge and confirmation bias. Disseminated on the main social media used by young people for information, this educational initiative achieved 43 million impressions.

The <https://nouveauxinvestisseurs.amf-france.org/> mini-site remains an entry point for young investors throughout the year.

405 new names on AMF blacklists

In 2025, the AMF added 405 new names (URLs or e-mails) to its blacklist. Most of these additions are market participants who illegally offer crypto-assets or derivatives on crypto-assets in France. Fraudsters continue to assume the identity of regulated French and European market participants on a massive scale. The AMF has not been spared from this phenomenon – 59 of the 215 instances of identity frauds reported concerned it directly. Retail investors report being contacted by an AMF 'agent' tasked with helping them recover sums lost on fraudulent investment platforms. On 3 February 2025, the AMF warned retail investors

to be vigilant in the face of calls from people posing as AMF employees. It has reiterated that it never contacts retail investors on its own initiative by telephone or private messaging, and does not arrange appointments at its offices.

AMF call for vigilance in the face of stock market 'top tips' offered over private messaging services

Following reports received from retail investors, on 19 September 2025, the AMF warned the public against recommendations to invest in supposedly high-yield shares circulated on private messaging groups, which bear the hallmarks of the fraudulent 'pump and dump' practice. This practice consists of organising massive share purchases to drive up prices and pocket capital gains at the expense of retail investors.

The AMF regularly puts bogus trading platforms on its blacklist. Despite this, some remain active. On 7 January 2025, the AMF had to issue a named warning against the Livaxxen platform, which continued to be the subject of numerous complaints from retail investors.

Helping to resolve disputes

In 2025, mediation requests rose sharply once again (+37% compared with 2024).

The number of recommendations issued by the Ombudsman fell by 25% compared with 2024, to 888. The number of cases pending as at 31 December 2025 has also risen sharply, to 694.

In terms of themes, the following stand out:

- a sharp increase, +140%, in the number of cases involving PEAs, particularly transfers from one institution to another (74% of cases);
- a sharp increase in the number of cases relating to real estate crowdfunding. The projects financed are subject to the risk of default on real estate development programmes (see p. 108);
- the continuing high number of SCPI-related cases, reflecting the difficulties encountered by members when redeeming their units;
- employee savings schemes, for which mediation is still very much in demand.

The Ombudsman's online diary remains a very useful tool for disseminating the Ombudsman's analysis of specific cases (employee savings schemes, PEAs, stock market orders, SCPIs, etc.) and drawing lessons from these, for professionals and private individuals alike.

AMF mediation: a free service for resolving disputes amicably

AMF mediation is a free public service that promotes the amicable resolution of financial disputes. All consumers have the right to free recourse to a consumer mediator, as defined in Book VI, Title I of the Consumer Code.

The AMF Ombudsman may be called upon to adjudicate a dispute that falls within the AMF's jurisdiction, when the dispute involves a professional and their client, a legal entity (company, association, pension fund), who is not acting for professional purposes, but as an investor.

The texts also provide for the possibility of setting up agreements between the AMF Ombudsman and conventional mediators who are able to mediate financial disputes. When such an agreement has been signed, the client of an institution has the option to refer the matter to the institution's ombudsman or to the AMF Ombudsman, and this choice is irrevocable. If the complaint appears to be well-founded, the latter will recommend an amicable solution, in law and in equity, as efficiently as possible.

A recommendation by the ombudsman that is favourable to the retail investor and accepted by both parties takes the form of regularisation of the situation or compensation, in full or in part, for the loss incurred, without the professional being held liable in any way.

2025 mediation figures

3,010
mediation requests received

53%
fell within the AMF's remit

2,772
cases processed



3 questions to the AMF Ombudsman

How does mediation help to change practices? What are the trends? The AMF's new Ombudsman, Rémi Bouchez, answers our questions.

You were appointed Ombudsman with effect from 1 December 2025. Have any aspects of this role surprised you?

It is a fascinating job in which I am in touch with the specific and current concerns of savers and retail investors, on issues that fall under a number of major themes. Sometimes these issues are similar, but they are never exactly the same. The whole point of mediation – and the essence of its benefit – is to find a tailor-made solution for each case and to get the parties to accept it.

Marielle Cohen-Branche, who I took over from, warned me about this. The upshot is that the Ombudsman and their team are under great and constant pressure, because the number of pending mediation requests is constantly increasing, and each one requires specific work.

I am also struck by the possibility, which we do use, of sometimes

taking a step aside from the strict application of rules and procedures, when the situation calls for this for compelling reasons of equity, and of recommending a derogatory solution taking account of particular circumstances. This aspect is very new to me.

How can mediation help professional practices to evolve?

I had also been told this, but now I have had the chance to experience it for myself. Each month, the 'Online Diary' recounts a case, anonymised, of course, from which both retail investors and professionals can draw general lessons. A number of major operators have already told me that, in addition to the published dossiers of the month and the developments that appear in the Ombudsman's annual report, the Ombudsman's opinions, which they receive in each dossier that concerns them, are studied by their legal and compliance departments

to identify possible improvements to their systems. This has already happened in the case of several opinions I have issued.

What recent trends are you seeing?

In 2025, the number of requests rose sharply to over 3,000, up 37% on 2024, and this trend does not seem to be slowing down in 2026. It is not easy to explain why this is so, but I note that other ombudsmen, such as the insurance ombudsman, are facing similar trends.

The topics we encounter the most are: equity savings plan transfers, which has risen sharply; employee savings schemes, which is also on the rise with many questions linked to early release options; and, in keeping with 2024, SCPIs and real estate crowdfunding due to the difficulties encountered by the real estate market since 2023. However, we also deal with many other subjects, such as the execution of stock market orders.

Promoting more sustainable finance

At a time when European standards on sustainable finance call for simplification, the AMF's approach has been clear: streamline the framework while keeping its fundamental objectives firmly in view. The AMF has also drawn lessons from listed companies' governance disclosures and has fostered good practices in sustainable finance among asset management companies and investment services providers.

Simplifying the framework and providing pragmatic support to market participants

Towards a simplified and proportionate regulatory framework

2025 was an important milestone in the roll-out of the European framework for sustainable finance, against a backdrop of legislative changes designed to simplify corporate reporting obligations and make them more proportionate, notably through the Omnibus package. This package encompasses a revision of the European Directive on Corporate Sustainability Reporting (CSRD) and a revision of the reporting obligations attached to the European Taxonomy.

The AMF has long advocated for these adjustments and, in 2025 responded to the various European public consultations on the subject. It welcomes the swift progress achieved at European level. In particular, EFRAG's publication, in December 2025,

of draft simplified reporting standards (ESRS standards), which reduce reporting requirements while preserving essential disclosures, notably those relating to the climate transition, represents an important step forward.

In October 2025, the AMF published a study on listed companies' first sustainability statements, identifying good practices as well as the difficulties encountered. The study focused chiefly on the general disclosures required in sustainability statements, together with climate- and workforce-related disclosures.

This work showed that companies have made significant progression sustainability reporting under the first application of the CSRD, particularly as regards the materiality assessment and the comparability of climate-related disclosures. The AMF also identified a



number of areas for improvement, notably in relation to companies' value-chain assessments, the quantification of the financial resources allocated to transition efforts, and the lack of harmonised reporting.

This study has enabled the AMF actively contribute to discussions, at both French and European level, on the revision of the European Sustainability Reporting Standards (ESRS). These discussions were conducted within its consultative commissions, allowing the AMF to put forward its positions as part of the work carried out by the *Autorité des Normes Comptables* (the French Accounting Standards Authority, ANC).

The AMF's approach to supporting issuers

In this context of transition, the AMF maintained throughout 2025 a pragmatic and educational supervisory stance, with a view to supporting

issuers in their first year of publishing their sustainability statements. More than 200 reports were published by the French issuers concerned. In the exercise of its supervisory role, the AMF carried out targeted analyses on 20% of these initial reports over this period, in line with the target set for 2025, and issued initial recommendations to issuers.

In 2026, the AMF intends to continue this supportive strategy for the 2025 sustainability statements, adapting its supervisory work to forthcoming developments in the CSRD framework and the European Taxonomy. It will concentrate its expectations on key sustainability reporting issues, and will pay particular attention to climate-transition disclosures, so as to reconcile the requirement of transparency, the proportionality of the obligations and the usefulness of the information for investors.

Study on the first CSRD sustainability statements



AMF response to the European Commission consultation on Taxonomy reporting



AMF response to the EFRAG consultation on ESRS reporting standards



Drawing lessons from listed companies' governance disclosures

On 12 December 2025, the AMF published its annual report on corporate governance and executive compensation in listed companies, based on the information disclosed by companies having their registered office in France and listed on a regulated market. Each year, this report identifies recent developments in governance and compensation, draws conclusions from issuers' disclosures and presents the lessons learned from the information made public by proxy advisors. On the basis of these findings, the AMF may issue new recommendations to improve the quality of issuers' disclosures, identify good and poor practices, and send recommendations or suggestions for improving the applicable framework, to the organisations representing issuers, which are responsible for drafting corporate governance codes.

Focus on the transparency of the succession process for key corporate officers

The 2025 edition of this report includes a thematic study on the transparency of the succession process for key corporate officers, a crucial stage in the life of a company. The study recalls that the preparation and implementation of the succession plan constitutes key information for the market, as it can strengthen stakeholder confidence in a company's ability to anticipate the future of its governance and to address unforeseen situations. It stresses the importance, for issuers, of reconciling the fundamental requirement to inform the market with the confidentiality

needed to protect the interests of the firms or persons concerned. The AMF analysed the information provided to the market on the preparation and implementation of succession plans by 53 French listed companies (35 from the CAC 40 and 18 from the SBF 120). Between 1 July 2024 and 30 June 2025, 47% of them disclosed information on the implementation of their succession process for at least one of their key executives. The study highlights both good and poor practices:

- Drawing up executive succession plans is one of the key tasks of a company's board of directors or supervisory board, and one of the main functions of the appointments committee. In four companies in the sample, the board has entrusted this task or its implementation to an *ad hoc* committee. In such cases, the AMF recommends that companies disclose information about the composition of this committee and the proportion of independent members. It invites the organisations representing issuers to consider the nature of the information to be provided about the committee's composition;
- where the chair of the board is not independent, the AMF recommends that companies consider, as one mean of ensuring checks and balances, whether it is appropriate to involve the lead director or an independent director in preparing and reviewing the succession plans. One good practice identified by the AMF is holding of at least one board or committee meeting per

year without the executive directors present to discuss the preparation, review and, where applicable, implementation of the succession plan;

- The AMF notes that practices vary widely as regards the reference period used to set the maximum severance pay. It therefore calls on the AFEP, the MEDEF and the *Haut Comité de Gouvernement d'Entreprise* (HCGE) to clarify the scope of the recommendation in the AFEP-MEDEF Code that *'severance pay should not exceed, where applicable, two years' compensation (annual fixed and variable)'*, in order to specify the information to be provided about the reference period used by issuers;
- As in 2024, the AMF notes that some companies use 'hybrid' components of compensation combining features of exceptional pay, signing bonuses and long-term variable pay;
- In addition, the AMF notes that three issuers in the sample do not comply with the requirements of the AFEP-MEDEF Code on executive severance pay or signing bonuses.

Beyond this study, the AMF notes further progress in terms of transparency surrounding the application of corporate governance rules, executive compensation, board evaluation and the holding of meetings without executives present.

Board member independence remains a point of attention

Board member independence nevertheless remains a point of attention: once again this year, a number of companies disregarded one or more of the independence criteria set out in the AFEP-MEDEF Code without providing a detailed explanation, particularly in the case of intra-group mandates or mandates exceeding twelve years. The AMF calls on the AFEP, the MEDEF and the HCGE to clarify the scope of the independence criterion in relation to the length of office, and to specify whether the board should also take into account the years during which the corporate officer attended board meetings and took part in deliberations as a non-voting member or as the permanent representative of a legal entity serving as board member, for example.

AMF reminder on changes to performance conditions

For a company, triggering a clause that adjusts performance criteria alters the calculation of certain components of compensation provided for in the compensation policy approved by shareholders, and may call into question the demanding nature of those conditions. The AMF points out that, under the AFEP-MEDEF Code, companies must disclose any changes to performance criteria and ensure that *'the interests of shareholders and beneficiaries remain aligned'*, since the activation of such clauses most often results in a relaxation of the criteria.

Encouraging good practices through lessons learned from SPOT inspection

In 2025, the AMF finalised two summaries of the outcomes of SPOT (Operational and Thematic Supervision of Practices) inspections conducted in 2024 in the area of sustainable finance, one in the asset management sector and the other in the field of advice provided by investment services providers.

Voting and shareholder engagement policies at asset management companies: satisfactory practices, but room for improvement

The AMF conducted a SPOT inspection at five institutions to examine their voting and shareholder engagement procedures, the information made available to investors and the associated internal controls.

As part of their engagement policy, the asset management companies had made collaborative or individual commitments. In the latter case, this may involve establishing a regular proactive dialogue with these companies and/or setting progress targets specific to each of them. The AMF identified a good practice consisting of establishing a transparent escalation process tailored to the management strategy, with clear trigger rules. This system allows the fund to adapt its actions if the company in which it has invested is reluctant to change its practices, or if the expected progress is deemed insufficient.

In implementing their voting policy, four asset management companies inspected use service providers to analyse the resolutions submitted to the general meetings of the listed companies in their portfolios, to provide personalised voting recommendations or to exercise proxy



To give professionals a better understanding of the regulations and their obligations, in December 2025, we organised a webinar to share the lessons learned from the SPOT campaign on voting and shareholder engagement policies. Around 230 representatives of market centre participants took part in the webinar. 97% of respondents to the satisfaction questionnaire sent out after the webinar had found it useful.

BRUNO BURESI
Inspections Department

voting rights. In this respect, the AMF has noted the highly concentrated nature of the voting consultancy sector, which can make it difficult for asset management companies to select a service provided by means of a competitive procedure. Voting decisions must be consistent with the voting policy. This entails monitoring and control by the asset management companies. Among the good practices, the AMF identified keeping a record of votes cast against the applicable voting policy or the recommendations issued by the service provider, as well as justifying significant and recurring differences.

In terms of investor information, each of the asset management companies on the panel published its voting and engagement policy on its website, as well as an annual report on the subject. Their communication on voting is largely statistical. The AMF encourages asset management companies to provide more detailed information about certain resolutions to illustrate the implementation of the engagement policy for the three pillars that are environment, social and governance. Among the poor practices identified, the AMF highlights the failure to include in the engagement report an analysis of the impact of the votes and the outcomes of the engagement process on the strategy or governance of the companies in portfolios.



The webinar organised in December provided an opportunity to present the findings of a standard inspection carried out at a custodian account keeper on the processing of voting instructions at general meetings.

SANDRINE DUPONT
Inspections Department

The European Shareholder Rights Directive

Since the *loi de sécurité financière* (Financial Security Act) was passed in France in 2003, asset management companies have been required to draw up a voting policy and report on their practices with regard to the exercise of the voting rights attached to the securities held by the vehicles managed. Adopted in May 2017, the European Shareholder Rights Directive, the

aim of which was to promote long-term shareholder engagement, has strengthened these requirements. In addition to the voting policy, asset management companies are required to draw up a shareholder engagement policy for the funds and mandates they manage, and to report to investors on its implementation.

The AMF notes that the asset management companies have largely adopted satisfactory practices. However, there are still areas for improvement, particularly with regard to the subject matter of the resolutions voted on at general meetings, which do not sufficiently cover environmental and social issues.

Consideration of sustainability preferences in the advice provided by investment services providers: the pace of compliance is picking up

The SPOT inspection analyses covered the various stages of the investment advice service, from the know-your-customer questionnaire to the suitability statement setting out that the advice provided is appropriate to the investor's profile.

In order to offer their clients financial instruments with 'sustainable' characteristics, distributors are heavily dependent

on these being designed by producers (particularly asset management companies). This may seem like a simple premise, but some of the institutions on the panel offered few, or even no, instruments that met certain sustainability criteria.

The five institutions on the panel all showed willingness to respond to the desires expressed by their clients. This commitment had resulted in the gradual expansion of their range of 'sustainable' financial instruments. This impetus had sometimes come up against various regulatory and technical constraints. The challenge for distributors was to develop a holistic approach to integrating sustainability preferences, without undermining the fragile foundations of the 'traditional' suitability system. The inspection team checked that the panellists had complied with their commitments to their clients.

In the course of this review, the AMF noted major shortcomings in compliance with the applicable requirements. Nevertheless, good practices were also identified. Since 2024, progress has been seen in terms of bringing systems into compliance; this was reaffirmed after the inspection mission took place.

Standard inspections are also used in the fight against greenwashing

Following on from the work carried out by the AMF on sustainable funds which led to the publication of an educational study in 2024, in 2025, the AMF sent a follow-up letter to an asset management company that had been inspected and that was asserting inaccurate and misleading information in its marketing materials. It was asked to adopt more appropriate communication and to document the eligibility of the investments made, in line with the investment objective and strategy defined in the prospectus of the funds in question.

What does considering client sustainability preferences mean?

Since 2 August 2022, Delegated Regulation (EU) 2017/565 has required any client sustainability preferences to be taken into account in the investor journey. These preferences are determined in accordance with three principles:

- the proportion of the investment that the client wishes to see invested in activities considered to be environmentally sustainable under the European 'Taxonomy' classification;
- the proportion of the investment that the client wishes to see invested in 'sustainable investments' within the meaning of the European regulation on sustainability-related disclosures in the financial services sector (SFDR);
- the 'principal adverse impacts' stated by the client.

Supporting innovation

In 2025, the AMF continued to support innovation by providing the Paris financial centre with a framework adapted to emerging technologies, including artificial intelligence. It also assessed the first applications for authorisation under the Pilot Regime and assisted market participants in their transition to the new regulatory framework established by the Markets in Crypto-assets Regulation (MiCA).

Providing a rigorous and clear framework that protects and fosters experimentation in Europe

The AMF continues to work alongside its European counterparts

In 2025, the AMF continued its work to support the development of technological innovations in financial markets field, in particular those based on Distributed Ledger Technology (DLT) and crypto-assets, under the Pilot Regime⁽¹³⁾ and MiCA⁽¹⁴⁾ regulations.

The AMF has published concrete proposals to enhance the competitiveness of the European Pilot Regime together with its Italian counterpart, the CONSOB. These proposals aim to promote a proportionate framework for experimentation, allowing new models to emerge while still guaranteeing investor protection and market integrity.

In particular, the AMF stressed the need to relax certain conditions for accessing the Pilot Regime, to broaden the scope of eligible financial

instruments and to strengthen the link between traditional market infrastructures and DLT-based infrastructures. It also emphasised the importance of greater visibility throughout the duration and future development of the regime, in order to provide certainty for projects undertaken by market participants.

At the same time, as part of the discussion on changes to the MiCA Regulation, the AMF, together with its Italian (CONSOB) and Austrian (FMA) counterparts, supported adjustments aimed at making the European framework for crypto-assets more consistent and effective.

These proposals relate in particular to the supervision of market participants with a significant European dimension,

⁽¹³⁾ Regulation 2022/858 on a pilot regime for market infrastructures based on distributed ledger technology.

⁽¹⁴⁾ Regulation (EU) 2023/1114 on markets in crypto-assets.

Discussions held on smart contract certification

In 2025, the AMF and the ACPR published a [consultation report](#)* setting out the conclusions of the AMF-ACPR working group on the certification of blockchain code that is automatically executed on the basis of predefined criteria (smart contracts). Launched in January 2024, this group was tasked with examining the issue of smart contract certification, which was identified as a key issue by both authorities in their respective discussion papers on decentralised finance (DeFi) published in 2023.

The working group met throughout 2024 and brought together representatives from the DeFi ecosystem as well as, traditional finance, industry groups, academia, audit firms and public authorities. The work was divided into three phases. The first phase identified a number of standards for smart contract security, governance and compliance. The second identified the roles and methods applicable to the smart contract audit process, while the third highlighted three possible options for a smart contract certification framework: optional certification, mandatory certification, or mandatory certification subject to proportionality measures.

The responses to the public consultation on the report generally welcomed the approach and the quality of the work, which was seen to provide a structural basis for discussions on a framework for smart contracts in the context of DeFi. The contributors also supported the balanced approach proposed, addressing both risks and opportunities, while calling for certain aspects to be explored in greater depth, the diverse nature of blockchain ecosystems and standards, and issues relating to the scope and duration of any certification of smart contracts.

* Read the report: lap.fr/rapport-acpr-amf

** An alternative to traditional financial services, DeFi consists of providing financial services on crypto-assets, theoretically without recourse to traditional financial intermediaries, using technically decentralised blockchain protocols.

operational resilience and the simplification of the procedures for notifying white papers, with the aim of making them clearer and more secure for investors.

All this work illustrates the AMF's commitment to a vision of European regulation that supports innovation while preserving stability and confidence in the financial markets.

Adapting AMF doctrine in response to the crypto-asset boom

Against the backdrop of the entry into application of the Markets in Crypto-Assets Regulation (MiCA), and in light of growing investors' interest in crypto-assets, whether held directly or used as underlying assets of financial products, the AMF updated its doctrine to reflect the emergence of crypto-assets-linked structured products in Europe. Under the revised doctrine, crypto-assets meeting specified conditions are no longer regarded as unusual underlying assets for retail investors. As a result, they may be used as underlying assets for complex debt securities (Exchange-Traded Notes or ETNs), which may be marketed without a specific risk warning.

The doctrine sets out four cumulative conditions relating to: the quality and liquidity of the underlying crypto-assets; the absence of leverage or discretionary features in the product structure; exposure to crypto-assets either directly or through regulated entities, and the secure custody of the underlying assets by a MiCA-authorised crypto-asset service provider.

Complex debt securities linked to crypto-assets remain subject to the investor protection requirement under MiFID II, including those relating to target market identification and product suitability. The AMF nevertheless emphasises that these instruments remain complex products whose value may fluctuate significantly.

Regular exchanges with industry

In 2025, the AMF continued to regularly meet and discuss financial innovation with the industry.

Innovation Workshops

The AMF organised two sessions of its Innovation Workshops. This forum, created in 2024, brings together members of the AMF Board and Executive Committee, and external speakers from private and public institutions to present their points of view and lessons learned on a chosen topic. In 2025, the themes discussed were the opening of financial data (open finance), as well as cyber risks and the dependence of financial market participants on third-party IT service providers.

Fintech Forum

The AMF and the ACPR co-organised the 2025 edition of the Fintech Forum. This annual event brings together all the market participants in the innovative financial ecosystem to discuss regulatory developments and foster dialogue between professionals and the authorities. The roundtables addressed quantum computing and digital sovereignty. The workshops dealt with practical fintech issues, covering MiCA, anti-money laundering and countering the financing of terrorism, crowdfunding, DORA and payment services. Over 350 people attended the event.



An international conference dedicated to new technological frontiers



On 25 September 2025, the AMF organised an international conference in Paris on new technological frontiers and their implications for financial stability in partnership with the *Association Europe Finances Régulations* (AEFR).

This conference brought together leading speakers from academia, financial institutions, major tech companies and the AMF's regulatory counterparts.

The discussions examined the opportunities and challenges associated with the rapid growth of artificial intelligence in financial services. Emphasis was placed on the potential of these technologies to improve financial analysis, optimise portfolio management and strengthen risk

management capabilities through the use of big data.

A great deal of attention was paid to quantum computing and its potential implications for cybersecurity and operational resilience in the financial sector. While these technologies could eventually provide a significant boost to computing and data analysis capacity, they also pose significant challenges, particularly for the cryptographic systems on which today's financial infrastructures are based. In this context, the immediate preparation of the financial sector for these technological changes is a priority.

Through the richness of the discussions and the diversity of the backgrounds represented, this conference illustrated the AMF's desire to encourage an open and international dialogue on the technological transformations that are shaping the financial landscape. It also confirmed the importance of pursuing joint work together with public authorities, market participants and academia in order to anticipate current developments and adapt regulatory and supervisory frameworks to technological developments as necessary, with a pragmatic approach that supports for innovation.



Pilot Regime: examining the first applications for authorisation

On 13 October 2025, LISE SA was the first company in France to obtain authorisation under the Pilot Regime to operate a DLT trading and settlement system (SNR DLT), i.e. a platform that uses distributed ledger technology to combine trading and post-trading activities. The AMF examined this application jointly with the Banque de France and the ACPR, the authority competent to issue the authorisation. Alongside this application for authorisation, the relevant authorities also examined the company's application for authorisation as an investment firm, one of the statuses required to manage this type of DLT platform. LISE's authorisation as an investment firm covers unsecured investment services and the operation of multilateral trading facilities.

The LISE SNR DLT ('Lightning Stock Exchange') is the first unified market infrastructure in France that can issue, register, transfer and store 'tokenised' financial instruments, i.e. those registered in a distributed ledger (DLT). LISE presents itself as a new financing solution for SMEs and midcaps, offering them the possibility of issuing financial securities that will then be admitted and traded on its SNR DLT. Thanks to its technology, this DLT platform aims to reduce the costs associated with an IPO and maintaining a listing, and to enable investment in tokenised SME

securities via direct access to the platform and with instant settlement and delivery, 24/7. LISE uses a private blockchain, for which it is the sole key holder⁽¹⁵⁾. LISE only accepts shares registered in the DLT, however trading in securities is carried out via an order book outside the DLT in accordance with a principle of price/time priority. LISE then settles and delivers the tokenised shares instantly, in real time. To this end, as provided for in the Pilot Regime Regulation, LISE benefits from a specific waiver to the provisions of the CSDR Regulation in order to settle the cash part of the transaction in tokenised commercial bank currency using digital tokens representing client assets in euros. All these assets are held by LISE in a segregated account opened with a credit institution. As part of the exemptions from the MiFID II, MiFIR and CSDR requirements permitted by the Pilot Regime, LISE allows natural persons or legal entities to be directly admitted as members of the platform. ESMA and the Eurosystem were consulted on the exemptions, as well as on the DLT used by LISE, and issued two non-binding opinions with recommendations. The AMF, the Banque de France and the ACPR have set up a supervisory framework for the DLT platform.

The AMF is also continuing to examine other applications under the Pilot Regime.

(15) This constitutes administration of financial instruments in DLT in accordance with Article R.211-4 of the French Monetary and Financial Code.

AMF recognised by the INATBA for its innovative approach to regulating digital assets

In 2025, the AMF received an award from the International Association for Trusted Blockchain Applications (INATBA), an association created in 2019 by the European Commission with the aim of increasing the adoption of blockchain and distributed ledger technologies (DLT) among the general public. The INATBA praised the quality and innovative nature of the AMF's approach to regulating digital assets. This international accolade highlights the AMF's commitment to a balanced regulatory framework that reconciles investor protection and support for the development of innovation.

The INATBA specifically emphasised the AMF's comprehensive and proactive approach to supporting developments related to crypto-assets and decentralised finance. This approach is based on constant dialogue with market participants, forward-looking analysis of new uses and business models, and close coordination between the national framework and European regulatory developments.

This honour acknowledges the work carried out by the AMF on decentralised finance. The publication of a discussion paper in 2023, followed by a broad consultation in 2024, illustrates the AMF's determination to

anticipate the challenges posed by technological innovations while ensuring investor protection and the integrity of the financial markets.

This award is in keeping with the work undertaken by the AMF since the introduction of the French framework applicable to digital asset service providers, and subsequently with the entry into force of the Markets in Crypto-Assets Regulation (MiCA). It confirms the AMF's position as a leading authority in terms of supporting and supervising innovation in relation to digital assets, both in France and at European level.

MiCA: supporting market participants through the transitional period

2025 saw the operational roll-out of the framework introduced by the Markets in Crypto-Assets Regulation, which came into application on 30 December 2024. This regulation establishes a harmonised framework at European Union level applicable to the public offering and admission to trading of crypto-assets, as well as the provision of crypto-assets by asset service providers (CASPs).

Against this backdrop, the AMF has continued to provide support to the market participants affected by the transition from the previous national framework applicable under the Act of 22 May 2019 on business growth and transformation ('PACTE Act') to the MiCA regime.

In this respect, the AMF has:

- responded to inquiries from market participants in relation to the interpretation and implementation of the new regulatory requirements for obtaining CASP authorisation;
- continued its information and education initiatives, in particular by publishing dedicated content on its website (such as forms for applying for CASP authorisation or a press release about the end of the PACTE transitional period) and by taking part in events such as the Fintech Forum;

- contributed to European discussions aimed at promoting the consistent and convergent application of the regulation.

In addition, the AMF also continued its involvement in ESMA's work to finalise the MiCA implementing texts, develop MiCA related guidance, and ensure the convergence of authorisation and supervision procedures at European level.

Understanding the uses and identifying the risks associated with the use of artificial intelligence in the financial sector

In 2025, the AMF's work on innovation also focused on the challenges posed by the use of artificial intelligence (AI) in financial markets. Thus, the AMF took part in a number of international and European initiatives.

Internationally, the AMF contributed to the work carried out by the International Organization of Securities Commissions (IOSCO), which culminated, in March 2025, in the publication of a report on the uses of and risks posed by AI in global financial markets. Produced by IOSCO's Fintech Task Force, this report takes stock of the main applications of AI in the financial sector, such as algorithmic trading, robo-advising, data analysis and regulatory compliance. It highlights potential benefits in terms of efficiency and risk management, while identifying several major issues, including model governance, data quality, algorithmic biases, dependence on third-party providers, and interactions between humans and automated systems. The report highlights the diverse nature of

regulatory approaches and has been submitted for consultation.

At European level, in 2025, the AMF contributed to a survey conducted by ESMA aimed at obtaining a better understanding of how European financial market participants use AI, and at identifying the main trends, opportunities and challenges associated with these uses. The AMF published the results for French market participants in the form of a study report in February 2026. These results show a high level of adoption by the French market, particularly for internal uses delivering significant operational benefits. These uses also present risks in terms of governance, technological dependency and supervision.

Being an attractive, performing authority serving the public interest

To be a true source of trust, the AMF must pay close attention to the efficient use of its resources. In 2025, the AMF continued to adapt its organisation, modernise its tools and listen to its stakeholders so as to remain an authority that is held in high repute by regulated professionals and to enhance its attractiveness as an employer.

Continuing the transformation of the AMF

An authority attentive to the good use of its resources and skills

In 2025, the AMF continued to strengthen its procedures and internal organisation in order to improve efficiency, just as it had committed to do following the *Cour des Comptes*' report published in 2024.

It has reorganised several departments and improved the efficiency of various processes and operating methods. In particular, the AMF has introduced a new organisational structure for its administrative support staff, with the aim of pooling and optimising resources. It has set up a new risk management and internal control function, and strengthened its resources dedicated to cross-cutting legal functions in the areas of public procurement and employment law.

Its internal audit department has once again been certified by the *Institut Français de l'Audit Interne et du Contrôle Interne* (IFACI), attesting to the quality of its services and its compliance with professional standards in this area.

Finally, the AMF has appointed a new ethics officer, whose duties have been extended to include acting as a whistle-blowing officer for secularism, equality, sexual and gender-based violence, and discrimination, all of which are areas of concern for the AMF.

An authority committed to the roll-out of artificial intelligence

Today, AI is a major lever for transformation for financial supervisors. Faced with ever-increasing volumes of data and more complex markets, the



AMF has gradually integrated AI technologies into its processes to enhance the effectiveness of its oversight, supervision and retail investor protection remits, while reconciling innovation, security and confidence requirements.

ICY: giving structure to mass data processing capabilities

The AMF's technological modernisation was based on the 2016-2020 ICY (I see why) programme. This gave structure to advanced mass data processing and automation capabilities. This programme has strengthened the detection of market abuse through real-time alerts, the identification of atypical behaviour and the use of machine learning techniques to better target instances of insider dealing or market manipulation.

These tools have improved operational efficiency, notably by reducing the number of false positives and optimising the allocation of supervision resources.

ICData: introducing a culture of data use

Following on from ICY, the ICData programme (2021-2024) consolidated a truly cross-cutting data strategy. It has given shape to governance, facilitated centralised access to data and encouraged the emergence of a common culture that is essential to the deployment of AI across the institution. Operational departments are seeing significant time savings, improved quality of analysis, a reduction in manual tasks and improved risk coverage, particularly for voluminous market and asset management data.



At the AMF, nearly 330 users have used data visualisation tools, an increase of more than 10% compared with 2024



At the same time, the AMF has diversified its 'traditional' instances of AI use. In the field of retail investor protection, specialised tools effectively detect between 60 and 80 fraudulent websites a year, and automatically filter out the vast majority of spam, freeing up time for high value-added work. In terms of market oversight, automatic language processing techniques are combined with market data, enabling better alert prioritisation and reducing false positives by more than half. Asset management supervision has also taken advantage of automated tools that are capable of extracting and organising thousands of regulatory documents, improving comparability and the effectiveness of control, particularly in terms of sustain-able finance. In turn, our investigations staff are supported by eDiscovery tools that incorporate machine learning, image recognition and automated transcription.

Developing the everyday skills of our staff

In 2024, the AMF embarked on a structured process based on staff acculturation to generative AI, targeted experimentation and in-depth strategic thinking. Training courses and workshops were organised to help raise skill levels, while feasibility demonstrations explored document synthesis, thematic analysis and the use of conversational assistants. A study has identified the highest-potential use instances, while highlighting two essential prerequisites: modernising the innovation environment and organising document archives. In this context, the need for confidentiality and data sovereignty remains central.

AI is not replacing human expertise: it is becoming a support tool at the service of the AMF staff. Armed with these lessons, the AMF will finalise and roll out its strategic AI roadmap, drawing on internal feedback, and national and European trends.

Being an attractive and responsible authority

New quality of life and working condition (QLWC) measures

In 2025, an additional clause to the QLWC agreement was negotiated. It includes measures relating to workload management (monitoring and management of employee workloads, regulation of mental workload, etc.), health and safety at work (combating digital fatigue and musculoskeletal disorders, etc.), cohesion and meaningfulness (highlighting teamwork), and parenthood (charter on reconciling work and family life planned for 2026).

Training: the AMF pays close attention to skill development

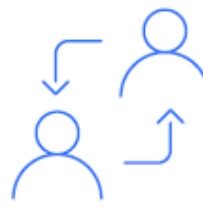
Professional training is one of the key tools available to the AMF to provide its staff with a dynamic career path.

In 2025, it enhanced its traditional range of 'core business' courses – in particular MiCA and DORA – and placed particular emphasis on the use of artificial intelligence. Employees were offered training courses and workshops dedicated to artificial intelligence. Over 250 staff members took part in these sessions covering AI awareness, generative AI, fundamentals, writing prompts and advanced techniques.





10,000
hours of training



55
internal transfers
during the year (46%)



97/100
2025 workplace
equality index

In addition, in order to meet its objective of ensuring that the information provided to investors about financial products is clear and understandable, training has been offered to employees on 'plain language', focusing on what does and does not make information about financial products clear and understandable.

Strengthening the AMF's work to promote inclusion and equal opportunities

As part of its disability policy, in 2025, the AMF stepped up its work to promote inclusion and equal opportunities.

On 20 November 2025, its staff took part in the national 'DuoDay' initiative for the first time.

It also continued its collaboration with the *Tremplin Handicap* association by promoting the *BOOST'heure* coaching programme. This programme is designed to support talented people through dedicated workshops (CV preparation, inter-view training, etc.). Eight employees signed up to this programme for 2025-2026.

The AMF has also improved its communication with employees by redesigning the HR section of its internal digital platform. Communication initiatives have also been carried out to provide better information about the recognition of disabled worker status

(RQTH) declaration and what it is used for. In addition, in order to consolidate the AMF's commitment in this area, awareness raising has been carried out with all the AMF senior managers.

Finally, externally, the AMF has added an explicit message about its disability policy to all its job advertisements and has raised awareness among its service providers involved in recruitment in order to fully assert its inclusive approach.

95%

This is the percentage of the AMF website that complies with the French web accessibility framework (RGAA). This very good score places it among the most accessible websites. In practical terms, this means that the AMF website can be very widely used by people with disabilities. It complies with virtually all the digital accessibility rules.

Measuring our environmental footprint

Measuring our environmental footprint at regular intervals constitutes an essential starting point for reducing greenhouse gas (GHG) emissions. The AMF first measured its footprint in 2020 (for 2019 and 2020) and repeated this exercise in 2023.

In 2025, the AMF carried out an interim measurement to supplement the compulsory assessment published every three years. This annual monitoring, carried out internally, enables it to adjust the actions implemented, if necessary, without waiting for the mandatory deadline.

The AMF's greenhouse gas emissions reduction trajectory continues

On the basis of the first carbon assessment carried out in 2020, in October 2021, the AMF Board approved two targets for reducing the AMF's carbon footprint from its 2019 level (the benchmark year, prior to the pandemic): a 15% reduction by 2025 and a 27.5% reduction by 2030.

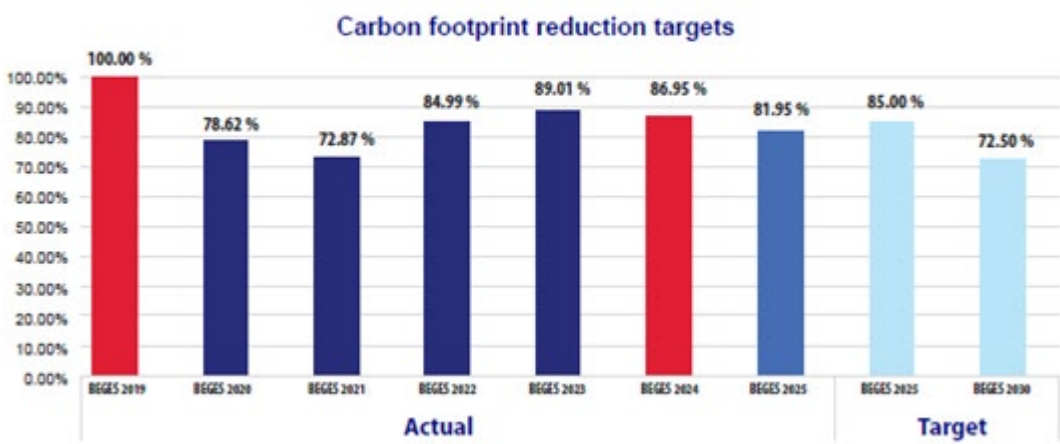
In 2025 the AMF exceeded its interim target with an 18% reduction in its total GHG emissions compared with 2019.

The AMF's greenhouse gas emissions in 2025

As for every year since 2020, the measurement is as exhaustive as possible and covers all three 'scopes':

- scope 1, which covers direct GHG emissions linked to the company's activities;
- scope 2, which covers indirect GHG emissions linked to the company's energy consumption (e.g. electricity consumption in the AMF's offices);
- scope 3, which covers indirect GHG emissions linked to all of the company's activities, taking into account upstream and downstream emissions (e.g. employee travel as part of their work at the AMF).

GRAPH 1
Change in the reduction in the AMF's carbon footprint



In total, in 2025, the AMF was responsible for the emission of 2,446 tonnes of CO₂ equivalent (tCO₂e) compared with 2,596 tCO₂e in 2024 and 2,986 tCO₂e in 2019, 95% of these emissions fall under scope 3.

For scopes 1 and 2, emissions have fallen by 28% compared with 2019, the base-line year. This reduction was primarily in energy consumption as a result of projects carried out over the period (renovation of one of the buildings, reduction in the total surface area of the offices by 20% and optimisation of the technical management of the buildings).

The main source of scope 3 emissions is the purchase of goods and services, as in previous years. This item represents 1,042 tCO₂e, or 43% of total emissions, down 15% on 2024.

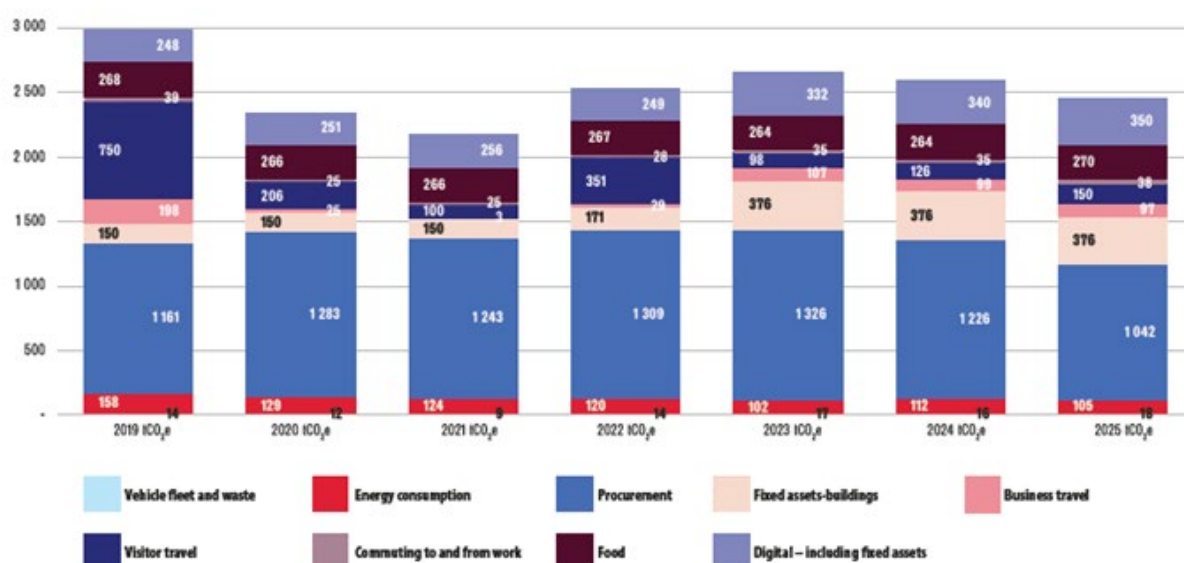
Emissions associated with fixed asset buildings account for the second largest source of emissions. The breakdown figures show the positive and lasting

effect of the reduction in office space (-30 tCO₂e per year) despite the significant impact, until 2030, of the renovation works (+256 tCO₂e per year during the eight years of their amortisation).

Other emission lines remained stable compared to 2024. These are emissions linked to:

- digital (14%), which covers both emissions linked to IT equipment and those for the use of data;
- travel (12%), which covers travel by visitors and employees in the course of their work, as well as commuting;
- lunch catering for AMF employees and contractors (11%).

GRAPH 2
Change in AMF greenhouse gas emissions (in tCO₂e)



Evaluating performance and stakeholder satisfaction

Monitoring strategic objectives

In order to measure its work and meet the requirements of transparency towards its stakeholders, the AMF's strategic orientations, called 'Impact 2027' have been evaluated since their introduction in 2023. Each strategic area has its own objectives, which are in turn linked to indicators, with annual targets for each year until 2027.

The system that monitors the AMF's strategic orientations reports satisfactory results for 2025. 78% of targets were achieved. Nine of the eleven indicators show results that exceed the targets. The two targets that were not met concerned the indicators for the change in the regulatory framework for crypto-asset service providers (MiCA Regulation) and the average investigation completion time.

Details of the indicators are set out in this report (see p. 150) and are published in the *Jaune Budgétaire* appended to the Finance Bill.

Availability, experience and expertise of AMF staff praised by regulated professionals

In 2025, the AMF again administered its perception survey among the market participants it regulates and supervises to gather their views on its work and staff. More than 400 market participants responded to the study, which was sent out in July 2025. The AMF received an overall score of 4.1 out of 5, a slight improvement on the previous year (4.07).

This year, open-ended questions on areas for improving the relationship between the AMF and its stakeholders were included to help the AMF reflect on its relationship with the financial community. The findings of this study

show that the AMF is well-known and appreciated. The AMF is committed to working on all the findings of this study and has already translated them into a specific action priority for 2026. They will also feed into a multi-year internal transformation project to improve and modernise the AMF's relationship with its various audiences, including regulated professionals and retail investors.

The availability, experience and knowledge of AMF staff were praised by most respondents, especially those who have been regulated by the AMF for a long time. The quality of the AMF's support measures (webinars, guides, doctrine, etc.) and the average approval times received a high overall level of satisfaction ratings.

Responses on the predictability of procedures and the AMF's availability to newly regulated market participants (crypto-asset service providers (CASPs) and crowdfunding service providers (CSPs)) were more nuanced. An analysis of these responses reveals high expectations in terms of dialogues with the AMF and technical support, as well as the need for better tools.

4.1/5
Overall score
given to the AMF
and its staff by
stakeholders in
2025 (4.07 in 2024)

A photograph of a man with a beard and balding head, wearing a grey suit jacket over a white shirt. He is sitting at a desk, looking down at a laptop screen. His hands are on the keyboard. In the foreground, the back of a person's head and shoulders are visible, out of focus. The background is a bright, modern office interior with large windows and white columns. The overall lighting is warm and professional.

The AMF's work



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— **Financial operations and disclosures by listed companies**..... p. 88

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The markets

In 2025, the AMF continued its efforts to regulate market infrastructures, working in close collaboration with the other French and European authorities concerned. It has also relied on a broad range of data to carry out its market oversight activities and has strengthened its ability to detect market anomalies by developing new alerts.

Regulation of market infrastructures

Euronext regulated markets

The AMF sits on the Euronext College of Regulators, alongside the Belgian, Dutch, Irish, Italian, Norwegian and Portuguese market authorities, to ensure coordinated supervision of regulated markets.

The College of Regulators monitored the implementation of the remediation plan defined by Euronext in response to the College's recommendations following its analysis of the effectiveness and independence of Euronext's compliance function.

In coordination with the College of Regulators, the AMF examined and approved the connection of the SIX x-clear clearing house to the equity and Exchange-Traded Fund (ETF) markets managed by Euronext Paris.

Euronext's takeover bid for ATHEX, which was launched on 30 July 2025, did not give rise to any objections from the College of Regulators, however the future integration of the ATHEX Group's activities may require separate analyses at a later date.

The College of Regulators has entered into discussions with Euronext concerning the group's plan to designate the Italian central securities depository, Euronext Securities Milan, as the default settlement centre for euro-denominated transactions traded on the platforms operated by Euronext Amsterdam, Euronext Brussels and Euronext Paris, and cleared by the Euronext Clearing clearing house.

The College of Regulators closely monitored the progress of Euronext's programme to bring the group into compliance with the requirements set out in Regulation (EU) 2022/2554 on the digital operational resilience of the financial sector (DORA), including the implementation of major incident reporting and the annual disclosure of the third-party service providers register.

The College of Regulators also examined and approved several projects concerning the functioning of regulated markets, including those operated by Euronext Paris, and the corresponding amendments to the harmonised rules of these markets. One of the aims of these projects was to increase liquidity on the equity markets. The launch of Auction Volume Discovery (AVD) orders is designed to strengthen Euronext's offering for opening and closing auctions on equity markets. These orders will enable members, and ultimately investors, to transmit non-visible orders throughout the day, without affecting the opening or closing price formation process, before these are matched with residual buy and sell orders at the very end of the session. The College of Regulators also approved the introduction of 'passive' orders, designed to make the liquidity pool more attractive without pre-trade transparency. Finally, the College of Regulators approved a change to the definition of a retail order. This no longer refers to the notion of a retail client, but is now linked to the notion of a natural person.

Multilateral trading facilities (MTFs) and organised trading facilities (OTFs)

Aquis Exchange Europe

Aquis xchange Europe, which is now part of the SIX Group, has submitted proposals to the AMF to amend the operating rules of its MTF, Aquis Exchange Europe MTF, so as to broaden the type of orders admitted to the Aquis Matching Pool segment, without pre-trade transparency. Other changes have been approved to allow Near Touch Peg orders on the Auction on Demand (AoD) auction segment. These orders allow members to submit orders indexed to the best bid/offer price, adjusted by an increment that is defined for each order. The AMF has approved these changes.

Griffin Markets Europe

Together with the *Autorité de Contrôle Prudentiel et de Résolution* (the French Prudential Supervisory and Resolution Authority, ACPR), the AMF examined a request from the manager of the French OTF Griffin Markets Europe to extend the scope of its business to include other financial instruments, namely derivatives with guarantees of origin as their underlying assets. These financial products, which are dedicated to renewable energies, fall into the category referred to in section C. 10 of Annex I to Directive 2014/65 EU. As part of this extension of authorisation, the AMF also approved changes to the OTF's operating rules. These changes primarily related to updating the list of financial instruments offered for trading on the OTF and the list of alternative trading venues for cleared transactions arranged by Griffin Markets Europe.

MTS France

The AMF has approved amendments to the operating rules of the MTS France MTF. These amendments have harmonised the wording of certain articles of these rules with those of the MTS Cash Domestic Market MTF rules applicable to the domestic interbank markets operated by MTS SpA¹⁶. As part of these changes, the rules relating to the provision of data to *Agence France Trésor* (AFT) have also been extended to all participants, and no longer only to those with French Treasury primary dealer status.

⁽¹⁶⁾ MTS France SAS is 100% owned by MTS SpA, which joined the Euronext Group in 2021 when it acquired Borsa Italiana.

SIGMA X Europe MTF

The AMF has approved amendments to the operating rules of the Sigma X Europe MTF, managed by Goldman Sachs Paris Inc. et Cie, mainly to take account of the regulatory change that came into force on 29 September 2025 concerning the revision of the volume cap mechanism, which introduced a new Single Volume Cap for pre-trade transparency exemptions. Clarifications have also been made as regards orders without pre-stabilisation (PS Skip), which give members the possibility of not taking advantage of the pre-auction price stabilisation control.

NowCM

The NowCM MTF announced that it would cease trading as of 30 September 2025. The authorisation of the platform manager, NowCM France, was withdrawn on 24 October 2025.

DealerBox MTF (DBX)

On 16 December 2024, the AMF approved DealerBox Technologies' programme of activities in relation to its application for authorisation as a multilateral trading facility. The purpose of this entity, which was approved by the ACPR in January 2025, is to trade interest rate swaps aimed at hedging the interest rate risk associated with the open positions in the portfolios of the platform's member investment banks. In addition, DealerBox Technologies provides its clients with software to analyse swap portfolios and suggest transactions to mitigate the interest rate risk associated with these positions.

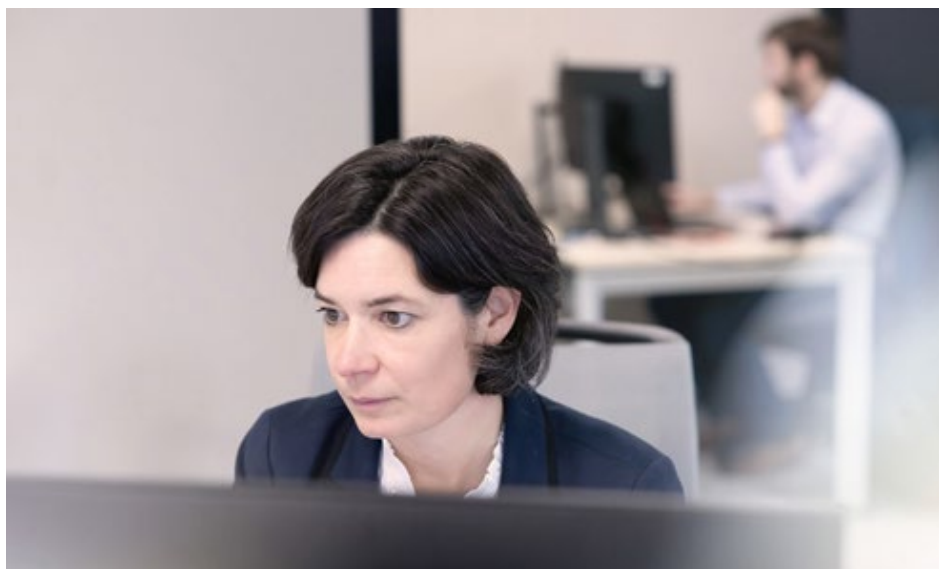
Clearing houses

LCH SA clearing house

LCH SA's clearing house is supervised by the AMF, in coordination with the ACPR and the Banque de France. In 2021, the French authorities approved the Sponsored Clearing model, allowing insurance companies and pension funds to become direct clearing members of LCH SA's RepoClear segment, the clearing service for repurchase agreements on government debt denominated in euros, with the assistance of an agent. In 2025, the French authorities authorised a new model, known as Guaranteed Sponsored Clearing, for a new category of members – alternative investment funds (AIFs) that use leverage. Their financial obligations (i.e. initial margins and contributions to the default fund) are executed in their name and on their account by a member agent.

The AMF has also, in conjunction with the ACPR and the Banque de France:

- approved changes to the risk model for the Repoclear and CDSClear segments;
- authorised the clearing of repo products with a flexible maturity date;
- approved various amendments to the clearing house's operating rules, in particular to take account of Regulation (EU) 2021/23 on a framework for the recovery and resolution of central counterparties, the conditions for membership of RepoClear, the procedures for outsourcing certain functions by clearing members, and the calculation of the clearing house's equity capital taken into account in default management (Skin in the Game);



- monitored the end of the clearing house's cash equities clearing business;
- authorised new members from third countries, in particular the United Kingdom, Canada, the US and Guernsey;
- prepared and submitted the annual report on the clearing house's activity and compliance to the EMIR College under Article 21 EMIR;
- reviewed the clearing house's recovery and resolution plans.

Throughout the year, the AMF, the ACPR and the Banque de France continued to monitor LCH SA's operational resilience. The French authorities have also begun work on monitoring the programme to completely overhaul the technical architecture underpinning LCH SA's critical systems.

In November 2025, a member default simulation exercise was conducted by LCH SA and coordinated by ESMA. The AMF also contributed to the negotiations on the technical standards for a new version of the EMIR Regulation in relation to authorisation and validation deadlines.

Finally, LCH SA's EMIR College and the Global College (bringing together third-country authorities) met in July 2025. A further meeting is scheduled for May 2026, in line with the new EMIR III timetable.

These forums enable member authorities to hold discussions about the work and supervision of the clearing house.

Following the signature in November 2024 of a framework agreement relating to the recognition by the Bank of England of LCH SA, under Article 25 of the UK EMIR Regulation which came into force on 1 December 2022, so that the latter could continue to offer its services in the UK, the French authorities have held regular exchange meetings with the Bank of England.

Supervisory colleges for central counterparties

Pursuant to the EMIR Regulation, the AMF sits on the EMIR colleges of several European central counterparties: ATHEXClear, BME Clearing, CBOE Clear Europe, CCP.A, Eurex Clearing, Euronext Clearing, European Commodity Clearing, KDPW CCP and OMIClear. The organisation of these colleges has been adapted to take account of the new EMIR III provisions. ESMA now co-chairs the colleges with the national authorities. In 2025, the EMIR colleges gave their opinions on a number of activity extensions, changes to risk models and changes in shareholding, as well as on the annual reports drawn up by the national authorities under Article 21 of EMIR.

The AMF also sits on the Global College of the UK central counterparties ICE Clear Europe, LCH Ltd and LME Clear.

The European central counterparties and their competent national authorities are continuing to work on improving the recovery and resolution plans of central counterparties under the European Regulation (EU) 2021/23 on the recovery and resolution of central counterparties. The AMF also participates in the resolution colleges of European clearing houses when it is a member of their EMIR colleges.

Some third country authorities have set up Crisis Management Groups (CMGs) in conjunction with the resolution colleges to carry out resolution work for these houses. The AMF is a member of the CMGs of CME, ICE Clear Europe, LCH Ltd, OCC and SIX x-Clear.

Finally, the AMF has sat on two committees set up by ESMA to supervise and regulate central counterparties: the CCP Supervisory Committee and the CCP Policy Committee.

Central securities depositories

The AMF sits on the supervisory college of the three ESES central securities depositories (CSDs)¹⁷ and on the supervisory college of all seven CSDs of the Euroclear Group¹⁸.

In accordance with the provisions of Regulation (EU) No 909/2014 on improving securities settlement in the European Union and on central securities depositories (CSDR), the staff of the AMF and the Banque de France have carried out the CSDR compliance review process for Euroclear France in coordination with the Belgian and Dutch authorities for the Euroclear Belgium and Euroclear Nederland CSDs. In accordance with Article 22 1) of the CSDR, as amended by Regulation (EU) No 2023/2845, the competent authorities of the ESES CSDs have also determined that the review and evaluation exercise will henceforth be carried out every two years for the ESES CSDs.

Work to oversee operational resilience and compliance with the requirements of the DORA Regulation continued within the supervisory colleges of all the Group's CSDs, and in collaboration with the Banque de France for the necessary adaptations at Euroclear France.

Furthermore, pending the European Commission's adoption of the draft regulatory technical standards published by ESMA in February 2025 and their entry into application, the AMF has contributed to ESMA's work on setting up of colleges of regulators for CSDs that are of substantial importance for the functioning of the securities markets and investor protection in Europe. Subject to the aforementioned adoption by the European Commission, followed by the final version of the substantial importance indicators table drawn up by ESMA, the AMF will chair the Euroclear France college of regulators in coordination with the Banque de France, and will sit on the colleges of those CSDs that have significant activities in France¹⁹. The AMF may also sit, on a voluntary basis, on the colleges of the CSDs that do business in France (even if not significant) or that have established one of their group companies in France.

Finally, in terms of registered instrument messages (BRNs) for essentially registered securities (VENs), the AMF continued to monitor the system implemented by Euroclear France to track the volume of these messages that were rejected or not issued, as well as the participants concerned, particularly during the general meeting period.

(17) The College of Regulators of the ESES CSDs (Euroclear France, Euroclear Nederland and Euroclear Belgium) is comprised, in addition to the AMF and the Banque de France, of the competent Belgian and Dutch authorities.

(18) The College of Regulators of the CSDs of the Euroclear Group (Euroclear France, Euroclear Belgium, Euroclear Nederland, Euroclear Bank, Euroclear UK & International, Euroclear Sweden and Euroclear Finland) is comprised, in addition to the AMF and the Banque de France, of the competent Belgian, Dutch, British, Swedish and Finnish authorities.

(19) According to the preliminary version of the substantial importance indicators table drawn up by ESMA for CSD activity in 2024, two CSDs have been identified as being of substantial importance in France.

Market supervision

In 2025, the AMF received and integrated nearly 190 billion lines of data. Enhancements to the tools developed to exploit this data have enabled our staff to make better use of it and have strengthened the AMF's detection capabilities.

Diversity of the data used

The data analysed is primarily taken from the transaction reports transmitted daily by financial intermediaries via the direct transaction reporting (DTR) system, by other regulators, and the order and transaction data from French trading platforms. This data is supplemented by the information collected from the clearing house, the central securities depository and various public data providers, as well as from trade repositories for derivatives (EMIR Regulation) and securities financing operations (SFTR Regulation). The cooperation agreement signed with the Financial Conduct Authority (the AMF's UK counterpart), enabling the systematic retrieval of data on transactions in French securities executed in the UK, contributes to improving the efficiency and speed of the AMF's supervision work.

The AMF also uses the warnings submitted to it, including suspicious transaction reports from investment services providers. Thus, in 2025, it received 1,539 suspicious transaction reports, down 12% on 2024, but offset by an improvement in the quality of the reports. The AMF has continued its strategy of supplementing its punitive action with alternatives to investigation procedures in certain cases

of suspected market abuse. For the staff in charge of market supervision, this translated into 34 targeted actions carried out over the year: warning letters with reminders of the regulations, requests for information or interviews with suspected offenders, as well as 11 cases for which it was proposed that an investigation be opened.

Strengthening detection capabilities

The AMF continued to improve its detection capabilities by developing new alerts. It also monitored the project to introduce European supervision of markets in crypto-assets in the context of the MiCA Regulation coming into application (see p. 70).

As part of an initiative funded by the European Commission, ESMA ran an evaluation of market abuse detection algorithms based on artificial intelligence. This exercise, which was carried out with volunteer national competent authorities, including the AMF, tested the relevance of this approach. ESMA may launch additional work to refine the algorithms and provide the authorities that so wish with these tools.

Financial operations and disclosures by listed companies

In a context reflecting a cautious market environment, and despite the new framework provided by the Listing Act, the number of operations approved by the AMF declined in 2025

(20) Reuters, 'European shares set to close 2025 near record high levels', 31 December 2025.

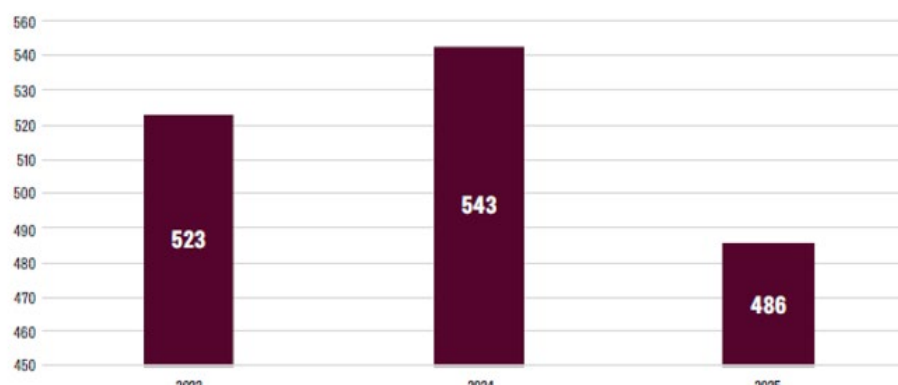
(21) 2025 Markets and Risk Outlook, AMR, 1 July 2025: 1ap.fr/cartographie-AMF.

(22) Banque de France Financial Stability Report, 19 December 2024: 1ap.fr/rapport-stabilite.

The CAC 40 rose by around 10.4% after having fallen by 2.2% in 2024. Despite this annual performance, it still trailed a number of other European indices, which posted stronger gains²⁰.

The French equity and bond markets were shaped by macroeconomic and geopolitical factors²¹, including domestic and international political uncertainties, as well as by sector dynamics (notably in luxury goods and industry)²², which weighed on investor appetite.

GRAPH 3
Number of approvals issued by the AMF
(bond + equity prospectuses + public offerings)



Financial operations

Initial public offerings

In 2025, IPO activity in France came to a virtual standstill, both on the regulated market and on Euronext Growth. The European context was like wise marked by weak IPO activity, even though the amounts raised worldwide increased. In Europe, the number of IPOs fell, with 101 completed (compared with 109 in 2024), raising a total of €16.1 billion (€16.9 billion in 2024 – Bloomberg, January 2026), a trend that contrasts with developments in China and the US, where IPOs increased significantly. In France, this situation reflects investor caution and market conditions.

The AMF approved prospectuses for admission to listing on a regulated market and/or the offer of securities to the public for in excess of €8 million, after verifying the clarity, completeness and consistency of the information presented.

In 2025, the AMF approved one IPO prospectus for the Euronext Growth market.

On the French market, five companies were admitted to listing in 2025, illustrating a lower level of activity than in previous years. On Euronext Paris (regulated market), one company was listed in 2025 (Younited Financial). Four companies were admitted to Euronext Growth (MTF) (Rebirth, Kaleon, Energy Solar Tech and SEMCO Technologies). Two companies, listed respectively on Euronext Paris and Euronext Growth, stood out in terms of the amounts raised: following its merger with Iris Financial SPAC, Younited Financial received a capital injection of around €153 million on its flotation on the Euronext Amsterdam and Euronext

Paris regulated markets⁽²³⁾, while SEMCO Technologies raised around €45 million on Euronext Growth in an operation oversubscribed by 5.6 times, with total demand of €226 million⁽²⁴⁾. These operations raised significant amounts for the companies concerned, concentrated on a limited number of operations.

(23) Euronext, press release dated 12 January 2025: 1ap.fr/euronext-younited.

(24) Euronext, press release dated 4 July 2025: 1ap.fr/euronext-semco.

The AMF Marie-Josèphe-Vanel Prize was awarded to a thesis on the rights of minority shareholders

In 2025, the AMF launched the AMF Marie-Josèphe-Vanel Thesis Prize, which will be awarded every two years. The prize, worth €5,000, recognizes an outstanding doctoral thesis in law on financial regulation topics of relevance to the AMF.

The prize is named in tribute to one of the AMF's former deputy secretaries general, whose commitment and contribution to the development of takeover law throughout her career, which began at the *Société des Bourses Françaises*, has had a lasting impact on the Paris financial centre.

This prize was open to authors of a doctoral thesis in law defended in 2023 or 2024. The AMF Board has awarded the 2025 Marie-Josèphe-Vanel Prize to Vincent Ramonéda, for his 2023 doctoral thesis on 'Minority shareholders and capital operations in listed companies' in 2023.

Through this award, the AMF recognised a high-quality academic paper that provides a pragmatic, detailed and innovative approach to securities regulation and the protection of minority shareholders in financial operations, and which provides a comparative law perspective on this issue.



Find out more about the
2025 Marie-Josèphe-Vanel Prize

In 2025, the AMF continued its efforts to facilitate companies' access to public markets, as the attractiveness of the French stock market remains a strategic priority. To this end, the AMF adopted a number of measures to facilitate IPOs (see p. 30).

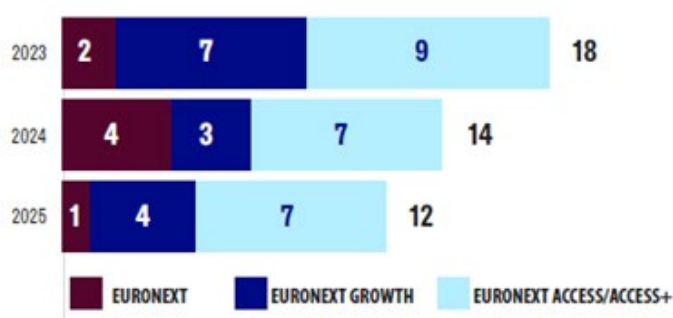
As at 31 December 2025, IPOs on Euronext and Euronext Growth posted contrasting performances. On Euronext, Younited Financial was trading 26% below its IPO price, while on Euronext Growth, Kaleon, Energy Solar Tech and Rebirth were trading around equilibrium, at respectively -5%, +3.46% and +1%, the latter being

characterised by very limited liquidity. SEMCO Technologies stood out with a 46% rise in its share price, the only truly positive performance of the panel, and also the only IPO to have had an AMF-approved prospectus.

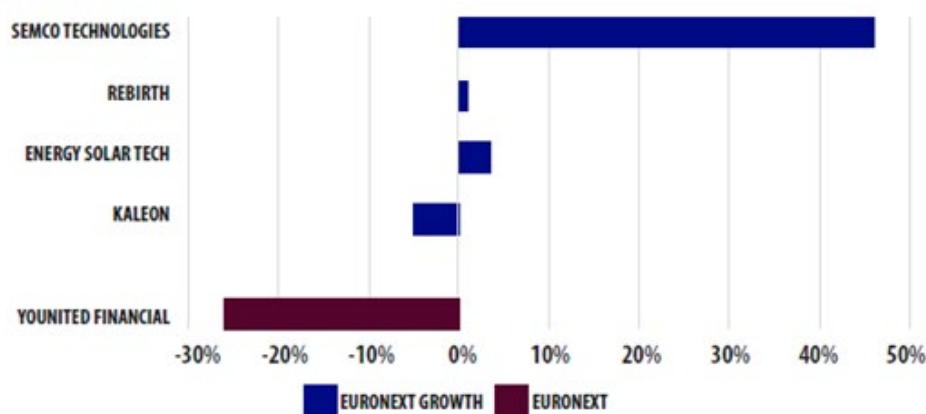
The outlook for post-IPO valuations remains highly dependent on the market conditions and listed companies' sector profile.

The recently adopted legislative and regulatory measures are designed to facilitate companies' access to public markets and to support IPOs in the future.

GRAPH 4
Change in the number of initial public offerings (excluding transfers)



GRAPH 5
Price performance as at 31 December 2025 of 2025 IPOs on Euronext and Euronext Growth



Delistings are up and transfers between compartments decline

In 2025, the number of delistings rose by 10%, reaching 61 companies. Combined with the low level of IPO activity, this resulted in a 5% decline in the total number of companies listed on the regulated market, Euronext Growth and Euronext Access compared with 2024, representing a net decrease of 39 listed companies. On the regulated market, the number of companies delisted fell slightly (-1 delisting in 2025 compared with 2024). The reasons for delisting from the regulated market are set out in Table1.

The number of transfers from the regulated market to Euronext Growth increased to seven in 2025, compared with three in 2024, although it remained below the levels recorded in 2022 and 2023 (14 and 10 transfers respectively).

These transfers reflect an ongoing trend of market rationalisation, as Euronext Growth's structure and requirements, particularly in terms of regulatory constraints and associated costs, are better suited to the needs of certain companies while continuing to provide access to the capital markets.

GRAPH 6
Change in the number of delistings

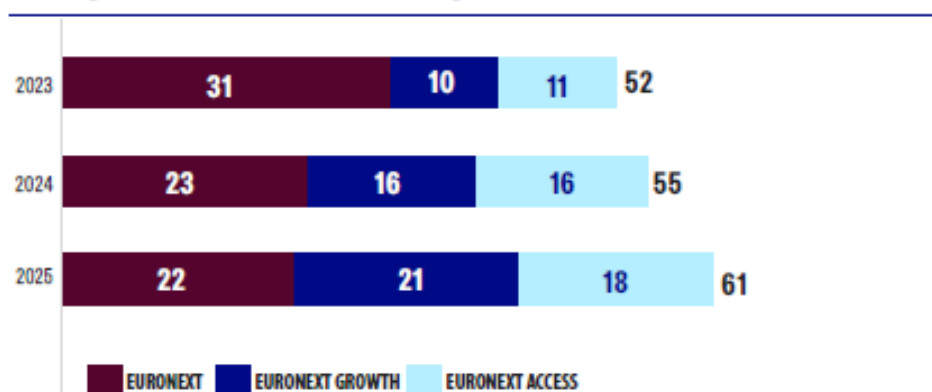


TABLE 1
Reasons for delistings from Euronext in 2025 by compartment

Compartment A	5
Delisting at the company's initiative	1
Mandatory delisting after public cash offer	3
Merger	1
Compartment B	7
Mandatory delisting after public cash offer	4
Transfer to Euronext Growth	3
Compartment C	10
Liquidation proceedings	5
Mandatory delisting after public cash offer	1
Transfer to Euronext Growth	4
Total	22

TABLE 2
Reason for delisting from Euronext Growth in 2025

Liquidation proceedings	8
Non-publication of financial information	3
Merger	1
Mandatory delisting after public cash offer	9
Total	21

TABLE 3
Reason for delisting from Euronext Access in 2025

Liquidation proceedings	4
Non-publication of financial information	4
Delisting at the company's initiative	3
Mandatory delisting after public cash offer	3
Sales facility	1
Transfer to Euronext Growth	3
Total	18

TABLE 4
Change in the number of companies listed on the regulated market,
Euronext Growth and Euronext Access

	2024	IPOs*	Delistings*	Transfers between compartments (internal movements between compartments)**	2025
Euronext	360	1	22	0	339
of which Compartment A	141	0	5	-4	137
of which Compartment B	113	1	7	-16	97
of which Compartment C	106	0	10	-1	105
Euronext Growth	265	14	21	0	258
Euronext Access	153	7	18	0	142
Total	778	22	61	0	739

Source: Euronext monthly statistics (data as at 31 December 2025), January 2026.

* Including transfers between markets.

** 'Transfers between compartments' refers to changes between compartments A, B and C within the regulated market, in accordance with Euronext mechanisms.

Secondary equity offerings: a sharp fall in the number of operations subject to a prospectus

Prospectus approvals for secondary equity offerings of companies listed on the regulated market fell sharply in 2025, falling from 23 approved prospectuses to just two in 2025. In 2025, secondary equity offerings requiring an AMF-approved prospectus amounted to €0.9 billion (including €0.7 billion for the capital increase with preferential subscription rights for Eutelsat Communications, see box on next page), down 67% €2.7 billion in 2024.

This marked contraction in the number and volume of approved prospectuses reflects the impact of the new regulatory framework introduced by the Listing Act, which entered into force on 4 December 2024.

The Listing Act introduced new exemptions from the prospectus requirement, provided that issuers publish and file with the AMF a simplified document. The content of this document is set out in Annex IX to the Prospectus Regulation and summarises the key characteristics of both the issuer and the proposed transaction. Since the Listing Act entered into force, the AMF has received 18 Annex IX exemption documents²⁵, including 14 relating to issuers listed on the regulated market. Taken together, the two approved prospectuses and the 14 Annex IX

exemption documents filed in respect of the regulated market correspond to 16 secondary equity offerings in 2025, compared with 23 prospectus-based offerings in 2024, illustrating the shift from prospectus-based offerings towards transactions benefiting from the new Listing Act exemption.

The entry into force of the Listing Act and the associated national measures are intended to reduce the constraints on secondary equity offerings and make it easier for listed companies to raise capital, through the following changes:

- increase in the prospectus exemption threshold for private placements, in line with the new provisions of the Listing Act;
- greater flexibility for boards of directors to determine the terms of capital increases without preemptive subscription rights open to all shareholders, including the issue price;
- increased powers delegated to the board of directors for capital increases reserved for specified investors (by contribution in kind or reserved for named persons), with higher ceilings.

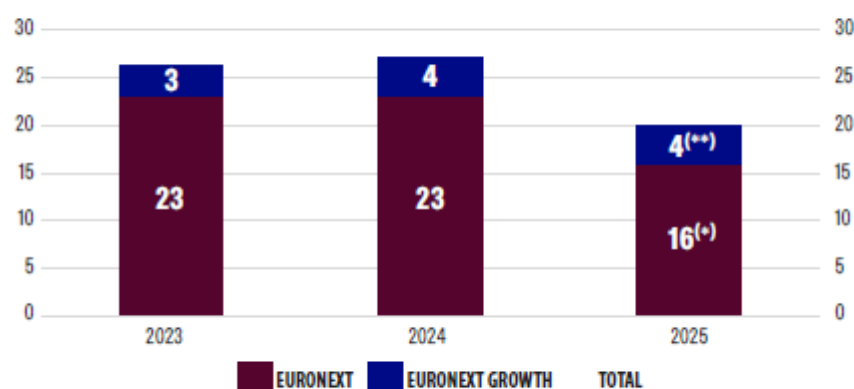
These new rules are expected to facilitate future equity offerings while reducing the number of transactions requiring the publication of a prospectus by providing issuers with greater flexibility in structuring their offerings.

(25) Q1 2025: 3 documents filed (Inventiva, Utigroup, Forsee Power). Q3 2025: 6 documents filed (Gensight [4], AB Science, Immobilière Dassault), 1 dossier (Median Technologies) for which Annex IX filing was refused. The structure of the operation did not allow it to make use of the 'Annex IX' exemption. The company subsequently adapted its operation to fall outside the scope of a public offering (neither Annex IX nor prospectus).

Q4 2025: 5 documents filed (Gensight, Hydrogen Refueling Solutions, Eutelsat, Afyren and CFI).

(26) Q1 2025: 3 documents filed (Adocia, DBV Technologies, Maat Pharma). Q2 2025:

GRAPH 7
Secondary issues of equity securities by listed companies



* Euronext 16: approval of two secondary issue prospectuses and 14 Annex IX filings.

** Euronext Growth: four Annex IX filings.

Eutelsat Communications: a major operation on the regulated market

In order to strengthen its financial flexibility and support the roll-out of its low-Earth orbit satellite business, Eutelsat Communications raised capital totalling €1.5 billion* between 21 November and 16 December 2025. This took the form of a reserved capital increase of around €0.8 billion subscribed by benchmark investors (the French State, Bharti Space Ltd, the UK Government, CMA CGM Part. and *Fonds Stratégique de Participations*) and a capital increase with pre-emptive subscription rights (droits

préférentiel de souscription) for around €0.7 billion.

In this context, and as part of the capital raising operation with preemptive subscription rights, the issuer sought approval from the AMF for a prospectus drawn up on a voluntary basis. The provisions introduced by the entry into force of the Listing Act would have allowed it to rely on an exemption**.

This operation illustrates the AMF's ability to support complex transactions on the French regulated market, by

helping to raise capital for companies' strategic needs, even in a cautious market environment, while ensuring investor protection and clarity of information.

* Eutelsat Press Release, 'Eutelsat Launches a €828 million Reserved Capital Increase, Representing the First Step in Its Comprehensive Financing Strategy', 18 November 2025: ap.fr/CP-eutelsat.

** Eutelsat Communications could have invoked the exemption provided for in Article 15) (b) bis of the Prospectus Regulation.

Debt securities issuance market

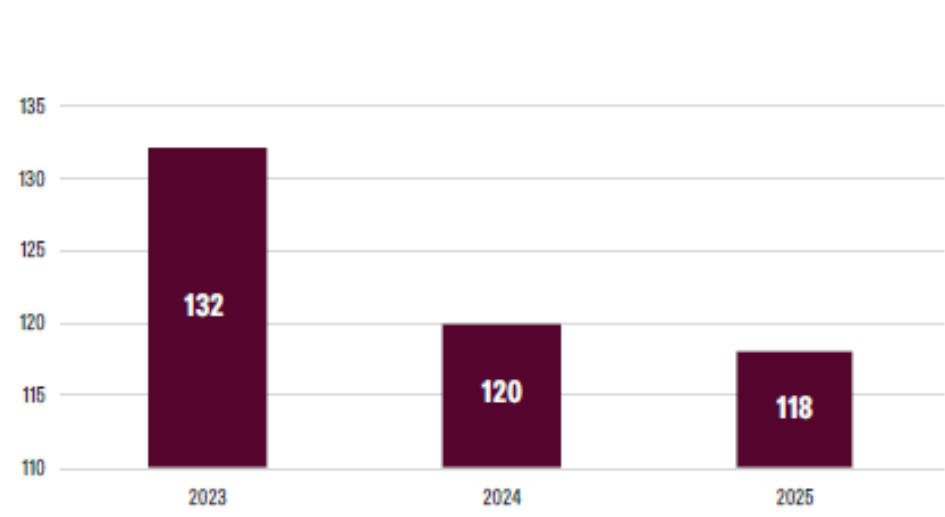
The debt securities issuance market remained stable in 2025, reflecting sustained activity throughout the year. The AMF approved 118 bond prospectuses, including 88 base prospectuses Euro Medium Term Note (EMTN) programmes. These programmes enable frequent issuers, typically companies with regular access to the capital markets, to raise funds efficiently under a pre-approved documentation framework.

The AMF also approved 253 prospectus supplements, up nearly 7% compared with 2024. This increase was driven primarily by heightened geopolitical uncertainty and the political situation in France, which prompted issuers to update their issuance programmes more frequently.

The year also marked the first issuances of European Green Bonds (EuGBs). In January, Île-de-France Mobilités completed the first European Green Bond issuance approved by the AMF (see box on the following page), followed by Covivio in June.

Reflecting both the attractiveness of the Paris financial centre and the AMF's ability to support issuers in developing innovative financing solutions, several companies, including Accor, Bureau Veritas, Edenred and In'li, launched new issuance programmes in 2025. In'li's programme also provides for the issuance of European Green Bonds. Debt issuances were also undertaken to finance strategic sectors, particularly defence, notably by BPCE and Bpifrance.

GRAPH 8
Debt security issuances
(in number of approvals, excluding supplements)



Île-de-France Mobilités EuGB issuance: approval of the first prospectus for the admission to trading of European green bond

In 2025, the AMF approved the prospectus of Île-de-France Mobilités, enabling the first-ever admission to trading of European green bonds on Euronext Paris. The bonds amounting to €1 billion, bear an annual interest rate of 3.80% and have a 20-year maturity. They benefit from the EU Green Bonds 'EuGB'* designation under the European Green Bond Standard.

The proceeds raised will be used to finance or refinance projects contributing to the development of low-carbon public transport in the Île-de-France region. In accordance with the requirements of this new standard, the activities financed or refinanced must be aligned with the European taxonomy.

This European Green Bond Standard requires issuers to provide enhanced transparency to investors, both upstream and downstream of the before and after the issuance. In addition to a European Green Bond factsheet describing the categories of projects financed, the allocation methodology and the expected environmental impact of the bonds issued, Île-de-France Mobilités will be required to publish an annual allocation report. This report will be subject to review by an external reviewer. The issuer will also publish an impact report at least one impact report during the lifetime of the securities.

This inaugural transaction highlights the attractiveness of the Paris financial centre in sustainable finance and the AMF's ability to support the diversification of bond financing, while ensuring a robust and harmonised framework at European level.

*Companies could issue EU Green Bonds from 21 December 2024. The aim is to create a European label. Companies wishing to do so must comply with the new Regulation (EU) 2023/2631 of the European Parliament and of the Council of 22 November 2023 on European Green Bonds and optional disclosures for bonds marketed as environmentally sustainable and for sustainability-linked bonds, European Regulation (EU GBR).

Takeover bids

Exemptions from the obligation to file a proposed public offer

As in previous years, the AMF received a number of requests from market participants seeking exemptions or waivers from the obligation to file a proposed public offer. The AMF may grant such an exemption where the person, entity or entities concerned demonstrated that one of the conditions set out in Article 234-9 of its General Regulation is met. It may also declare that no obligation to file a proposed public offer arises where the conditions provided for in its General Regulation are met.

In 2025, the AMF issued²⁶ :

- 17 decisions granting an exemption from the obligation to file a proposed public offer on the basis of Article 234-9 of the General Regulation;
- 4 decisions finding that no obligation to file a proposed public offer due to acting in concert or changes affecting an existing concert party, in accordance with Article 234-7 of the AMF General Regulation. Under this provision, decide that no public offer is required where a person or entity crosses the 30% threshold of capital or voting rights, or acts with “excess speed” when joining a concert party with one or more

shareholders that already hold, alone or acting in concert, either a majority of the company’s capital or voting rights (provided that such shareholders remain predominant), or between 30% and 50% of the company’s capital or voting rights (provided that they retain a higher percentage of capital or voting rights and do not themselves cross these thresholds at the same time).

The AMF also reviewed five transactions falling within the scope of Article 236-6 of its General Regulation, which requires the share-holder(s) controlling a listed company to inform the AMF:

- where they intend to submit significant amendments to the company's Articles of Incorporation for approval by an extraordinary general meeting;
- or where they decide in principle on the merger of this company with the company that controls it or another company controlled by it, on the disposal or contribution of all or a substantial part of the company’s assets, a change in the company’s business strategy, or the cancellation of any remuneration attached to equity securities for several financial years

⁽²⁷⁾ It should be noted that an exemption decision may be granted on several grounds.

TABLE 5
Exemptions and no requirement

Decision type	2023	2024	2025
Exemption decisions (234-9)	24	18	17
Decisions refusing to grant exemption applications	0	1	1
Non-requirement decisions (concert party evaluation Art. 234-7)	1	5	4
Art. 236-6 evaluations	2	2	5
Art. 236-1 evaluations	0	0	1

The AMF assesses the impact of the proposed transaction on the rights and interests of minority shareholders, and determines, on this basis, whether a withdrawal offer (*offre publique de retrait* - OPR) should be initiated. In 2025, the AMF required a withdrawal offer to be filed within six months in respect of one of these transactions²⁷ (see sidebar p. 100). It subsequently noted that this decision had lapsed following the ruling of the *Cour de Cassation* ruling of 28 November 2025²⁸.

Lastly, the AMF examined a referral submitted by several minority shareholders of Gaumont under Article 236-1 of the AMF General Regulation, following which it required the controlling shareholder to file a withdrawal offer within six months²⁹. Under this provision, when the majority shareholder holds at least 90% of the capital or voting rights of a listed company, any minority shareholder may request that the AMF require the majority shareholder to file a withdrawal offer. After carrying out the necessary checks, the AMF determines whether the request is admissible, taking into account the prevailing market conditions for the securities concerned and the information provided by the applicant. Where it declares the application admissible, the AMF notifies the majority shareholder, which must then file, within the timeframe set by the AMF, a proposed withdrawal offer capable of being declared compliant.

(28) D&I 225C1231, 18 July 2025

(29) D&I 225C2064, 4 December 2025.

(30) D&I 225C1744, 14 October 2025.

(31) Public cash offer, public withdrawal offer, share buyback offer.

Takeover bid decisions

In 2025, the AMF issued 19 compliance decisions relating to public offers (including public cash offers, withdrawal offers, withdrawal offers followed by squeeze-outs, etc.)³⁰, compared with an exceptional 37 decisions issued in 2024. These 19 decisions included:

- nine mandatory public offers, where the offeror was required to file a proposed public offer for the target company with the AMF (for example, after exceeding the 30% threshold of the target company's capital or voting rights where the target company is listed on Euronext Paris;
- seven withdrawal offers (OPRs) initiated by shareholders holding, alone or acting in concert, more than 90% of the target company's capital or voting rights, pursuant to Article 236-3 of the AMF General Regulation. Under this provision, a majority shareholder or shareholders acting in concert holding at least 90% of the capital or voting rights of a listed company may file a withdrawal offer with the AMF for the equity securities, voting rights or rights giving access to the capital not held by them.

Nine public offers followed by a squeeze-out, pursuant to Article 237-1 of the AMF General Regulation, confirming the continued prevalence of this type of transaction.

TABLE 6
Public offers initiated and squeeze-outs

	2023	2024	2025
Offers under the normal procedure	4	8	3
Offers under the simplified procedure	15	19	9
Withdrawal offers (OPRs)	2	7	7
Share buyback offers (OPRAs)	2	3	0
Total public offers	23	37	19
Total squeeze-outs	15	24	9

During the year, the AMF found three proposed public offers to be non-compliant (Société Industrielle et Financière de l'Artois³¹, Compagnie du Cambodge³² and Financière Moncey³³). In these three cases, the AMF considered that, in light of the information presented by the independent expert in their fairness opinion, it could not be established that the information made available to shareholders, particularly the information supporting the financial terms of the proposed offers, was complete, clear and consistent within the meaning of Article L. 621-8-1 of the Monetary and Financial Code. The AMF also considered the valuation of the target companies' shares did not fully reflect the value of their assets, as required by Article L. 433-4, II, 2 of the Monetary and Financial Code.

By ensuring the proper conduct public offers, the AMF's decisions fully reflects its mission to protect shareholders. They also contribute to the attractiveness and integrity of the Paris financial centre. In particular, in order to ensure that transactions are conducted in an orderly manner and in

the best interests of investors and the market, the AMF ensures, pursuant to its General Regulation³⁴, that all persons and entities involved in an offer comply with the principles of the free interplay of offers and counter-offers, equal treatment and information for those holder of securities concerned by the offer, market transparency and integrity, and fair and orderly market conduct.

In 2025, the AMF paid particular attention to providing detailed reasoning for its decisions, with a view to further enhancing the transparency of its decision-making process and improving predictability for market participants. It will continue to adopt an increasingly explanatory approach in relation to the decisions it issues.

(32) D&I 225C0739, 2 May 2025.

(33) D&I 225C0740, 2 May 2025

(34) D&I 225C0741, 2 May 2025

(35) Article 231-3 of the AMF GR.



Review of the decisions handed down on the obligation for Bolloré SE and Vincent Bolloré to make a public withdrawal offer for the Vivendi SE shares in the context of the demerger of the group in December 2024

AMF decision of 13 November 2024

On 13 November 2024, The AMF ruled on the application for exemption from the obligation to file a proposed takeover bid for the securities of Lagardère SA submitted by Louis Hachette Groupe. As this application formed part of the project to demerge Vivendi SE into four separate entities, the AMF first examined whether Article 236-6 of its General Regulations was likely to apply to Bolloré SE in the context of this project. This article provides that the controlling shareholder (within the meaning of Article L. 233-3 of the Commercial Code) of a company, which is planning an operation changing the substance of the company, must first apply to the AMF. The AMF may require this shareholder to make a withdrawal offer to the benefit of the other shareholders, if the operation is likely to harm their rights and interests. The AMF considered that Article 236-6 of its General Regulation did not apply, as Bolloré SE did not control Vivendi SE within the meaning of Article L. 233-3 of the Commercial Code. Furthermore, it granted the exemption requested by Louis Hachette Groupe.

Ruling of the Paris *Cour d'Appel* of 22 April 2025

The CIAM fund lodged an appeal for annulment with the Paris *Cour d'Appel*, which, in a ruling of 22 April 2025, annulled the AMF's decision as to the non-applicability of Article 236-6 of the AMF GR. It held that Vivendi SE was effectively controlled by Vincent Bolloré (who controls the Bolloré Group), believing that he effectively determined the decisions of the general meetings of Vivendi SE within the meaning of Article L. 233-3, I, 3° of the Commercial Code. In the same ruling, the Paris *Cour d'Appel* referred back to the AMF the task of examining whether the demerger of Vivendi SE met the other conditions set out in Article 236-6 of the AMF GR and of deciding whether a public withdrawal offer for Vivendi SE's shares should be made.

AMF decision of 18 July 2025

Acting on the ruling of 22 April 2025, the AMF considered, in a decision published on 18 July 2025, that Bolloré SE and Vincent Bolloré should file a withdrawal offer targeting the Vivendi SE equity securities. Furthermore, the AMF considered that, since the *Cour d'Appel* had ruled that Bolloré SE controlled Vivendi SE, the treasury shares held by Vivendi SE should be treated together with those held by Bolloré SE. Thus, Bolloré SE held more than 30% of the capital of Vivendi SE, which is a trigger for a mandatory bid. The AMF therefore found that Bolloré SE and Vincent Bolloré were required to file a draft takeover bid for the equity securities of Vivendi SE, for its scope on the date of the new decision of the AMF. The AMF also held that the filing of a proposed withdrawal offer for the Vivendi equity securities, on terms that would make it compliant, would also satisfy the need to file a proposed mandatory bid. Finally, the AMF indicated that the filing of the public withdrawal offer must take place within six months, i.e. no later than 18 January 2026, it being specified that the closing date of the withdrawal offer would not, in any event, be before the publication of the *Cour de Cassation* ruling on the appeal against the decision of the *Paris Cour d'Appel* of 22 April 2025.

***Cour de Cassation* ruling of 28 November 2025**

The *Cour de Cassation* quashed and set aside the decision of the *Paris Cour d'Appel* of 22 April 2025 holding that Vincent Bolloré controls Vivendi SE, within the meaning of Article L. 233-3, I, 3° of the Commercial Code, and that the AMF must examine whether the demerger of Vivendi SE meets the other conditions of Article 236-6 of the AMF RG. On these points, the *Cour de Cassation* referred the parties back to the *Paris Cour d'Appel* with a different composition.

AMF decision of 4 December 2025

Noting that the *Cour de Cassation* ruling of 28 November 2025 necessarily deprived its decision of 18 July 2025 of a legal basis, the AMF declared its decision of 18 July 2025 null and void at its meeting of 4 December 2025. Once the *Paris Cour d'Appel* has ruled on the case referred to it, the AMF will assess the consequences to be drawn, particularly with regard to the obligation for Vincent Bolloré and Bolloré SE to file a public withdrawal offer and a mandatory bid for Vivendi SE.

Public offer litigation

Électricité et Eaux de Madagascar (EEM) - Paris Cour d'Appel/ruling of 20 March 2025

In a ruling handed down on 20 March 2025, the Paris *Cour d'Appel* dismissed an application for annulment brought by a shareholder and the companies it controls (the applicants) against the AMF's decision refusing to grant an exemption from the obligation to file a public cash offer for the EEM shares that they sought on the basis of Article 234-9, 5° of the AMF GR³⁶. The applicants had argued that their having exceeded the 30% threshold of EEM's voting rights was purely passive and therefore beyond their control.

In reviewing the appeal, the Court examined the circumstances in which the 30% voting rights threshold had been crossed by the applicants in order to determine whether threshold crossing was passive or not.

The Court noted that the shareholder – who headed several companies, was a former executive of EEM, and had extensive experience in financial markets – could not have been unaware of EEM's articles of association governing double voting rights. It further observed that, by holding 29.997% of the voting rights from 13 June 2023, he could not have been unaware that he was exposing himself to crossing a threshold by accretion. The Court therefore held that the applicants' crossing of the 30% threshold of EEM's voting rights in August 2023 was 'not entirely involuntary' and was therefore 'objectively attributable to the applicants'. Accordingly, it concluded that the AMF had been correct in refusing to grant the requested exemption from the obligation to launch a mandatory tender offer.

(36) Under the terms of Article 234-9, 5° of the AMF GR, the AMF may grant an exemption from the requirement to file a public offer in the event of a 'reduction in the total number of equity securities or voting rights in the target company.'

(37) Under the terms of Article 234-9, 6° of the AMF GR, the AMF may grant an exemption from the requirement to file a public offer in the event of the 'holding of a majority of the company's voting rights by the applicant or by a third party, acting alone or in concert'.

Société de la Tour Eiffel (STE) - Paris Cour d'Appel/ruling of 16 September 2025

In a ruling handed down on 16 September 2025, the Paris *Cour d'Appel* dismissed the appeal seeking annulment brought against the AMF's decision granting SMABTP and SMAVie BTP an exemption from the requirement to file a public cash offer for the shares of STE, a real estate company with the status of a listed real estate investment company (SIIC), on the basis of Article 234-9, 6° of the AMF GR³⁶. The AMF had considered that SMAVie BTP and SMABTP were members of a concert party which, prior to STE's capital increase of January 2025, held the majority of STE's voting rights. The applicant companies, minority shareholders in STE, argued the concerted action had arisen only after the capital increase, which had resulted in SMABTP and SMAVie BTP exceeding the threshold triggering a mandatory tender offer.

This ruling provided an opportunity for the Court to clarify the conditions under which concerted action may be found to exist between the parent companies of a mutual insurance group despite the absence of any shareholding relationship between them, as well as on the presumption of concert set out in Article L. 233-10, I, 3° of the Commercial Code. The court noted that within the meaning of Article L. 233-10, II, 3° of the Commercial Code, action in concert is presumed to exist 'between companies controlled by the same person(s) or entity/ies', while noting that the provisions of Article L. 233-10, II, 3° of the Commercial Code do not refer to the concept of control defined in Article L. 233-3 of the same code.

In the absence of a reference to this article, the Court reasoned on the basis of the Insurance Code, under which a group of insurance firms forms 'a group of firms based on the establishment of strong and lasting financial relationships between them'. The Court therefore held that companies belonging to the same **mutual insurance group** are in a situation comparable to that of companies controlled by the same person or entity, within the meaning of Article L. 233-10, I, 3° of the Commercial Code. The Court therefore concluded that the presumption of acting in concert provided for by that provision was applicable to them. Consequently, the Court held that, although they had no capital ties, SMAVie BTP and SMABTP were presumed to be acting in concert.

Furthermore, the Court ruled that even if this presumption had not been applicable, the existence of concerted action could nevertheless have been established under Article L. 233-10(I) of the French Commercial Code³⁷. After recalling that 'the characterization of an action in concert is subject to meeting three cumulative conditions: the existence of an agreement; an agreement whose purpose is the acquisition, disposal or exercise of voting rights; an agreement whose purpose is either implementing a common policy with regard to the company or obtaining control of that company', the Court pointed out that 'neither the Transparency Directive, Article L. 233-10 of the Commercial Code, nor the related case law, require such an agreement to be in writing. In the absence of a written agreement, the existence of action in concert may be established on the basis of a body of serious, specific and concordant evidence'. In the case in question, the Court concerted action between SMABTP and SMAVie BTP was established on the basis of the body of evidence contained in the case file.

The Court therefore ruled that SMABTP and SMAVie BTP were members of a concert party which, prior to the said

capital increase, held the majority of STE's voting rights, control of which had not been altered by the completion of its capital increase in 2025, such that the AMF correctly granted them the exemption from the obligation to file a public offer that they had sought on the grounds of Article 234-9, 6° of its General Regulation.

Tarkett – Ruling of the Paris *Cour d'Appel* of 20 November 2025

In a ruling handed down on 20 November 2025, the Paris *Cour d'Appel* dismissed an application for annulment lodged against the AMF's decision declaring compliant the proposed public buy-out offer (OPR) initiated by Tarkett Participation for the shares of Tarkett at the increased price of €17 per share compliant.

The ruling provided the Court with an opportunity to rule more specifically on the application of the rules governing independent expert reviews in the context of a public offer under:

- with regard to the composition of the *ad hoc* committee, whose role is to propose an independent expert to the competent corporate body of the target company, the Court considered that, if the target company is unable to set up an *ad hoc* committee composed of at least three members and including a majority of independent members, pursuant to Article 261-1, III of the AMF GR, the appointment of the independent expert shall be made by application of Article 261-1-1, I of the AMF GR, which stipulates that the company must submit to the AMF the identity of the independent expert it intends to appoint, in accordance with the conditions set out in an AMF instruction. Therefore, recourse to the procedure provided for in Article 261-1-1, I of the AMF GR rules out the involvement of an *ad hoc* committee precisely on the grounds that the conditions for

(38) Under Article L. 233-10, I of the Commercial Code: 'the existence of an agreement to acquire or dispose of voting rights, to implement a common policy as regards the company or to obtain control of this company'.

its constitution have not been met, regardless of whether the committee pre-existed the company's request to appoint the appraiser;

- with regard to the AMF's right to oppose the appointment of the independent appraiser proposed by the target company, the Court ruled that there was no time limit for implementing the no-objection procedure provided for in Article 261-1-1 I of the AMF GR, with the result that the alleged lateness of recourse to that procedure cannot constitute a valid ground of challenge. It also noted that the AMF had received the information referred to in AMF Instruction DOC-2006-08, and that it was able to consider that, in the absence of reasonable grounds likely to call into question the expert's competence or guarantees of independence, there was no basis for opposing the appointment of the appraiser;
- with regard to the independence of the expert vis-à-vis the presenting banks making the public offer, the Court pointed out that the appointment of the independent expert was at the initiative not of the banks making the offer but of the competent body of the target company, while noting that, in the light of the independent fairness opinion issued by the independent expert, there was no evidence that the frequency with which the expert had acted alongside the same presenting banks during the preceding eighteen months was such as to impair the expert's independence;
- finally, with regard to the valuation methods used by the independent appraiser, the Court first pointed out that 'the AMF's control, and consequently that of the appeal judge, is limited to assessing the proposed public offer's compliance with the legislative and regulatory provisions set out in Articles L. 433-1 of the MFC and Title III of the AMF GR'. It then ruled that the proposed price indeed fulfilled the condition set out in Article 236-7 ⁽¹⁾ of the AMF GR, which refers to Article 233-3 of the AMF GR. Finally, the Court noted that the price mentioned in the proposed offering document must be determined 'based on generally accepted objective valuation criteria, the characteristics of the target company and the market for its securities', in accordance with the provisions of Article 231-18, 2° of the AMF GR. The Court ruled that the independent expert, whose role is to attest to the fairness of the price proposed by the offeror, is under no obligation to apply the same criteria as those they have used in previous reports on the same company or on other companies, or even to use the criteria usually used by the target company in its accounting and financial documents. Rather, they must take into account 'the valuation factors specific to the company under the circumstances at the time of the offer, referring to the criteria that appear to them to be the most appropriate on the date of their evaluation of the company concerned, and clearly explain the approach that led them to favour one method over another and justify their decision to exclude any valuation method or benchmark'. After examining the expert's report, the court concluded that the valuation criteria used by them were consistent and relevant.

Crypto-asset issuance and admission to trading

For offers to the public of crypto-assets and requests for admission to trading, the MiCA Regulation requires prior notification to the competent authority of a file containing, in particular, a white paper relating to the crypto-assets concerned.

At the end of the first full year of application of the Regulation, the AMF had received 14 notifications and 638 passports, and had issued 12 passports to other competent authorities. The passporting mechanism was therefore widely used by issuers that had notified crypto-assets white papers, with most notifications covering a large number of Member States. As a result, many offers to the public and requests for admission to trading of crypto-assets launched since the entry into application of MiCA have been cross-border operations covering several European jurisdictions.



Ensuring the objective presentation of investment recommendations: the specific case of financial media

Under the Market Abuse Regulation^a (MAR Regulation), the AMF ensures that investment recommendations^b are presented objectively and that the persons or entities producing or disseminating them disclose any conflicts of interest relating to the financial instruments concerned^c. A delegated regulation sets out the technical arrangements for the objective presentation of investment recommendations^d. By way of derogation, journalists producing investment recommendations are not subject to these technical arrangements, where they are subject to 'equivalent appropriate regulation [...], including equivalent appropriate self-regulation, provided that such regulation achieves similar effects as those technical arrangements'^e.

In France, certain publishers of press publications, radio or television services, online public communication services and press agencies are members of the Fideo association. As part of their information activities, they undertake, within a framework of "equivalent appropriate self-regulation", to comply with the principles set out in a code of conduct, to make those principles binding on their members and to inform the public of their adherence to the code^f. In such circumstances, members are not subject to the provisions of Delegated Regulation)

(EU) 2016/958, and the AMF does not have direct supervisory powers over compliance with the Fideo code of conduct^g. However, pursuant to Article L. 21-35 of the Monetary and Financial Code, 'each year, the association shall prepare a [...] report on its activities [which it] shall send to the Autorité des Marchés Financiers. The latter shall provide its observations and recommendations on the association's activities in its annual report'.

In 2025, the AMF met with Fideo management. The discussions provided a better understanding of the issues and challenges facing the profession. The AMF notes that the association has become more active in monitoring the implementation of its code of conduct. In the event of non-compliance with the framework for presenting investment recommendations, the association reserves the right to take exclusionary measures. Nevertheless, the decline in membership raises concerns regarding the association's financial sustainability and highlights the need for Fideo to establish initial contact with media organisations that are not currently members. This would help extend awareness of the requirements arising from MAR among new market participants, in coordination with the AMF.

Following requests from the AMF, Fideo carried out a study in 2024 and 2025 to assess the implementation of its code of conduct and, more generally, to verify that the self-regulatory framework in place achieves effects equivalent to those of Delegated Regulation (EU) 2016/958.. The study covered the print and digital media published by the Les Echos, Le Figaro, Le Revenu and Prisma Media groups. Taking into account the specific characteristics of the media sector and the editorial constraints inherent in journalistic activities, which require a degree of flexibility compared with requirements primarily designed for other economic operators, Fideo concluded that the level of compliance among its members, which have committed to self-regulation, was satisfactory.

The AMF nevertheless reiterates that identifying the authors of recommendations constitutes important information for investors^h, particularly with regard to preventing conflicts of interest.

Fideo is responsible for ensuring that readers can easily identify the author of each recommendation and cross-reference the information provided. Regarding the disclosure of particular interests or indications of conflicts of interest, journalists almost systematically inform readers of their membership of Fideo, generally in the masthead of the media containing the investment recommendation and, on their website, and, where applicable, of their membership of a group. The AMF nevertheless encourages Fideo to verify that its members disclose other material or non-material interests that could reasonably be expected to impair the objectivity of an investment recommendation, such as where persons or entities producing investment recommendations hold positions in the financial instruments concerned.

(a) Regulation (EU) No 596/2014 of the European Parliament and of the Council of 16 April 2014 on market abuse.

(b) Under Article 3¹⁾ of the MAR Regulation, 'investment recommendations means information recommending or suggesting an investment strategy, explicitly or implicitly, concerning one or several financial instruments or the issuers, including any opinion as to the present or future value or price of such instruments, intended for distribution channels or for the public'. Under the MAR Regulation, the AMF also ensures that

(c) Commission Delegated Regulation (EU) 2016/958 of 9 March 2016 sets out the technical arrangements for the objective presentation of investment recommendations or other information recommending or suggesting an investment strategy and the disclosure of particular interests or indications of conflicts of interest.

(d) Commission Delegated Regulation (EU) 2016/958 of 9 March 2016 supplementing Regulation (EU) No 596/2014 of the European Parliament and of the Council with regard to regulatory technical standards for the technical arrangements for objective presentation of investment recommendations or other information recommending or suggesting an investment strategy and for disclosure of particular interests or indications of conflicts of interest.

(e) MAR Regulation, Article 20 3).

(f) Fideo Code of Conduct, introductory section.

(g) *Conversely*, investment recommendations issued by other journalists remain subject to the provisions of Delegated Regulation (EU) 2016/958 and to direct regulation by the AMF.

(h) Delegated Regulation (EU) 2016/958 of the Commission of 9 July 2016, recital 3.

Savings providers and products

Asset management plays a central role in financing the French and European economies. The Paris financial centre has established itself as a major asset management centre in Europe, supported by a diversified ecosystem of participants, recognised expertise and constant innovation.

The AMF regulates financial services professionals and collective investment products. Thus, it authorises portfolio asset management companies (AMCs) and approves the programmes of activities of investment services providers other than AMCs. It approves the industry groups of financial investment advisors and crowd-funding service providers (CSPs). Finally, it authorises crypto-asset services providers under the MiCA Regulation, which has been applicable since 30 December 2024.

It authorises the creation and marketing of a wide range of collective investment products (undertakings for collective investment in transferable securities,

general-purpose investment funds, private equity funds, real estate collective investment undertakings, employee savings scheme funds, real estate investment companies, securitisation vehicles, etc.).

In an environment marked by rapid regulatory (ELTIF 2, AIFM 2, DORA, etc.) and technological changes (development of artificial intelligence, etc.), the sector has, on the whole, shown resilience and adaptability. Investor protection and financial stability remain at the heart of the AMF's supervisory priorities. It supports market participants through these major transformations while ensuring that the sector remains competitive.

Market participant monitoring

Number of asset management companies down slightly

2025 saw a reduction in the number of asset management companies compared to the previous financial year. The number of asset management companies stood at 671 as at 31 December 2025, compared with 695 one year earlier.

In 2025, 13 new asset management companies were authorised, compa-

red with 27 the previous year. This slowdown reflects market participants' cautious attitude in an uncertain geopolitical climate. At the same time, 37 investment management companies are in the process of having their authorisations withdrawn or have been definitively struck off,

a figure that is up on 2024 (32). 2025 was also marked by the ongoing financial difficulties encountered by asset management companies specialising in real estate, linked to the climate seen on the commercial real estate market, and by the continued trend towards concentration in the asset management sector. There have been a number of asset management company mergers, the most symbolic of which was BNP Paribas Asset Management and Axa Investment Managers at the end of the year.

Asset management company creation is predominated by private equity and infrastructure projects (36%), real estate (36%) and traditional asset management (28%). Finally, companies set up at the initiative of a financial or non-financial group are in

the majority (55%), while 'entrepreneurial' companies account for 45% of creations.

Withdrawals of authorisations, up on 2024, are linked to the factors mentioned to above. These include both mergers in particular and reorganisations (50%), as well as withdrawals for economic reasons (50%). The AMF's staff have noted that some asset management companies are once again experiencing financial difficulties this year due to sluggish activity, no doubt linked to persistently high interest rates and/or difficulties in raising funds. The sector is also continuing to consolidate, leading to some authorisations being withdrawn for technical reasons.

Supporting market participants in view of the entry into force of AIFM 2

The AIFM 2 Directive on alternative investment fund managers revises both the AIFM and UCITS directives in order to adapt the European asset management framework to market developments and strengthen investor protection. It comes into force on 16 April 2026 and must have been transposed into domestic law by that date. The changes introduced by the directive cover a wide range of issues, including the management of fund liquidity, requirements relating to senior managers, rules on the granting of loans and the scope for managers to carry out ancillary activities.

The AMF has played an active role in the work of the *Haut Comité Juridique de la Place Financière de Paris*. This body conducts public legal analyses in order to prepare for the transposition of European law. It is made up of lawyers, academics and other qualified figures. At the same time, a large number of discussions with industry groups and financial centre participants have enabled us to assess the repercussions on asset managers' business and to provide guidance as part of this preparation. In early December, the AMF organised a webinar for fund managers and their lawyers, with the support of the French Treasury. It was attended by more than 700 professionals. It provided an opportunity to highlight the main changes and to gather and address questions from the financial community on this subject.

The AMF has also set up a specific procedure to facilitate the introduction of two liquidity management tools for funds open to redemptions, as required by the Directive. This procedure relaxes the requirements in terms of the approvals needed and the methods for informing unitholders by allowing a single communication for all investors, for example. The AMF calls on market participants to educate investors so that they can understand how the liquidity management tools that have been put in place and that are now present at all the funds offered to them work and what they are used for.

Asset management company services guarantee scheme

The AMF helped finalise the regulatory work needed to bring the guarantee mechanism for asset management company services provided for in Articles L. 322-5 *et seq.* of the Monetary and Financial Code into operation. This mechanism, which is separate from the existing guarantee schemes (deposits, sureties and securities), entails the *Fonds de Garantie des Dépôts et de Résolution* (FGDR) compensating eligible investors when an asset management company, in the course of its business of providing investment services or keeping the nominative register of the UCIs it manages, is unable to return or repay to these investors their securities or cash covered by the guarantee. This includes any financial instruments or cash that might be held by the asset management company in breach of the law, registered units or shares in UCIs that the asset management company is unable to return for reasons of fraud or in the event of an anomaly in the register, and financial instruments managed by the investment management company under a management mandate that it is unable to return for reasons of fraud. Despite the low risk of this guarantee being called on, it has proved necessary to finalise the regulatory framework in order to comply with the AIFM and UCITS directives.

Thus, following the publication of the implementing order of 5 August 2022 (providing a number of clarifications on the terms and conditions for calling on this guarantee) and the updating in 2024 of several orders relating to the resources and governance of the FGDR, on 4 July 2025, the AMF issued a decision published in the Official Journal specifying the methods for calculating the contributions that member AMCs must pay each year to the FGDR, starting in 2025, in order to provide it with some of the financial resources needed to fulfil its missions. At the end of the year, the AMF notified each investment management company concerned of the amount of its contribution to the FGDR for 2025, after having calculated, in accordance with the aforementioned decision, the overall total of the contributions decided on by the FGDR a few months earlier and having distributing this among all eligible management companies. In October, the AMF also organised a webinar with the FGDR to present this new guarantee scheme and the related contribution system to AMCs.

In 2025, 48 authorisation extensions were granted (compared with 71 in 2024). The activities applied for are very varied: lifting of restrictions on professional clients, selection of unlisted financial instruments, selection of real estate assets, discretionary management, AIFM management and selection of complex financial instruments. Some less common authorisation extensions, such as the granting of loans, were also requested in 2025.

Investment services providers (ISPs): a stable population

ISP authorisation and supervision

ISPs are supervised by the AMF and the ACPR jointly. The ACPR is responsible for issuing their authorisation after receiving the AMF Board's assent to the institution's investment services programme of activity.

The AMF is also responsible for issuing professional licences to the investment services compliance officers, and chief compliance and internal control officers at obliged entities. In 2025, as part of this work, it continued its now traditional training and educational activities by organising themed training courses, presentations and workshops as part of the 'RCCI and RCSI Training Day' and webinars that align as closely as possible with the issues these professionals face. In view of their role as manufacturers and/ or distributors of financial instruments, ISPs are monitored throughout the year in the light of identified risks, as well as in terms of regulatory requirements and other constraints.

At the end of 2025, there were 269 authorised ISPs, including:

- 104 investment firms (IFs);
- 165 credit institutions (CIs).

These institutions were authorised to provide one or more investment services, i.e.:

- reception and transmission of orders in relation to one or more financial instruments;
- execution of orders on behalf of clients;
- dealing on own account;
- portfolio management on behalf of client;
- investment advice;
- underwriting;
- guaranteed placing;
- non-guaranteed placing;
- operation of a multilateral trading facility;
- operation of an organised trading facility.

ISPs lie at the heart of the provision of investment services, in terms of both client and transaction volumes. In addition to dedicated initiatives (see p. 122), their supervision requires a significant mobilisation of resources on a daily basis, in order to get to know them, support them and ensure the reliability of their monitoring data. This data is collected using the ROSA tool, which is now used for interactions such as the collection of annual questionnaires from investment services compliance officers, a key milestone in obtaining statistical data on this population.

Monitoring ISP reporting quality

Given the importance of high-quality reporting to ensure high-quality supervision and market integrity, in its 2025 supervisory priorities, the AMF announced that market participants would be made more accountable by the AMF sharing its findings with institutions. These findings resulted from more automated checks on data quality, increased attention by the AMF to the quality of post-trade transparency data in the context of the MiFIR review, and continued monitoring of the implementation of EMIR Refit reporting.

Against this backdrop, the AMF sent around ten entities comprehensive reports on the quality of their reporting and sent around one hundred automatic emails to a wider range of entities. These automated mailings are in addition to targeted requests to reporting entities to correct their reports and to raise awareness of the issue of the quality of reports. The AMF also stepped up its supervision of MiFIR reporting for equities traded on platforms. This entailed correcting significant volumes of reports and facilitated ESMA's change in the method for calculating trading caps under the transparency waiver (replacing data from investment firms with data provided by platforms, switch from the double volume cap to the single volume cap). In addition, the financial centre continued to implement EMIR Refit reporting and the AMF ensured that reporting entities continued to update their derivatives to the new format. This meant that the compliance rate rose from 95% at the beginning of 2025 to over 98% by the end of 2025, which nevertheless leaves room for improvement. Finally, although not initially planned, specific action has been taken on EMIR reporting by non-financial counterparties to ensure that incorrect declarations under EMIR do not result in these entities being subject to notification, clearing or active account obligations.

These initiatives to improve the quality of reporting data enable the AMF to produce internal analyses of the activities of reporting entities. They are also useful for carrying out studies or barometers of retail investors based on reliable data. For example, in June 2025, a study of trends in investor activity by age group and gender showed that the number of active male and female retail investors was rising, that they were getting younger, that the proportion of women was falling, and that fractional share trading was on the rise.

Slight fall in the number of market intermediaries

The number of market intermediaries has fallen slightly to 154 at the end of 2025 (157 at the end of 2024). In line with this trend, the number of professional licence holders fell very marginally (-0.5% compared with the previous year).

However, the Paris financial centre is proving to be very attractive, with a steady stream of applications for authorisation from new entities, whether they are setting up French establishments or result from the restructuring of French or foreign groups.

The AMF continued its supervisory convergence efforts by finalising the Common Supervisory Actions coordinated by ESMA on benchmark indices and algorithmic trading, and by sitting on Voluntary Supervisory Colleges to supervise groups established in several jurisdictions.

The AMF remains particularly vigilant in relation to innovative or complex solutions for retail investors, especially leveraged products, fractional shares and ETFs, and unlisted instruments. Attention was also paid to monitoring the issues raised by the administrative processing of equity savings plan (PEA) transfers.

In the wake of the entry into application of EMIR III, the AMF has taken steps to identify those market participants subject to the active account obligation³⁸ under Article 7a of the EMIR Regulation. In addition, the AMF took part in the work of the Joint Monitoring Mechanism provided for in Article 23b of the same Regulation, in order to assess the effectiveness and operational nature of the active account obligation.

The AMF monitored the quality of intermediaries' record-keeping and market-abuse detection systems, and launched awareness-raising campaigns to combat insider networks.

The AMF continued its cooperation work to supervise swap dealers and consolidated direct exchanges of information with the US authorities, including on the examinations conducted by the latter. Finally, the AMF examined applications for or updates to exemptions under the Short Selling Regulation from European ISPs that have a French Treasury primary dealer or market making business.

FIA: an ever growing population comprising very diverse establishments

As at 31 December 2025, 7,678 financial investment advisors (FIAs) were registered with ORIAS, compared with 7,023 a year earlier (+9.3%). This represents strong growth compared with the average annual growth of 5% seen since 2021.

According to the information reported by FIAs in 2025, based on 2024 data³⁹, sales, all activities combined, amounted to €4.4 billion, compared with €3.9 billion in 2023, an increase of 12%. Over the past five years, FIAs' business has varied in line with trends on the financial markets. The FIA business continues to account for an average of 21% of market participants' total sales, with €918 million coming from their FIA business specifically in 2024. The largest FIAs are stabilising and consolidating their market share, and FIA groupings appear to be on the increase. By way of example, the 50 largest FIAs alone account for 49% of FIA-related sales, a figure that has remained virtually unchanged over the past two years.

(39) Introduced by EMIR III, the obligation to have an 'active account' with a central counterparty in the European Union for clearing interest rate derivatives in euros and zloty, and short-term interest rate derivatives in euros, applies to financial and non-financial counterparties whose positions exceed the compulsory clearing thresholds

(40) See the news item 'Financial investment advisors: 2024 figures', published on 18 December 2025 on the AMF website: 1ap.fr/CIF-2024.

Retail investors continue to account for the majority of FIA clients (93%). The sector is highly diverse, with a majority of small participants with limited portfolios and a minority of participants with virtually all the clients.

Educational initiatives to meet FIA expectations

In 2025, the AMF organised two webinars to address priority issues raised by FIAs: conflicts of interest in financial investment advice (June 2025) and the limits of FIA status (December 2025). In addition to regulatory reminders, these webinars constitute an opportunity for the AMF to share concrete examples from inspection and supervisory work, and to analyse the latest sanctions imposed on FIAs by the AMF Enforcement Committee. These educational webinars are intended to be a permanent feature.

In addition, more targeted initiatives to raise FIAs' awareness of good practices in terms of communication (websites, marketing materials) are continuing. To this end, a letter has been issued reminding FIAs of their obligations in terms of communication that is clear, accurate and non-misleading, and in the interests of investors.

Special relationship between the AMF and FIA associations

The AMF works with FIA associations on a daily basis, particularly with regard to inspections and their follow-up. For this, it uses a number of tools:

- support in harmonising FIA inspection practices and remediation follow-up;

What is a FIA?

A financial investment advisor (FIA) is a professional with a qualification, training or experience that enables them to provide financial investment advice as their usual business. As such, they may recommend investing in financial instruments (shares, bonds, investment fund units, etc.) or in miscellaneous assets (wine, gold, precious stones, etc.). Their advice must be provided in writing and must take into account the retail investor's financial situation, financial experience and investment objective. The AMF is responsible for monitoring and inspecting FIAs. They must also be registered in a register kept by ORIAS (the French insurance, banking and finance intermediaries register). FIAs are required to belong to one of the four industry associations approved by the AMF, whose remit includes inspecting their members.

- the transmission of any findings of document-based inspections carried out by the AMF on FIAs;
- reporting of alerts and whistleblowing.

These exchanges are helping the associations to better understand and take account of their role, and of the issues related to FIA supervision, in the context of protecting the investors who are their clients, particularly retail clients and, above all, the most vulnerable clients.

Crowdfunding service providers (CSPs): 2025 marked by a difficult economic climate

2024 was a turning point in the crowdfunding ecosystem. It was the first full year during which institutions engaged in this activity were required to operate under the European CSP statute, which replaced the domestic regimes for crowdfunding advisors and crowdfunding intermediaries. The latter regime remains in force solely for interest-free lending and donations. 2025 saw a continuation of this trend, with a total of 60 establishments holding CSP authorisation at the end of December 2025 (compared with 59 at the end of 2024).

These service providers can carry out the following activities:

- facilitating the granting of loans;
- the unsecured placement of transferable securities and admitted instruments for crowdfunding purposes issued by project holders or by an *ad hoc* entity, as well as the reception and transmission of client orders.

The European CSP Regulation⁴⁰ only covers offers made on the crowdfunding platform for commercial activities and for an amount not exceeding €5 million per project holder over a 12-month period.

Contextual difficulties have impacted the majority of CSPs

2025 was also marked by circumstantial difficulties affecting the majority of CSPs, linked to the situation in the real estate sector. These events have led to the beginnings of concentration, with the prospect of certain platforms being taken over. The analysis of the annual information sheets⁴¹ published at the end of 2025 by the AMF and covering the 2024 data collected in 2025, is a very instructive exercise in this respect.

The study points to a 22% reduction in overall inflows, from €1.86 billion in 2023 to €1.46 billion in 2024. This fall is largely due to the crisis in the real estate market, the consequences of which impacted on inflows, which fell by 36%. The number of projects presented on the platforms fell by 15% and funding applications dropped by 37%. Although the number of registered investors rose by 21%, the proportion of active investors fell to 11%.

On 18 June 2025, the AMF called on investors to be vigilant as regards the risks associated with this type of investment, particularly in the event of payment delays or defaults, loss of capital and liquidity problems. If recourse to a litigation-based debt collection service is necessary, additional costs may be passed on to the investor. On this occasion, the AMF reminded investors of the importance of exercising caution and ensuring that they are properly informed before investing, in particular by reading the contractual documents.

Increased supervision to meet sectoral challenges

In 2025, enhanced supervision of CSPs was carried out across the board. It addressed two priorities:

- supporting establishments and encouraging their resilience in a difficult economic climate;
- protecting investors, in particular by ensuring the quality of the information disseminated by CSPs (in their marketing materials and on their digital platforms) both upstream of an investment by retail investors and downstream as part of project monitoring.

The main area of monitoring focused on the support provided to clients by the platforms in the event of a transition between several service providers, when one of them sells its business or, more generally, when

(41) Regulation (EU) of 2020/1503 the European Parliament and of the Council of 7 October 2020 on European crowdfunding service providers for business, and amending Regulation (EU) 2017/1129 and Directive (EU) 2019/1937.

(42) See the news item 'Crowdfunding service providers: 2024 key figures', published on 19 December 2025 on the AMF website: [1ap.fr/psfp-2024](https://www.amf-fr.fr/psfp-2024).

projects run into difficulties. In this respect, work has been carried out to encourage CSPs to adopt efficient business continuity plans under the right conditions, including the conditions for transferring projects, or by starting to think about identifying good practice in this area (for example, in terms of the representation of the shareholders of invested projects, a point not covered by the European regulation).

These monitoring activities, which form part of a multifactorial risk assessment, have been the subject of much work for a part of our staff, and have been supplemented by participation in European bodies dealing with crowdfunding, in particular with the aim of providing the regulator with concrete feedback.

Finally, in 2025, the AMF organised two webinars on the subject of crowdfunding. The first, on 30 June 2025, was dedicated to market participants (platforms, issuers, legal advisors, etc.) and covered current events and regulatory issues, while the second, on 15 October 2025, was for investors and presented the characteristics of crowdfunding and information about the risks.

Focus on the real estate crowdfunding market in France

The purpose of the study published by the AMF on 20 January 2025 was to analyse the operation of the real estate crowdfunding market in France, as well as the risk and return characteristics associated with this segment. It took place against the backdrop of the implementation of the harmonised European regulatory framework applicable to CSPs.

The work focused on the financing arrangements for the real estate projects offered on the platforms, based mainly on debt instruments, with repayment of the capital at maturity.

Late payments were frequent and represent a significant risk factor, both in terms of liquidity and capital loss. In some cases, these situations may lead to collective or legal proceedings being opened.

The study identified shortcomings in the platforms' communication practices, particularly with regard to the publication of performance and risk indicators. The calculation methods used and the aggregated presentation of the data may lead to a partial understanding of the risk-return profile, due in particular to a time lag between the returns estimated when the projects were launched and the actual difficulties encountered. Consequently, the study underlined the need for clear, balanced information tailored to the specific features of the real estate financing offered.



Find out more about the
crowdfunding market study

Intermediaries in miscellaneous assets: new offerings

IBDs form a category of market participants under French law. At the end of December 2025 they numbered 11. They are entities that, directly or indirectly, by means of promotional marketing materials or direct marketing, regularly offer third parties the opportunity to subscribe to life annuities or to acquire rights over movable or immovable property where the purchasers do not manage the assets themselves, or where the contract offers the option of surrender or exchange and the revaluation of the capital invested.

The IBD collects funds for this purpose and is responsible for managing these assets. Under the Monetary and Financial Code, any person or entity who offers one or more clients or potential clients the opportunity to acquire rights in one or more assets by promoting the possibility of a direct or indirect financial return or similar economic effect is an intermediary in miscellaneous assets.

During 2025, two new offers were registered with the AMF. Once registered, these miscellaneous asset offers are subject to specific monitoring by the AMF on an annual basis to ensure that the characteristics of the offer remain unchanged or are compatible with miscellaneous asset offer status.

UCI and AIF depositaries: a highly concentrated population

The depositary market continued to consolidate, with 20 depositaries at the end of December 2025, including:

- 16 depositaries for both UCITS and AIFs (17 in 2024), one of which also acts for securitization vehicles;
- 4 depositaries exclusively for securitisation vehicles.

The sector remains highly concentrated on three main depositaries for UCITS and AIFs, totalling around €2,024 billion

French branches of European ISPs supervised by the AMF

ISPs authorised in another European Economic Area country that have established branches in France are also supervised by the AMF. In particular, they must send periodic reports on the activities of their branches, on request and for statistical purposes. The AMF may also ask these subsidiaries for any information it needs to allow it to verify that they are complying with their obligations in France.

In 2025, 28 French branches of European ISPs were engaged in marketing and advising on financial instruments (including two newly authorised in 2025), and 49 French branches of European ISPs were engaged in market activities or developing online offerings. Following on from the monitoring initiated in previous years, data is collected annually and, whenever necessary, and results in cross-sectoral

analysis and individual supervision.

In addition, the AMF, in conjunction with the ACPR, regularly exchanges information with its European counterparts on the supervision of branches, since disclosures made under the European passport are the responsibility of the home authorities.

in assets under management at the end of 2024 (€2,186 at the end of 2023), according to data collected in 2025. These three institutions also remain the main depositaries in terms of the number of client asset management companies.

Of the French institutions, at the end of 2025, two were depositaries of funds invested in crypto-assets, two were also depositaries of funds that had taken positions in 'tokenised' assets.

As part of its supervisory remit, the AMF has drawn the attention of depositaries to verifying the ownership of unlisted securities, the monitoring of sub-custodians, compliance with investment restrictions by AMCs and identifying conflicts of interest arising from multiple activities within the same group (see p 144). Furthermore, in 2025, the AMF continued to supervise the efficient application of the anomaly response mechanism and the listing of complex products.

DASPs and CASPs: market participants in transition

The European MiCA Regulation came into force:

- on 30 June 2024, for the provisions relating to asset-referenced tokens (stablecoins);
- on 30 December 2024, for the provisions on crypto-asset services providers (CASPs) and on offers to the public of crypto-assets other than asset-referenced tokens and e-money tokens.

Therefore, new market participants wishing to provide services in the EU will need to obtain MiCA authorisation, while those already registered by the AMF as a digital asset services provider (DASP) can continue to provide services in France until 30 June 2026, the end date of the transitional period. In effect, CASPs that can justify having

provided services in accordance with the applicable domestic law before MiCA came into application may continue to provide them for a maximum period of 18 months. This provision will expire on 30 June 2026 at the latest, or earlier if the market participant is either granted or refused authorisation.

The first few months of 2025 were marked by difficulties in terms of the convergence of supervisory practices at European level, with real risks of regulatory shopping. However, the experience gained by the various authorities since then has meant that the convergence of practices is once again the focus of attention, with ESMA playing a central role. The European landscape is tending towards harmonisation, and there are now almost a hundred authorised entities in Europe. However, clarifications still need to be made as regards compliance with the DORA Regulation, the new AML/CFT package and the regulation on information accompanying transfers of funds and certain crypto-assets (Transfer of Funds Regulation, TFR).

Against this backdrop, AMF staff continue to:

- provide clarification to market participants on the most structural issues within a timeframe compatible with the examination of applications;
- educate, by publishing content to guide market participants, holding monthly meetings and organising a dedicated workshop.

In 2025, 11 CASPs were authorised in France (eight authorisations and three notifications made under Article 60 of the MiCA Regulation). The AMF's objective is to support the transition of the existing DASPs to MiCA compliance, ensure that the cessation of activities is smooth and assist new market participants with the authorisation process.

Product monitoring

Growth in assets under management continues in an environment that is returning to normal

In 2025, the growth momentum of under-takings for collective investment (UCIs) continued, in a market environment marked by a gradual normalisation of financial conditions after several years of high volatility. Total assets under management reached €2,298 billion, up 6% on 2024, confirming the resilience of the collective investment management industry. This increase was accompanied by a more moderate rise in the number of funds (+3%) to 13,659 vehicles, reflecting a continuation of the rationalisation and consolidation seen in previous years.

The growth in assets under management was mainly driven by alternative investment funds, excluding general-purpose investment funds (FIVGs), whose assets under management rose by 10% over the year, illustrating the sustained appeal of diversifying strategies, particularly in real assets and private equity. UCITS and FIVGs posted more restrained growth, both in terms of numbers and assets under management, against a backdrop of increased competition between asset classes and reorganisation of the offering.

In this context, money market funds continue to play an important role in investors' allocations. After the strong growth seen in 2023 and 2024, money market assets under management stabilised in 2025 (+1%), at €478 billion. This trend reflects both the continuing high level of cash management needs and the reduced attractiveness of these instruments due to expectations of a gradual easing of monetary policy.

The number of money market funds continued to fall (-4%), reflecting a concentration of supply, both in terms of funds with standard variable net asset values and in short-term funds, whose assets under management nevertheless remain on an upward trend.

Strong growth in ELTIF funds in 2025

2025 stands out for its particularly strong momentum in terms of European long-term investment fund (ELTIF) authorisations. 73 ELTIF funds had been authorised by the end of 2025 making this category one of the main drivers of the renewal of the alternative fund offering. This development follows on from the revision of the regulatory framework applicable to ELTIFs, which broadened investment opportunities, eased certain liquidity constraints and facilitated access to these vehicles for retail clients (see p. 28).

The new ELTIFs approved in 2025 have diversified strategies, mainly focused on private equity, real estate and infrastructure. A significant proportion of these funds adopt open-ended or 'evergreen' structures, breaking with the traditional model of closed-ended funds with a pre-determined duration. This development responds to growing demand from investors and distributors for long-term vehicles that offer greater flexibility in terms of subscription and redemption, while retaining exposure to illiquid assets.

Therefore, the growth in ELTIFs contributed to the increase in the number and assets under management of private equity funds seen in 2025. However, it also brings with it new challenges in terms of liquidity management, valuation and investor information

Real estate funds: first signs of stabilisation in the wake of an adjustment phase

After the sharp fall seen in 2024, in 2025, the trend for real estate funds was more mixed. The number of vehicles continued to fall (-2%), reflecting the ongoing liquidations and restructurings undertaken against a backdrop of corrected valuations. However, assets under management rose by 6% to €144 billion.

This trend reflects both the effects of more favourable valuations and the launch of new vehicles targeting specific segments of the real estate market, sometimes as a result of investment opportunities arising from the price adjustments of recent years, or with a view to geographic diversification across Europe.

Private equity: a stronger recovery, driven by the growth of ELTIF funds

Private equity recovered more strongly in 2025 than in 2024. The number of funds rose by 5% and assets under management increased by 4% to €118 billion. This momentum was closely linked to the boom in ELTIF funds and evergreen structures, which are helping to renew the offering and

First study on the performance of unlisted asset funds aimed at retail clients

For some years now, private equity and private debt funds have been offered to retail clients, often highlighting their contribution to the real economy and past performance. Since 2017, the capitalisation of unlisted asset funds aimed at the general public has increased considerably. This trend is set to continue, thanks to French and European initiatives aimed at improving retail access to this type of investment. Against this backdrop, the AMF has carried out an initial study of the historical performance and fees of an overview of French unlisted financial asset funds aimed at retail clients.

The performance of unlisted asset funds varies greatly depending on the legal category and specific characteristics of the fund. Their performance indicators remain significantly lower than the average historical performance of those funds reserved for professional clients.

An analysis of funds that have been closed, mainly FIPs and FCPIs, shows a decline in returns as the funds approach liquidation. This can be explained by difficulties in disposing of the assets at the end of their life cycle. The bankruptcy of certain portfolio undertakings can also lead to significant losses. This situation highlights the risky nature of investments in funds invested in unlisted assets.

The AMF stresses that the marketing of unlisted financial asset funds to retail clients must take account of the characteristics of these funds. In particular, their performance cannot be assimilated by default to the performance history of professional funds.



Find out more about the first study on the performance of unlisted asset funds aimed at retail clients

TABLE 7
UCI breakdown by family

	2024	2025	VoR	VoR%
UCI assets under management (in billions of euros)	2,158	2,298	140	6%
Number of UCIs	13,204	13,659	455	3%
UCITS assets under management (in billions of euros)	986	1,038	52	5%
Number of UCITS	2,996	2,970	-26	-1%
FIVG assets under management (in billions of euros)	370	380	10	3%
Number of FIVGs	2,154	2,160	6	0%
AIF assets under management (excluding FIVGs, in billions of euros)	802	880	78	10%
Number of AIFs (excluding FIVGs)	8,054	8,529	475	6%

TABLE 8
UCI breakdown by asset class

Asset class	Number of funds				Change in net assets in billions of euros			
	2024	2025	VoR	VoR%	2024	2025	VoR	VoR%
Shares	1,932	1,924	-8	0%	420	447	27	6%
Euro area shares	391	362	-29	-7%	109	119	10	9%
EU shares	193	184	-9	-5%	23	25	2	9%
French shares	96	88	-8	-8%	16	15	-1	-6%
International shares	837	835	-2	0%	214	216	2	1%
Shares as defined by the ECB	415	455	40	10%	58	72	14	24%
Bonds	1,211	1,192	-19	-2%	375	382	7	2%
Euro-denominated bonds or debt securities	686	658	-28	-4%	228	228	0	0%
International bonds or debt securities	293	289	-4	-1%	89	93	4	4%
Bonds as defined by the ECB	232	245	13	6%	58	61	3	5%
Mixed (diversified) funds	3,318	3,248	-70	-2%	336	359	23	7%
Money market funds	175	168	-7	-4%	475	478	3	1%
Standard variable net asset value money market funds	129	126	-3	-2%	373	375	2	1%
Short-term variable net asset value money market funds	46	42	-4	-9%	102	103	1	1%
Real estate	634	624	-10	-2%	136	144	8	6%
Private equity (venture)	2,168	2,268	100	5%	114	118	4	4%
Other	3,766	4,235	469	12%	302	370	68	23%
Total UCIs	13,204	13,659	455	3%	2,158	2,298	140	6%

A working group to improve the clarity and understanding of structured products distributed to retail clients in France

In 2025, the AMF set up a working group, comprised of members of its Retail Investor, Markets and Exchanges, and Asset Management and Institutional Investors Consultative Commissions, to carry out a study on good practices to introduce to make the structured products distributed to retail investors in France clearer and easier to understand. The working group was tasked with assessing the quality and clarity of information in relation to the marketing of structured products (structured EMTNs) to the general public, with the exception of life insurance, and particularly with regard to the risks associated with the complexity of the products and fees. The working group based its efforts on examining marketing brochures. To avoid any form of goldplating, it chose to only formulate 'good practices' in terms of the clarity of the marketing documents, and set out proposals for fair, clear and non-misleading information and informed advice for the general public. This work forms part of a broader review by the AMF of these products and their distribution, as evidenced by the work of the Joint Unit with the ACPR. This study was published in early 2026.

Supervision of STS-labelled securitisations: targeted actions

Since the entry into force of Regulation EU/2017/2402 laying down a European framework for securitisation, the AMF has played a leading role in supervising these transactions, particularly so-called simple, transparent and standardised transactions (STSs). Securitisation is a recognised tool for financing the economy and an integral part of the new European strategy for a Savings and Investment Union. It requires both favourable conditions for its development and the implementation of rigorous supervision to ensure financial stability.

At European level, in 2024 the AMF took part in a peer review organised by the European Securities and Markets Authority (ESMA) to assess competent authorities' compliance with the supervision of STS securitisation rules. For the AMF, this has

meant increasing the resources dedicated to supervising STS transactions in 2025, using a risk-based approach.

At the same time, and in line with its objectives, the AMF took part in the work carried out throughout 2025, in conjunction with the financial community, to simplify the rules of French law that apply to securitisation vehicles (particularly the rules applicable to depositaries). In 2026, this work could result in legislation to bring the provisions of French law into line with the latest European legislation governing securitisation vehicles (SSPEs).

The AMF also continued to supervise securitisation investment funds (FCTs). By the end of December 2025, the AMF had approved 17 FCTs making public issues, including nine new issues, and eight renewals and new issues. The AMF also carried out regular monitoring of France's only third-party verifier.

Monitoring marketing

Closer monitoring of investment products and services

Monitoring investment products and services is one of the AMF's key missions, with the aim of protecting retail investors.

This monitoring primarily takes the form of the ongoing supervision of investment services providers (ISPs). To this end, the AMF:

- uses a risk-based approach to regularly monitor all French ISPs and the French branches of foreign ISPs to ensure compliance with the applicable rules. This involves analysing the responses to the Investment Services Compliance Officers (RCSI) questionnaire, interviewing a sample of market participants, conducting bilateral interviews, etc.;
- ensures the dissemination of good practices, doctrine and the results of studies and inspections, through institutional meetings

(Investment Services Compliance Officers RCCI/ RCSI Training Day), additional training for chief compliance and internal control officers (RCCIs) and RCSIs, exchanges with industry groups and publications on its website;

- carries out thematic analyses of financial centre practices.

Focus on the thematic analyses carried out in 2025

2025 was marked by the execution of a number of thematic projects, including:

- an analysis of financial centre practices to implement the obligations relating to simple execution and the collection of retrocessions in connection with the provision of an execution service not preceded by a service of investment advice. Where necessary, compliance requests were made to the 19 market participants interviewed;
- identification of an instance of wide-spread non-compliance in the



financial centre regarding the marketing of unauthorised foreign undertakings for collective investment to retail investors. Bilateral exchanges took place throughout the year to monitor the implementation of the remediation plan with the 16 market participants (or groups) who were most concerned by this issue. Discussions were also held with the industry associations concerned (FBF and AMAFI) to raise awareness among their members, and a news item was published on the AMF website⁴² to remind them of the applicable legislation.

Crowdfunding offers, intermediation in miscellaneous assets and the work carried out by financial investment advisors have all been the subject of specific monitoring (see p. 114 and p. 116).

Finally, work has been carried out with ORIAS to ensure that ISP tied agents are monitored.

Discretionary management: transaction fees are now prohibited

Following work undertaken in 2024, the Autorité des Marchés Financiers amended its General Regulation to prohibit transaction fees in situations of discretionary management.

Certain asset management participants (the manager, its delegate, the asset custodian, affiliated companies) charge transaction fees in addition to intermediation fees, for buy or sell operations on the portfolio of a collective investment or a management mandate. These commissions pose a risk of conflicts of interest inherent to their operation, as they are likely to encourage managers

to 'rotate' more frequently than necessary, to the detriment of investors' interests.

The ban on these fees came into force on 1 January 2026 for UCITS, AIFs and unit-linked arbitrage mandates in life insurance, in application of the 'green industry' law. It will apply to management mandates:

- from 1 January 2027 for mandates entered into on or after that date;
- from 1 January 2028 for mandates entered into before 1 January 2027, including those tacitly renewed before that date.

In addition, AMF doctrine has been updated to prevent conflicts of interest arising in relation to this form of remuneration from being transferred to other services provided to the principal. Transaction fees are still permitted for custody-account keeping services, whose activity is, by its nature, linked to the volume of transactions. However, when this service is provided by the agent itself or by an entity belonging to the same group, a risk of conflict of interest remains.

In order to limit this risk, the custodian-account keeper must, in these situations, justify its pricing by demonstrating that it is not significantly higher than that charged for an equivalent service provided outside the scope of discretionary management or by managers who do not belong to the same group.

(43) See the news item 'The AMF reminds distributors of their requirements regarding marketing of investment fund' published on 10 July 2025 on the AMF website: 1ap.fr/commercialisation

Investigations and inspections

Investigations and inspections are initiated by decision of the Secretary General. They are carried out by AMF investigators and inspectors who work in collaboration with other national authorities, notably the judicial authorities, and international authorities under cooperation agreements. Their work is governed by the law and the General Regulation. Investigation and inspection reports may give the Board grounds to initiate sanction or settlement proceedings.

Investigations

Origin and type of investigations in 2025

Investigations are opened on the basis of investigation proposals from the AMF's various operational directorates (primarily the Markets Directorate and the Issuers Directorate). They may also originate from complaints or requests for an opinion from the judicial authorities, or from a request from a foreign authority.

In 2025, of the 36 new investigations opened, 15 were initiated by the AMF (10 in 2024) and 21 in the context of international cooperation.

Of the 15 investigations opened by the AMF, 11 were proposed by the Markets Division as part of its market surveillance activities.

Almost all the investigations opened are about possible market abuse: insider dealing, dissemination of false information or price manipulation. Occasionally, or if such regulatory breaches are discovered in the course of an investigation into market abuse, investigations may focus on regulatory breaches of reporting or professional obligations.

Investigations completed in 2025

In 2025, 32 investigations were closed. Of these investigations, nine had been initiated by the AMF and 23 as part of assistance to foreign authorities.

As at 31 December 2025, of the nine investigations initiated by the AMF and closed in 2025⁴³:

(44) Some investigations resulted in an observation letter being sent to certain individuals and sanction proceedings being initiated against others. Thus, a number of different actions may be taken against different parties in relation to the same investigation.

- six gave rise to statements of objection, which were accompanied by a proposal to initiate administrative settlement proceedings for two files;
- four gave rise to one or more observation letters;
- three led to no further action.
- two were reported to the public prosecutor.

All these investigations concerned suspected market abuse, and more than half had an international dimension requiring the assistance of foreign counterparts. According to International Organization of Securities Commissions (IOSCO) statistics for 2024, the AMF is one of the regulators making most use of the mechanisms for requesting assistance from other supervisors under international cooperation and information exchange agreements (see details of the requests for assistance sent and received by the AMF in Annex 3 of this report).

The decline in the number of investigations opened at the initiative of the AMF and closed in 2025 is due in particular to several cases that are currently being finalised and that will be submitted to the AMF Board at the start of 2026. In addition, in 2025, the AMF continued to provide assistance to the judicial authorities, responding to their requisitions or requests for opinions, particularly in cases involving insider networks.

Finally, the AMF has observed a growing criminal trend in several stock market infringement cases, and reaffirms in this regard that it fully executes the missions for which it is responsible by reporting criminal offences to the relevant public prosecutor's office (in particular the French National Financial Prosecutor's Office, the PNF), by participating in criminal proceedings and by actively combating international insider networks.

TABLE 9
Investigations opened and completed

	2023	2024	2025
Investigations opened by the AMF	37	30	36
at the initiative of the AMF	18	10	15
at the request of a foreign authority	19	20	21
Investigations completed	35	24	32
at the initiative of the AMF	16	14	9
at the request of a foreign authority	19	10	23
Number of cases containing statements of objection	10	2	6*
Number of cases containing statements of objection accompanied by a proposal to initiate administrative settlement proceedings	3	2	2

* In 2025, of the six cases involving statements of objection, five have already been signalled to the PNF (i.e. sent to the PNF for consultation). To date, the PNF has responded to one of these. Of these five cases, one was ultimately passed over to the PNF under the signalling procedure (i.e. the case was taken up by the PNF, while the other four were retained by the AMF). The potential signalling of the sixth case is pending.

TABLE 10
BREAKDOWN OF REGULATORY BREACHES SUBJECT
TO PROCEEDINGS AT THE DECISION OF THE AMF

	2023	2024	2025
Equity security and bond market (insider behaviour or market manipulation)	9	2	7
Financial information	1	0	2
Other (FIA, direct marketing, etc.)	2	0	0

Combating international insider networks

The AMF continues to actively mobilize its resources and powers to effectively combat international insider networks. Moreover, it regularly cooperates nation-ally and internationally with various administrative and criminal authorities (such as the PNF in France) to investigate these matters.

For example, in a case of insider dealing originating in a report from the AMF, in November 2025 and January 2026 the Paris *Tribunal Judiciaire* handed down suspended prison sentences and major fines (ranging from €350,000 to €10 million) for four of the respondents under plea bargains. Three other defendants were sentenced in April 2026 for insider trading and complicity in insider trading to prison terms of up to three years and fines of up to 30 million euros.

Cooperation with the judicial authorities

The AMF works closely with the PNF, notably as part of the signalling procedure. As a reminder, under this arrangement, when the AMF Board decides to initiate proceedings for market abuse, it must first consult the PNF.

Thus, for the cases presented to the Board in 2025, five investigation cases have been reported to the PNF for referral. Of

these five cases, four were ultimately retained by the AMF.

In the same way, the PNF must inform the AMF of its intention before any public action is instigated in respect of market abuse. In 2025, the PNF signalled two cases to the AMF. These two cases were ultimately retained by the PNF.

Assistance provided by the AMF in legal proceedings

Judicial authorities may also call on the AMF's investigators in their capacity as stock market experts to assist them with actions, such as searches or hearings. In 2025, several investigators were called in by investigating judges and the PNF as part of judicial fact-finding exercises and preliminary investigations opened following AMF reports of suspected insider dealing, primarily in cases involving insider networks.

The AMF's involvement in legal proceedings

For the application of provisions falling within the AMF's remit, its Chair (or her representative) may be called upon to submit conclusions and to expand on these orally at a hearing by civil, criminal or administrative courts (Art. L. 621-20 of the Monetary and Financial Code). In 2025, the AMF intervened in a number of criminal proceedings arising from AMF reports.

For example, the AMF submitted conclusions in a hearing before the Grenoble *Cour d'Appel* concerning offences (reported by the AMF to the Grenoble Prosecutor's Office) committed by a financial investment advisor (FIA) and its senior manager, who were also sanctioned by the AMF Enforcement Committee for market abuse and breaches of professional regulations (separate from the criminal offences)⁴⁴. In

its ruling of 27 March 2025, the Grenoble *Cour d'Appel* upheld the ruling of the court of first instance and convicted the FIA and its senior manager respectively of illegal receipt of funds and money laundering, and of breach of trust, misappropriation of assets and forgery. The company was closed down by court order and its senior manager was given a three-year suspended prison sentence and a permanent practice ban.

(45) AMF CDS, SAN-2025-06. This decision has been appealed.

Conseil Constitutionnel decision on notification of the right to remain silent

In its decision of 21 March 2025*, the French *Conseil Constitutionnel* confirmed that the provisions of Article L. 621-12 of the Monetary and Financial Code (MFC) on the gathering of explanations from persons approached on site by AMF investigators during home search exercises, which do not provide for notification of their right to remain silent, are compliant with the Constitution.

The *Conseil Constitutionnel* took the opinion that the gathering of the explanations referred to in Article L. 621-12 of the Monetary and Financial Code does not allow the AMF to ask a person to explain facts of which they may be accused, therefore they do not have to be informed of their right to remain silent.

The Enforcement Committee drew conclusions from this decision in its ruling of 9 July 2025** by rejecting a procedural argument that the right to remain silent during hearings by investigators had not been notified, prior to any statement of objections.

With regard to notification of the right to remain silent during the phase following the sending of a statement of objections, in decision No. 2025-1164 QPC of 26 September 2025, the *Conseil Constitutionnel* decided that the second sentence of Article L. 621-15 IV of the Monetary and Financial Code, as amended by law 2023-171 of 9 March 2023 containing various measures for adapting to European Union law in the fields of the economy, health, employment, transport and agriculture, is contrary to the Constitution, in that 'by not providing that the respondent before the AMF Enforcement Committee, or their representative, must be informed of their right to remain silent, the disputed provisions fail to meet the requirements of Article 9 of the Declaration of 1789.

For more details on this decision, see p. 142.

* *Conseil Constitutionnel*, 21 March 2025, No. 2025-1128 QPC.

** AMF CDS, SAN-2025-06, which has been appealed to the Paris *Cour d'Appel* and the *Conseil d'État*.

In June 2025, AMF representatives appeared as experts at a criminal hearing before the Paris *Tribunal Correctionnel* in connection with a large-scale financial fraud case initiated by the Paris public prosecutor's office following a report from the AMF. The four defendants were convicted of aggravated fraud and money laundering on 16 September 2025⁽⁴⁶⁾. Two of them have appealed. The protagonist was sentenced to five years' imprisonment with a committal order. The court also pronounced the confiscation of the assets seized during the proceedings and management bans.

Exercise by the AMF of the right to civil action before the criminal courts in proceedings into market abuse⁴⁶

The AMF's exercise of its rights to civil action may be useful to the criminal courts, as the AMF can provide its perspective on technical issues, such as the dissemination of false or misleading information to the market. In September 2025, the AMF brought a civil action before the 32nd Chamber of the Paris *Tribunal Correctionnel* in a case referred to the PNF under a signalling procedure concerning the dissemination of false or misleading information as well as several potential criminal offences (misappropriation of assets and obstruction of the AMF's work by producing false documents). In its judgment of 17 November 2025, the court found the company's head guilty of the alleged offences, sentenced them to two years' imprisonment with an arrest warrant, a fine of €150,000 and a permanent practice ban.

On 29 October 2025, the *Cour de Cassation* also ruled on a case which had originated from an AMF report to the PNF. In this case the AMF brought a civil action and took part in the criminal hearings. The case involved pump-and-dump market manipulation for which the defendant was sentenced to imprisonment and a fine, reduced from more than €2.6 million at first instance to €10,000 by the Paris *Cour d'Appel*⁽⁴⁷⁾. This appeal decision was subject to an appeal on points of law lodged by the Public Prosecutor on the basis of Article L. 465-1 of the Monetary and Financial Code, according to which the fine may not be less than the benefit derived from the offence of price manipulation (€2.6 million in this case). The *Cour de Cassation* quashed the ruling of the Paris *Cour d'Appel*, confirming that the criminal court cannot impose a fine that is less than the benefit derived from the offence of price manipulation, and referred the case back to the Paris *Cour d'Appel* with a different composition.

(46) Judgment of the Paris *Tribunal Judiciaire* of 16 September 2025, No. 14204000429.

(47) Art. L. 621-16-1 of the Monetary and Financial Code.

(48) Decision of the Paris *Cour d'Appel* of 26 June 2024, No. 23/05115.

The Casino case

The Paris *Tribunal Correctionnel* ruling marked the end of a market abuse case in which the AMF was heavily involved.

On 29 January 2026, the Paris *Tribunal Correctionnel* handed down criminal sanctions, including prison sentences of up to four years, including non-suspended sentences, fines of up to €40 million, and practice bans, against the Casino Group and some of its former senior executives Jean-Charles Naouri, Franck-Philippe Georgin, Nicolas Boudot and Jacques Dumas, and against Nicolas Miguet and three companies linked to him.

These sanctions relate to offences of private corruption and organised market manipulation, as well as insider dealing, in relation to facts dating back to 2018.

This judgment is the culmination of five reports sent by the AMF to the PNF in 2020 denouncing misconduct detected as part of an investigation opened in October 2018 into financial disclosures and the market in Casino and Rallye shares. The PNF initiated criminal proceedings as a result of the signalling procedure, given the particularly serious nature of the facts.

The AMF remained actively involved in this case over the past years, responding to several mandatory requests from the PNF and a request for an opinion. It also brought a civil action in this case, so that the criminal prosecution authorities could benefit from its experience and in-depth knowledge of highly technical cases, thereby helping to improve the effectiveness of the criminal justice response.

A number of shareholders who brought civil actions were awarded compensation for their pecuniary and non-pecuniary damages. The court also found the AMF's civil action for damages admissible and recognised the non-pecuniary damage it had suffered.

A number of defendants, including the former Casino senior managers, have appealed against the ruling. Casino has stated that it will not appeal this criminal decision, but that it will challenge the court's calculation of the civil interest.

Inspections

In 2025, the AMF launched 59 standard inspections and short thematic inspections (known as SPOTs for Operational and Thematic Supervision of Practices in French, see p. 33) on a variety of topics. It also opened 39 document-based inspections of financial investment advisors (FIAs).

The AMF sent 56 inspection reports to the entities it had inspected, 33 of which were subject to a SPOT inspection. 36 covered asset management companies (AMCs) (11 standard and 25 SPOT inspections), 14 investment services providers (ISPs) (6 standard and 8 SPOTs), five financial investment advisors (FIAs) and one an FIA professional association. In terms of the follow-up to inspections, in 2025, the

AMF Board decided to send one or more statements of objections in respect of nine missions launched between 2022 and 2025, involving two AMCs, three ISPs and four FIAs. For five of these inspections (involving one AMC, two ISPs and two FIAs), the statement of objections was accompanied by a proposal to initiate administrative settlement proceedings. Sanction proceedings were initiated against the other four (one AMC, one ISP and two FIAs).

In addition, in 2025, for 37 inspections, including 29 SPOT inspections, the AMF decided to send follow-up letters with requests for remedial action. This concerns 24 AMCs (20 SPOT and four

TABLE 11
Key inspection figures

	2023	2024	2025
Number of inspections opened	60	56	59
Investment services providers (ISPs)	24	18	21
of which SPOT inspections	17	10	13
Asset management companies (AMCs)	31	31	27
of which SPOT inspections	20	20	15
Financial investment advisors (FIAs)	5 ^a	7 ^b	6 ^c
Crowdfunding service providers (CSPs)	-	-	5 ^d
Number of inspection reports sent	55	47	56
of which SPOT inspections	32	20	33
Number of document-based FIA inspections	50	40	39
Number of transmissions resulting from document-based inspections ^e	21	19	34
Number of inspections resulting in follow-up letters	40	37	37
of which SPOT inspections	34	25	29
Number of inspections resulting in statements of objection	17	20	9
with a proposal to initiate an administrative settlement procedure	9	11	5

(a) four FIAs and one FIA industry group.

(b) Six FIAs and one FIA industry group.

(c) Five FIAs and one FIA industry group.

(d) Five SPOT inspections.

(e) Transmissions resulting from document-based inspections are made to the industry groups to which the FIAs in question belong.

standard inspections), 10 ISPs (nine SPOT and one standard inspection), two FIAs and one professional association.

Inspecting asset management companies

Recurring themes of the twelve standard inspections carried out in 2025

Of the 12 standard inspections opened in 2025, seven involved market participants specialising in unlisted asset classes (three in real estate, four in private equity) and five involved companies using traditional asset management approach. The themes dealt with most frequently during these inspections are:

- the investment process and/or the framework for managing conflicts of interest (seven cases);
- marketing and the provision of information to investors/clients (six cases);
- asset valuation (three cases);
- liquidity management (two cases);
- cybersecurity (two cases);
- human resources (two cases);
- internal control (two cases);
- anti-money laundering and counter-funding the financing of terrorism (three cases). The latter theme is a recurring and important area of supervision for the AMF, which will continue to mobilise its inspection and law enforcement teams on this subject.

Focus on the lessons learned in the area of granting loans

The inspection carried out in 2025 on the activity of granting loans and selecting receivables revealed several shortcomings in the system put in place by the asset management company.

The set of procedures was vague with regard to the steps involved in the credit analysis for potential borrowers, in particular with regard to the systematic use of the Banque de France rating, even though this information appears explicitly in the prospectuses of the funds concerned.

With regard to the management of the loan granting business, the AMF noted that no representative of the compliance team attended investment committee meetings and that no representative of senior management attended the valuation committee meetings (to evaluate each loan), contrary to the provisions of the set of procedures. Furthermore, in the case of debt funds held by the group to which the asset management company belongs, the transmission of financing application proposals by the group was not governed by a contract.

A number of criteria (such as gross operating surplus) were set out in the set of procedures to help select companies eligible for loans. However, some applications could be accepted on the basis of a forecast financial ratio, which was not formally justified in the minutes of the investment committee meetings.

In addition to the annual management fee, the management company's remuneration could include transaction fees (which are shared equally with the funds). The asset management company could therefore put its own interests ahead of those of the funds, seeking to obtain a lower interest rate from the borrower in return for a higher transaction fee. However, this risk was not adequately covered by the conflict of interest management system.

There was also a lack of monitoring of the risks associated with the lending activity, both in terms of procedures and in practice, since the risk controllers only monitored fund valuation. Market, interest rate, diversification, sustainability and, in particular, credit risks were not analysed by anyone other than the fund managers.

Finally, the AMF noted discrepancies between the work set out in the compliance and internal control plan and the actions actually carried out with regard to debt funds' watch lists, prohibition lists and insider lists, as well as compliance with their valuation policy.

Inspecting financial investment advisors

Issues raised by the five standard inspections carried out in 2025

In 2025, the AMF opened five standard inspections of financial investment advisors (FIAs)⁴⁹, two of which were primarily marketing units in real estate investment companies (SCPIs) or structured products. In another inspection, the AMF identified that the service of portfolio management on behalf of third parties was being provided, even though this is prohibited for FIA status. Another FIA inspected was not providing investment advice and was therefore asked to renounce its status. In a final case, the inspection revealed

that the FIA had collected funds from its clients to finance a capital increase for its own firm, which again constitutes an illegal practice.

Focus on the marketing of SCPIs and structured products

In one inspection file, the report noted that the FIA had not systematically provided its clients with an onboarding document. The engagement letters were non-compliant, in particular due to the lack of information on the financial instruments and investment strategies proposed. The suitability statements given to clients who had subscribed to SCPIs on credit did not include any mention of the increased risks due to the leverage generated by the loans. In addition, these documents contained incomplete *ex ante* information about costs and fees due to the omission of the remuneration received from partners, and the intermediation commission for credit underwriting. The inspection also found a high level of inadequacy in the advice provided, particularly when it came to recommending SCPIs on credit. It also noted that the FIA's system for managing conflicts of interest was inadequate, firstly because of the structure of advisors' remuneration, the variable part of which could be more than five times higher than the fixed part, and secondly because of the FIA's banking intermediation business, which encourages it to advise SCPIs on credit.

In another case, the inspection found that the client knowledge questionnaires drawn up by the FIA did not enable the client's experience to be assessed or were not up to date. In addition, the FIA had not systematically provided an up-to-date onboarding document, an engagement letter that complied with the regulations regarding the presentation of the financial instruments offered, warnings about the risks of the structured products advised, or

(49) At the end of 2025, the AMF also launched an inspection of professional association in order to check the membership process, the quality of the inspections carried out on its FIA members and the training system.

information about costs and fees. Suitability statements were not given to clients before each piece of advice, did not explain why the advice was suitable for the client's profile, or contained advice that was unsuitable for the client's profile. In addition, some suitability statements set out the risks in a generic manner, and the costs and fees were not complete, omitting to aggregate the fees related to the service provided by the FIA and the fees related to the product advised, particularly when using structured product intermediation platforms, as well as the commissions received by the FIA from third parties. Finally, the FIA had transmitted orders to ISPs for the structured products advised to clients, which its status does not allow.

Inspecting investment services providers (ISPs)

The varied topics covered by the eight standard inspections carried out in 2025

In 2025, the eight standard inspections launched for ISPs covered a wide range of issues. The AMF always pays particular attention to newly authorised providers, who were once again inspected this year.

Marketing is a recurring focus of the AMF's inspection work. In 2025, one mission focused on a provider's overall system, including the consideration of sustainability preferences. Another mission looked at the marketing of SCPIs on credit. The way in which advisors are remunerated was also analysed. An exploratory inspection of the use of innovative technologies provided a better understanding of their contribution to securities management.

In terms of market activities, record keeping was a major focus of work for the inspection teams, in line with the supervisory priorities announced. The three inspection missions carried out on this theme also covered professional

Disseminating the lessons learned from FIA inspections to help change practices

The findings of the FIA inspections were shared with the financial community during the AMF's half-yearly webinars aimed at them. The first covered the management of conflicts of interest (June 2025); the second dealt with the limits of FIA status (December 2025). In addition, the AMF organised four presentation sessions for FIA industry groups on the inspections of their members that had led to sanction decisions or administrative settlement agreements. Finally, in a news item published on its website in March 2025, the AMF reiterated the professional obligations of FIAs that use financial product listing platforms.

obligations relating to compliance, the detection and monitoring of market abuse, and personal transactions.

Finally, one mission looked at the coexistence of investment and financial analysis activities within the same group in order to identify potential areas of conflict of interest and how they are managed.

Discretionary management: conflicts of interest and the fees associated with investment choices

Following on from the work carried out in 2024, the AMF finalised its series of inspections of ISPs involved in discretionary management.

Following two cases that led to administrative settlement agreements in 2025, the AMF carried out a third and final inspection focusing specifically on the investment choices made by an ISP providing discretionary management.

This case highlighted that investments were almost systematically made in funds units with the highest fees, even though alternatives with lower fees (clean share) existed at the time of the initial investment. When clean share units were created at a later date, no arbitrage to units with lower fees was made. These practices are very unfavourable to clients' interests.

This ISP also receives advice from a company in its group to help it select its investment universe. As this advisor is an asset management company, its influence can be seen in selecting the funds it manages. This situation constitutes a source of conflicts of interest, which are insufficiently addressed by the ISP, whose system for preventing and managing conflicts of interest did not take these specific risks into account.



The AMF attaches great importance to the monitoring systems put in place by regulated service providers and to raising awareness among professionals in this area. The main lessons learned from the inspections carried out on this topic area were the subject of a dedicated workshop organised as part of the RCSI-RCCI Training Day on 17 March 2025. In 2025, this annual event brought together nearly 750 representatives of investment services providers and asset management companies from the financial centre.

ADELINE BRUNEAU,
Inspections Department

Settlements, sanctions and appeals

As the AMF's judicial body, the Enforcement Committee rules on the objections notified to respondents by the AMF Board. In this capacity, it may impose fines on any person or entity, regardless of their activity, who has committed or attempted to commit a breach of the market abuse regulations, or a breach likely to undermine investor protection or the proper functioning of the market, as well as on professionals subject to AMF supervision and the natural persons under their authority or acting on their behalf for breaches of their professional obligations.

In 2025, the Enforcement Committee issued 31 decisions, including 13 sanction decisions and 18 decisions

approving administrative settlement agreements. All of these have been published on the AMF website.

TABLE 12
Decisions handed down

	2021	2022	2023	2024	2025
Committee decisions on sanctions	19	12	17	12	13
Committee decisions on the approval of administrative settlements	9	7	10	12	18
Paris <i>Cour d'Appel</i> decisions	10	4	8	8	7
<i>Cour de Cassation</i> decisions	4	2	5	3	1
<i>Conseil d'Etat</i> decisions	6	6	6	2	6

Settlements

Where the Board considers it justified, an (administrative) settlement is proposed to the persons or entities served with a statement of objections. If an agreement is reached with the Secretary General, it is submitted to the AMF Board for validation and then to the Enforcement Committee for approval.

The advantage of an administrative settlement procedure lies in the speed with which proceedings can be handled, given that the settlement agreement must be reached within a period of four months. It is also effective in terms of the functioning of the markets and its educational impact, as long as the respondent professionals make specific undertakings to comply with the regulations. Where appropriate, the fulfilment of these undertakings is the object of an inspection. In addition, the settlement agreement is always made public.

The amounts to be paid to the French Treasury are set by the AMF Board using the fines in the sanctions handed down by the Enforcement Committee based on similar facts as a reference.

In certain cases, the administrative settlement may allow the respondents to compensate the clients or investors who have suffered prejudice as a result of the regulatory breaches observed.

Overview of settlements approved in 2025

In 2025, work on settlements was particularly sustained, with 14 agreements signed and 18 agreements approved and then published (some agreements signed at the end of 2024 were approved in 2025).

These 18 agreements were concluded with four natural persons and 14 legal entities. Of the agreements concluded with natural persons, three involved company managers, CEOs or representatives who, in that capacity, were held liable for objections notified to the entities they managed or represented.

These agreements gave rise to the payment to the French Treasury of a total of €4,380,000. The individual amounts ranged from €35,000 to €800,000. For the people or entities concerned, the cost of the agreed remedial measures are on top of this.

Of these agreements, two arose from an investigation file and related to insider dealing (involving one natural person and one legal entity).

The 16 other agreements stemmed from inspection files and involved various breaches of professional regulations by seven AMCs, six FIAs and three ISPs.

See the settlement agreements approved by the AMF in 2025



Focus on three significant settlement agreements published in 2025

Agreement concluded on 7 January 2025 (TRA-2025-09): deficiencies in the processing of general meeting voting instructions by a custodian-account keeper

The investigations carried out by the inspection mission revealed a number of regulatory breaches committed by an ISP, in its capacity as custodian-account keeper, in the processing of the voting instructions from its bearer shareholder clients for the general meetings of listed companies in 2022.

The inspection revealed numerous incidents affecting the transmission of voting instructions, involving errors in taking into account the number of eligible voting rights or the direction of the votes cast. These malfunctions reflected the absence of a sufficiently reliable system enabling clients to exercise their voting rights under fully secure conditions, as well as shortcomings in the information provided to the clients concerned.

Failings were also seen in the material and human resources dedicated to this activity. The IT tools used were not suitable for ensuring complete and reliable traceability of the processing of votes, while the number of staff involved proved to be insufficient or unsuitable given the complexity of the processes involved.

The inspection also revealed shortcomings in the system for detecting and managing incidents, as well as in the permanent control mechanisms governing this activity, including the supervision of outsourced services.

Under the administrative settlement agreement, the ISP undertook to pay the sum of €800,000 to the French Treasury and to implement a series of remedial

measures designed to strengthen its human and IT resources, improve the detection and processing of incidents, consolidate its internal control system and ensure closer monitoring of external service providers.

Agreement concluded on 19 May 2025 (TRA-2025-05): shortcomings in the information provided to clients on costs and fees in connection with the service of third-party portfolio management

The investigations carried out by the inspection team uncovered several regulatory breaches committed by an ISP in the implementation of its obligations to provide information to its clients in the course of its business to provide portfolio management for third parties during the period from 1 January 2019 to 30 June 2023.

In particular, the inspection revealed shortcomings in the communication, both ex ante and ex post, of the transaction fees collected by the institution for its own benefit. A significant proportion of the fees, presented to clients as brokerage fees intended to remunerate intermediaries, actually corresponded to the transaction fees received by the ISP, without this information being clearly and exhaustively disclosed to clients.

There were also shortcomings in the ex-post disclosures relating to the cumulative effect of costs and fees on investment returns, in the absence of any illustration that would enable clients to grasp the impact of these costs over time in concrete terms. In addition, the presentation of the ex-post fees did not enable clients to identify all the costs and fees associated with the management service in an aggregated manner, as some commissions were presented in a form that was difficult to understand and even likely to be misleading.

Finally, the inspection revealed shortcomings in the internal control system for the costs and fees relating to the discretionary management business, both at the first and second levels of control.

Under the administrative settlement agreement, the ISP undertook to pay the sum of €500,000 to the French Treasury, and to maintain and strengthen the measures implemented to improve the transparency and comprehensibility of the information provided to clients on costs and fees, as well as the associated internal control system.

Agreement concluded on 15 July 2025 (TRA-2025-16): regulatory breaches relating to the remuneration and assessment of the appropriateness of the order reception and transmission service

The investigations carried out by the inspection mission revealed a number of regulatory breaches committed by an ISP in the course of its order reception and transmission business between 1 January 2021 and 30 June 2023.

The inspection revealed major shortcomings in the identification, justification and presentation of the remuneration received or paid by the company. The ISP's remuneration map proved to be erroneous and incomplete, making it impossible to identify remuneration flows exhaustively or to justify their compliance with the applicable requirements. In addition, the company was unable to demonstrate how certain items of remuneration received from third parties or retrocessions to financial investment advisors actually improved the quality of the service provided to clients.

Failings were also noted in the area of ex ante client information on costs and fees. The contractual documents did not enable investors to understand in an accurate, complete and comprehensible manner the actual amount, breakdown and method of calculation of the remuneration received and paid, particularly with regard to account management fees and retrocessions to distributors.

Finally, the inspection revealed failings in the system for assessing the appropriateness of the investment service provided. The questionnaires used to assess clients' knowledge and experience did not allow for a reliable and consistent assessment of the financial instruments subscribed, leading to the allocation of unsuitable profiles and, in some cases, the absence of the required warnings.

Under the administrative settlement agreement, the ISP undertook to pay the sum of €520,000 to the French Treasury and to implement a series of remedial measures aimed in particular at improving the reliability of its remuneration map, strengthening the information provided to clients, improving its system for assessing the appropriateness of the services provided and having an independent external audit carried out on all these obligations.

Sanctions

The Enforcement Committee may impose fines of up to €100 million or ten times the amount of the benefit derived from the regulatory breach, if this can be determined. In certain cases, these fines may be increased to 15% of the sanctioned entity's total annual turnover.

In addition to these financial penalties, the Enforcement Committee may impose disciplinary sanctions on the professionals supervised by the AMF and on the natural persons acting on their behalf, up to and including permanent bans on the professional activities concerned.

All of the Enforcement Committee's decisions may be appealed to the *Conseil d'Etat* or the *Paris Cour d'Appel*.

Overview of sanction decisions handed down in 2025

Following the review of proceedings during a public hearing that allow for adversarial debate, the Enforcement Committee issued 13 sanction decisions in 2025, all published on the AMF website. These decisions related to 15 legal entities and 27 natural persons. As a result of these decisions, 3 natural persons and 1 legal entity were cleared in an insider dealing case.

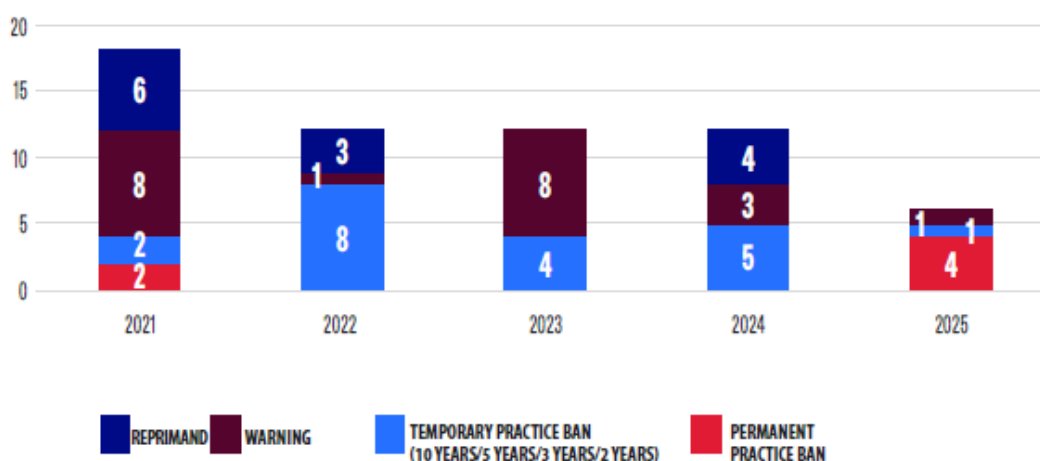
The 38 persons and entities sanctioned in 2025 were subject to fines amounts ranging from €15,000 to €3,500,000, for a total of €14,505,000.

Furthermore, 6 of them (3 legal entities and 3 natural persons) were subject to disciplinary sanctions, in addition to the financial penalties. Thus, the Enforcement Committee issued one warning, one ten-year temporary practice ban and four permanent practice bans.

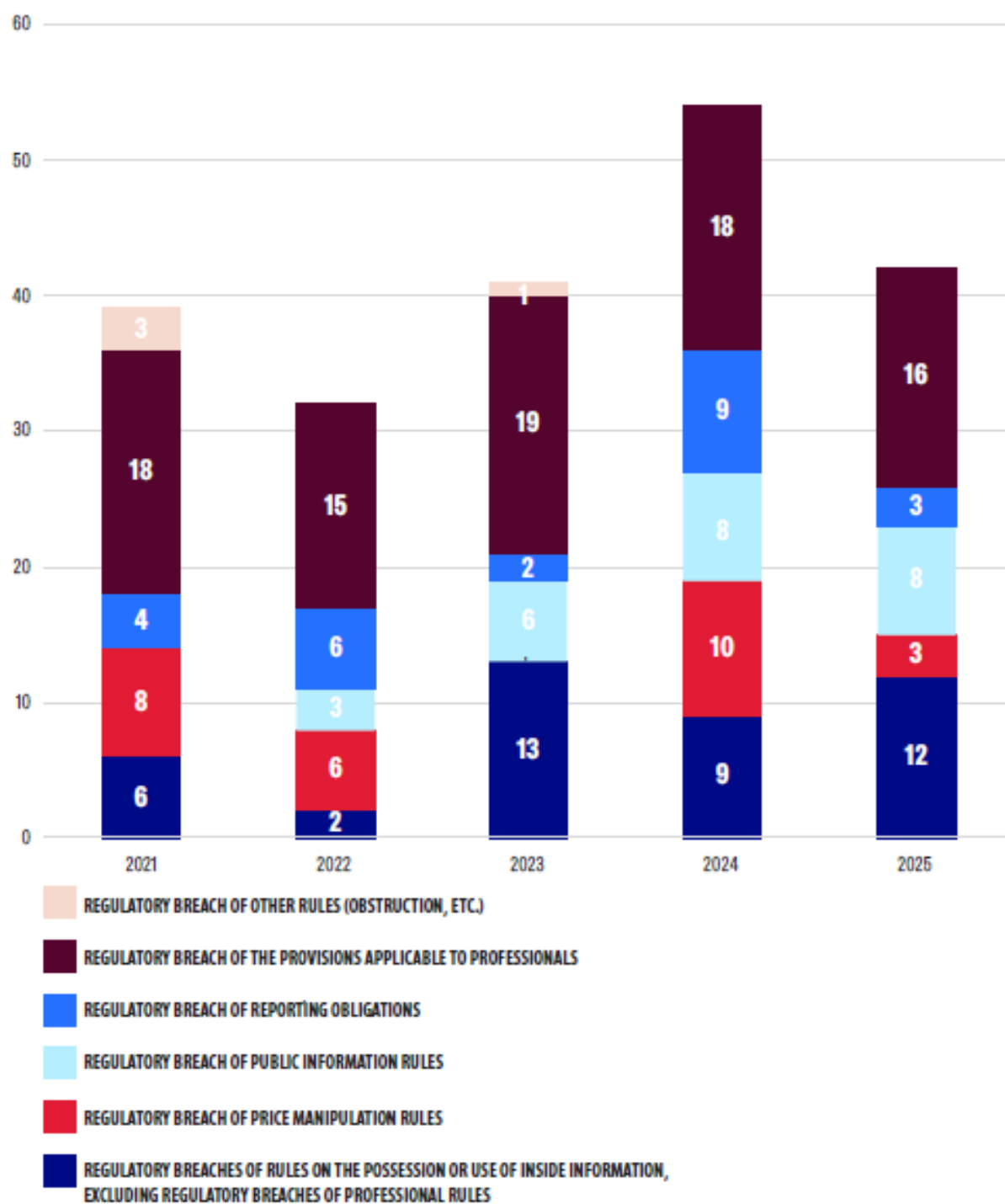
Find out more
about AMF
sanction decisions



GRAPH 9
Typology of the disciplinary sanctions imposed



GRAPH 10
Breakdown of regulatory breaches sanctioned



Examples of Enforcement Committee decisions handed down in 2025

Three natural persons sanctioned for price manipulation (SAN-2025-02 of 3 February 2025)

In its decision of 3 February 2025, the Enforcement Committee imposed fines totalling €590,000 on 3 natural persons for price manipulation involving 250 trading sessions and relating to the shares and warrants of 39 companies.

On this occasion, the Enforcement Committee confirmed its jurisdiction over these transactions involving shares and warrants that had these shares as underlying assets, carried out outside Euronext Paris trading hours and mainly on German trading platforms, provided that these shares were financial instruments admitted to trading on a platform located in France.

With regard to the objections, the Committee analysed the 250 trading sessions and identified a common pattern: one of the respondents placed orders on the shares in order to influence their price and, consequently, the price of the warrants, while this same person and the two other respondents carried out, in less than 30 minutes, transactions to buy and resell warrants in order to profit from price variations.

Thus, it considered that the decoy orders on the shares, combined with the concurrent transactions on the warrants, constituted a manipulative behaviour involving false or misleading information, the fixing of a price at an abnormal or artificial level, and the use of fictitious devices or any other form of deception or contrivance. This was the first time that the Committee characterize cross-product price manipulation between shares and warrants.

The Enforcement Committee found that the respondent who placed the decoy orders on the underlying shares had committed price manipulation because of these orders and the rapid and profitable round-trip trades on the warrants, and that the other two respondents had committed price manipulation because of their active and informed participation in the price manipulation.

This decision has been appealed to the Paris Cour d'Appel. One of the respondents' request for a stay of execution was rejected by order dated 16 July 2025.

Sanction of three natural persons and one legal entity for insider dealing (SAN-2025-04 of 5 May 2025)

In its decision of 5 May 2025, the Enforcement Committee imposed fines amounts ranging from €50,000 to €400,000 on the director of a listed company, her former husband and one of her friends for disclosing or using inside information, or recommending an investment on the basis of this information.

Having established the inside nature of the information, the Committee found that the messages in the file clearly showed the issuer's director was in possession of the inside information.

The Committee then reviewed all the indicators relating to the existence of plausible channels of transmission, the atypical nature of the transactions, their opportune timing, the haste with which they were carried out and the lack of convincing explanations to justify the transactions, and concluded that the director had passed on this inside information to her ex-husband, who had used it to acquire shares in the issuer

and passed it on to a friend, who in turn used it on behalf of his company. It also found that the director's ex-husband had recommended an investment to his partner on the basis of this information.

On this occasion, the Enforcement Committee reiterated that the transmission or use of inside information can be proven by any means, in particular by a body of serious, precise and concordant indications, and that the prosecution is not required to establish precisely how the information reached the person who used or transmitted it, on the double condition that these indications taken together unequivocally establish that the prosecuted person was in possession of the information and that the justifications asserted by this person do not allow the suspicions and indications on which the accusation is based to be ruled out.

This decision has been appealed to the Paris *Cour d'Appel*.

Ten people and entities fined for late disclosure of inside information, insider dealing or breaches of professional obligations (SAN-2025-06 of 9 July 2025)

In its decision of 9 July 2025, the Enforcement Committee imposed fines of €500,000 on an issuer and €250,000 on its director for the late disclosure of inside information and failure to comply with their obligations to maintain and update insider lists. It also fined between €15,000 and €400,000 eight people or entities for insider dealing. Among them, an FIA and its director were also sanctioned for breach of their professional obligations and permanently banned from exercising this activity.

For the first time, the Enforcement Committee had to rule on a procedural argument based on persons not having been informed of their right to remain silent when heard by the investigators. It rejected this argument, stating that such notification is only required once the persons have been formally implicated, i.e. from receipt of the statement of

objections. It also rejected two other procedural arguments alleging lack of impartiality on the AMF's part and breach of the *non bis in idem* principle.

On the merits, the Committee first examined breaches relating to the issuer's financial communications, for which it was alleged to have failed in its obligation to disclose four items of inside information as soon as possible. It found that between 2017 and 2020, these four items of inside information had been communicated to the market with a delay of between three weeks and six months, in breach of the issuer's obligation to disclose this inside information as soon as possible and attributed these breaches to the issuer's director.

The Committee also found that eight people or entities had committed insider dealing breaches in relation to two items of inside information concerning the issuer's projects, in which some of them had participated.

It also held the issuer liable for failing to maintain and update insider lists for these two items of inside information.

Finally, the Committee found that a FIA had breached its professional obligations in connection with the provision of advisory services relating to the issuer's shares during 2020 and that the breaches were attributable to its director. These breaches were reported to the Grenoble public prosecutor's office (see p. 127).

Several appeals have been lodged against this decision with the Paris *Cour d'Appel* and the *Conseil d'État*.

A Danish investment bank was fined for breaches of professional obligations committed by a French branch (SAN-2025-07 of 16 July 2025)

In its decision of 16 July 2025, the Enforcement Committee imposed a fine of €300,000 on a Danish investment bank for breaches of several professional obligations committed by a French branch.

The Danish investment bank had taken over a Dutch credit institution providing online brokerage services for financial instruments and operating in France through a branch.

The Committee found that the Danish investment bank, through this French branch, had breached in several respects its obligations to provide information and to act in a professional manner towards its clients. In particular, it held that its clients had not been properly informed of significant changes to the procedure for closing open positions in derivatives and to the calculation of margins, i.e. the sums required by the branch as collateral to be able to execute its clients' orders on futures financial instruments. It also found a failure to disclose several incidents affecting three securities transactions, even though these incidents were likely to affect the proper execution of client orders.

Finally, the Committee noted that the branch had provided its clients with incomplete information in response to their complaints about difficulties with outgoing PEA transfers. It also found that the branch had failed in its obligation to individually inform PEA holders, within the required timeframe, of the loss of eligibility of the securities held, in breach of the regulations governing the consequences for PEAs of the United Kingdom's withdrawal from the European Union.

This decision has not been appealed.

An asset management company fined for breaches of its professional obligations (SAN-2025-08 of 9 September 2025)

In its decision of 9 September 2025, the Enforcement Committee imposed a fine of €400,000 on an asset management company for breaches of its professional obligations.

The Committee first found that the asset management company had committed breaches in connection with the marketing of managed alternative investment funds (AIFs) and the management of club deals.

Among these breaches, the Committee found that the asset management company had not provided fund investors with complete, accurate and comprehensible information on the management fee retrocessions paid to its distributors, and had not carried out any controls to verify that these distributors complied with their obligation to monitor clients on an annual basis, contrary to its own activity programme and internal procedures. It also considered that two club deals set up by the management company should have been classified as 'Other AIFs' under the terms of Article L. 214-14 of the Monetary and Financial Code and that the management company had not appointed any asset management company, including even itself, or any depositary, as required by the regulations applicable to 'Other AIFs'. Consequently, it found that the asset management company had not acted in a professional manner serving the best interests of investors when managing.

The Committee then found that the asset management company's system for preventing conflicts of interest in the context of joint investment operations was deficient, and had not been implemented effectively. In particular, it noted the failure to identify joint investment operations by mapping conflicts of interest, the inadequacy of the management of conflict of interests for two joint investment operations and the absence of measures to prevent potential conflicts of interest.

In addition, the Committee found that the asset management company did not have a complete and operational procedure for valuing real estate assets, in particular, it had not specified the different valuation methods applicable to each type of real estate asset, and had not formalised the work carried out by the independent internal valuer for four assets. It further found that the management company had not selected the external experts responsible for valuing the real estate assets, nor supervised their contractual relationships with them in accordance with its own internal procedures, nor ensured that their services were monitored and periodically evaluated in accordance with its selection and evaluation procedure.

Finally, the Committee held that the management company's anti-money laundering and combating the financing of terrorism (AML/CFT) procedure and its AML/CFT risk map were neither precise nor operational, and that insufficient due diligence had been performed on both the liabilities and assets of the funds under management.

This decision has not been appealed.

Sanction of a depositary for breaches of its professional obligations (SAN-2025-12 of 17 December 2025)

In its decision of 17 December 2025, the Enforcement Committee imposed a fine of €3.5 million and a warning on an investment fund depositary for several breaches of its professional obligations.

The Committee considered that the depositary, acting for seven UCITS, had not carried out sufficient controls over the systems put in place by the asset management company to monitor the investment ratios applicable to these funds and to value the unlisted securities held by them.

It also found that the depositary had not properly checked the lawfulness of the investment decisions taken by the fund's asset management company, in particular their compliance with the investment constraints set out in their prospectus, with regard to debt securities and currency swaps, or with the regulatory investment constraint relating to the bond holdings ratio limiting a UCITS' holdings of debt securities from a single issuer to 10%.

This decision has not been appealed.

Appeals

Overview of appeals lodged by sanctioned persons and entities and decisions handed down by appeal courts

Of the 13 sanction decisions handed down by the Enforcement Committee in 2025, eight were the subject of at least one appeal, i.e. a rate of 62%.

The Chair of the AMF lodged a main appeal against one decision handed down in 2025. She did not lodge any cross-appeals.

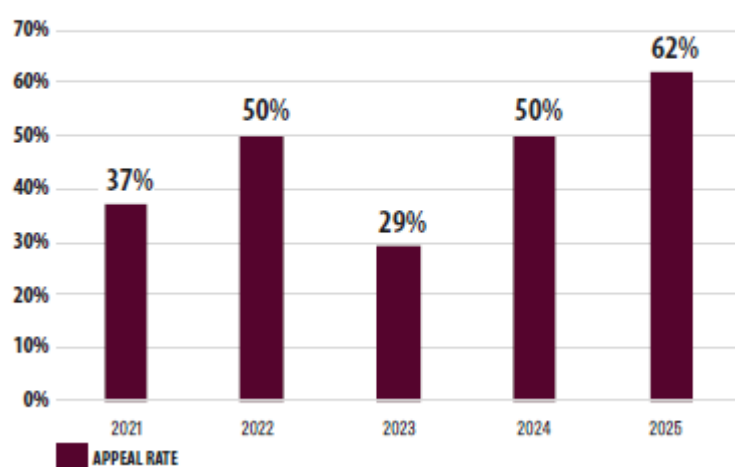
In 2025, the appeal instances handed down a total of 14 decisions:

- the *Conseil d'État* handed down four decisions on the merits, rejecting all the appeals lodged by the sanctioned persons and entities and upholding the main appeals lodged by the AMF Chair, one decision on an application for a temporary suspension injunction (rejecting the application), and one decision to refer a priority issue of constitutionality;

- the Paris *Cour d'Appel* handed down two orders on staying execution (dis-missing the applications), one ruling noting an applicant's withdrawal, one ruling referring three questions to the Court of Justice of the European Union for a preliminary ruling, three rulings on the merits (one finding the appeal inadmissible and two dismissing the appeals of the sanctioned parties, including one also dismissing the cross-appeal lodged by the Chair and reducing the fine from €10,000,000 to €9,920,000);
- the *Cour de Cassation* handed down one judgment on the merits dismissing the appeal lodged by the applicants.

In addition, *the Conseil Constitutionnel* has also issued one decision ruling on priority issue of constitutionality (decision No. 2025-1164 QPC of 26 September 2025). It found the second sentence of Article L. 621-15 IV of the Monetary and Financial Code, as

GRAPH 11
Rate of appeal by decision



amended by law No. 2023-171 of 9 March 2023, unconstitutional, insofar as it did not provide for respondents to be informed of their right to remain silent during hearings before the AMF Enforcement Committee.

By decision of 24 June 2025, the *Conseil d'État* referred a priority issue of constitutionality (QPC) to the *Conseil Constitutionnel* in which the applicants challenged paragraphs I and IV of Article L. 621-15 of the Monetary and Financial Code for not providing that the respondent in sanction proceedings must be informed of their right to remain silent, whether at their hearing before the rapporteur or at the hearing before the Enforcement Committee, even though their statements may be used against them in the proceedings. As a result, they argued, the disputed provisions infringed the rights guaranteed by Article 9 of the Declaration of the Rights of Man and of the Citizen of 26 August 1789, in particular the principle that no one is bound to accuse themselves, from which the right to remain silent derives.

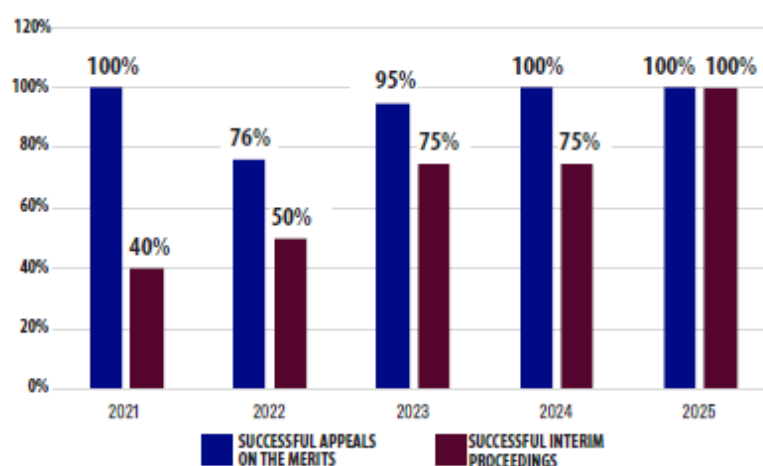
The *Conseil Constitutionnel* first ruled that the QPC related solely to the

second sentence of paragraph IV of Article L. 621-15 of the Monetary and Financial Code and not to paragraph I of this article, which merely provides for the appointment of the rapporteur without specifying how proceedings before the rapporteur are to be conducted.

Having noted that the contested provisions of paragraph IV require that no sanction may be imposed by the Enforcement Committee without the person or entity concerned or their representative having been heard or duly summoned, but do not provide that the respondent person or entity be informed of their right to remain silent, it held that: 'When heard by the Enforcement Committee, a respondent person or entity may be led, through their statements, to acknowledge the breaches of which they are accused. In addition, the very fact that they are being heard may lead them to believe that they do not have the right to remain silent.'

It therefore considered that the provisions in question, which did not provide

GRAPH 12
AMF success rate* for appeals on the merits and interim measures
(excluding appeals by the AMF Chair)



* For the calculation of these percentages, rectification decisions relating solely to the quantum of fines that do not set aside the objections are deemed to be successful appeals.

that the respondent person or entity or their representative be informed of their right to remain silent, failed to meet the requirements of Article 9 of the 1789 Declaration and therefore declared the second sentence of paragraph IV of Article L. 621-15 of the Monetary and Financial Code unconstitutional on this basis.

Finally, it specified that the provisions in question, in their disputed wording, are no longer in force, and that this declaration of unconstitutionality may be relied upon in proceedings brought as of the date of publication of its decision and not subject to a final decision.

On the other hand, the *Conseil Constitutionnel*, ruling on other priority issues of constitutionality (decision No. 2025-1128 QPC of 21 March 2025) declared the first paragraph of Article L. 621-12 of the Monetary and Financial Code (CMF), as amended by order No. 2019-964 of 18 September 2019, to be compliant with the Constitution, as notification of the right to remain silent is not required at the stage of a home search operation by AMF investigators.

For more details on this decision, please refer to the chapter on 'Investigations and inspections' (see p. 127).

Examples of decisions handed down by the appeal instances

***Conseil d'État* Nos 471548 and 471744 of 13 June 2025**

In a decision dated 13 June 2025, the *Conseil d'État* dismissed the appeals lodged against the AMF Enforcement Committee's decision of 30 December 2022, which had sanctioned a UK asset management company and two of its directors for several regulatory

breaches committed in the management of French UCITS in connection with investments in financial instruments. The Enforcement Committee had imposed a fine of €75 million and a reprimand on this asset management company, and a fine of €15 million and a five-year ban on acting as manager or director for one of two directors, and a fine of €3 million and a reprimand for the other.

The *Conseil d'État* upheld the Enforcement Committee's jurisdiction to sanction the management company and its directors for regulatory breaches committed in the management, in France, of UCITSs authorised under Directive 2009/65/EC, where the asset management company was established in another EU Member State at the time of the facts. It specified that the fact the management company was no longer established in a EU Member State at the date on which the sanction was imposed, as a result of the United Kingdom's withdrawal from the European Union, did not affect the Committee's jurisdiction, in the absence of contrary legislative or regulatory provisions, which is assessed as at the date of the alleged acts and not at the date of the sanction decision.

The *Conseil d'État* also rejected the applicants' argument that the composition of the Enforcement Committee was irregular in that it included a member of the *Conseil Supérieur de la Magistrature*, that this member was, at the date of the contested decision, an honorary member and no longer a member of the *Cour de Cassation* and, finally that, in 2019, this member had sat on the panel on which the Enforcement Committee had imposed a sanction on the parent company of the sanctioned management company, in breach of the principle of impartiality.

The *Conseil d'État* held that the provisions of the Organic Law of 5 February 1994 on the *Conseil Supérieur de la Magistrature*, relied on by the applicants, were intended solely to govern situations of incompatibility of the members of the *Conseil Supérieur de la Magistrature* and had no bearing on the scope of the obligations arising, for the members of the Committee, from the Law of 20 January 2017, which had not been disregarded. Secondly, it pointed out that the fact that a member of the *Cour de Cassation* appointed in such capacity as a member of the Committee loses this capacity during their term of office due to retirement does not prevent them from retaining their duties until expiry of their term of office. Finally, it considered that the fact that this member was involved in a previous case involving the parent company of the sanctioned management company was not in itself likely to call into question the lawfulness of the Committee's composition.

The *Conseil d'État* also rejected the applicants' argument that they had not been notified of their right to remain silent. It specified that this right does not apply during inspections or investigations carried out by the AMF prior to a statement of objections, and that the failure to provide information about this right during the sanction proceedings is not likely to render the proceedings unlawful when the sanction is not based in a decisive manner on comments made during the hearing before the rapporteur or before the Enforcement Committee.

In addition, the *Conseil d'État* confirmed that the Committee's objections were well-founded, and that the breaches were indeed attributable to the two sanctioned directors, based solely on the combination of Articles L. 621-9 et L. 621-15 of the Monetary and Financial Code for the first time.

Finally, the *Conseil d'État* upheld the well-founded nature of the sanctions imposed, reaffirming that the proportionality of the sanctions imposed to the breaches committed and to the financial situation of the person or entity sanctioned is assessed as at the date the sanction is imposed, and that only a reversal of the sanction can justify taking into account the applicant's situation on the date the court hearing the appeal rules.

Paris *Cour d'Appel*, RG 21/11889 of 25 September 2025

In a ruling of 25 September 2025, the Paris *Cour d'Appel* dismissed the cross-appeal lodged by the AMF Chair and the appeals lodged by a company, its director and a member of its board of directors against the Enforcement Committee's decision of 28 April 2021, except as regards the sanction imposed on the company, which it reduced by €80,000, from €10 million to €9.920 million.

The Committee had imposed fines of between €100,000 and €10 million on 2 natural persons and 3 legal entities for insider dealing breaches relating to several items of inside information and failures to comply with reporting obligations. In particular, it had imposed a fine of €10 million on a company that was the majority shareholder of the issuer concerned by the insider dealing, and fines of €6 million on its director and €2 million on one of its board members.

The Paris *Cour d'Appel* began by rejecting all the procedural issues and arguments raised by the applicants in a very detailed reasoning, and ruled that the unfairness argument was inadmissible as it was out of time, considering that there was no accumulation of errors likely to justify setting aside the decision.

With regard to the substantive arguments put forward by the company and its director sanctioned for insider dealing, the *Cour d'Appel*, having confirmed that the information constituted inside information, ruled that the director, who was a primary insider by virtue of her status as a member of the board's issuer, had not rebutted the presumption of improper use of the information in that capacity, since the transactions at issue had been carried out under a non-discretionary management mandate, given her interference in the agent's management. It concluded that by having her company acquire the issuer's shares through an agent, she had used inside information on behalf of a third party within the meaning of Article 622-1 of the AMF General Regulation. The Court also confirmed that this regulatory breach was attributable to the company on whose name and behalf it was committed, after stating that in the event of insider dealing breaches, the behaviour of a company cannot be dissociated from that of its bodies or representatives when the latter, as holders of inside information, have exercised on its behalf an influence on the decision to acquire financial instruments concerned.

The *Cour d'Appel* also held that the company, as an entity 'closely linked' to a board member of the issuer, was required to report transactions in this issuer's shares, but noted that a 2006 AMF position containing a footnote with an erroneous interpretation of the applicable provisions might have led the company to believe it was not required to make such reports, which the Court took into account in its assessment of the sanction.

On the other hand, it dismissed the AMF Chair's cross-appeal concerning another insider dealing breach that the Committee had dismissed, and held that although the company's director, a primary insider, was in possession of the inside information, the transactions at issue were fully within the scope of a management mandate with no evidence of interference in its execution in relation to these transactions, such that the presumption of improper use against her had to be dismissed.

With regard to the substantive arguments put forward by a company's board member sanctioned for insider dealing breaches, the *Cour d'Appel* held, having confirmed that the information was inside information, that the natural person who sat as a permanent guest on the board of directors of an issuer, appointed in his capacity as representative of a company, had the status of a primary insider and that, given the chronology of events, had therefore made an investment recommendation on the basis of inside information.

Finally, it upheld the amounts of the fines imposed by the Committee, with the exception of the fine imposed on the company, which it reduced from €10 million to €9.92 million to take account of the possibility of divergent interpretations of the reporting obligations arising from the 2006 AMF position referred to above.

The respondents have appealed this ruling to the *Cour de Cassation*.



Measuring the AMF's performance

A person wearing a blue shirt is seen from the side, looking out of a large window. The window reflects the city skyline, including a prominent building with a clock tower. The scene is brightly lit, suggesting daytime. The background of the entire page is a blurred cityscape with a red and blue gradient at the bottom.

— **AREA 1**
**An exacting regulator for
a leading European
financial centre** p. 152

— **AREA 2**
**Decisive international
action** p. 156

— **AREA 3**
**Protecting retail
investors** p. 157

— **AREA 4**
**Promoting more
sustainable finance** p. 158

— **AREA 5**
**Supporting
innovation** p. 160

— **AREA 6**
**An attractive and effective
authority serving the
general interest** p. 161

AREA 1.

A demanding regulator for a leading European financial centre

Objective: ensuring the proper functioning of the markets and that investors are duly informed

As a regulator, the AMF's role is to ensure that investors are properly informed, both by guaranteeing the quality of the information disseminated and by improving access to clear and understandable information. Two indicators have been defined to monitor the attainment of this objective.

1. Review rate for compartment A financial disclosures

The financial disclosure review indicator reflects the AMF's efforts to ensure that investors receive reliable information. This indicator reflects the

AMF's annual verification rate of the financial disclosures made by issuers in compartment A, i.e. those with the highest market capitalisation.

The target review percentage is set at 50% from 2023 to 2027, which represents the review of around 1,300 communications for each of the years concerned. In 2025, of the 2,051 press releases filed by compartment A issuers, 1,595 were reviewed by the AMF, representing an annual review rate of 77.77%, significantly above the annual target of 50%.

Unit	2023 Target	2023 Achieved	2024 Target	2024 Achieved	2025 Target	2025 Achieved	2026 Target	2027 Target
Percentage	50%	56%	50%	78%	50%	78%	55%	55%

Reminder

The following indicators have been published in the *Jaune Budgétaire* appended to the 2026 Finance Act. They have been drawn up by the AMF to assess its performance and address transparency issues. They form part of the AMF's monitoring system and reflect its results. Each strategic area has its own objectives linked to defined indicators. These assess the AMF's performance, its activities and the degree of achievement of these objectives. The indicators are presented with specific targets, against a universe of limited resources and the expansion of the regulator's remit, from 2023 and annually until 2027.

2. Number of subscribers to the AMF's LinkedIn account

To guarantee access to clear, high-quality information, and with a pedagogical perspective, the AMF relays its information over its social media accounts, particularly LinkedIn for information aimed at professionals.

With 30,357 more subscribers than in 2024, the increase in the number of subscribers to the AMF's LinkedIn account has exceeded forecasts, with

an increase of more than 56% between 2024 and 2025.

In 2025, the increase in the number of subscribers to the AMF's LinkedIn account was primarily due to the regular publication of targeted content and the sharing of publications from the AMF website that are of interest to the community.

Unit	2023 Target	2023 Achieved	2024 Target	2024 Achieved	2025 Target	2025 Achieved	2026 Target	2027 Target
Number	+20,300	+29,535	+18,100	+19,372	+16,300	+30,357	+18,260	+18,260

Objective: enhancing the attractiveness of the Paris financial centre through high-quality supervision

In order to enhance the attractiveness of Paris as a financial centre, the AMF must implement competitive supervisory arrangements that contribute to the integrity of the financial markets. Three indicators monitor the attainment of this objective:

3. Average time for initial investment funds authorisations

The average time taken by the AMF to issue fund authorisations reflects the competitiveness of the AMF in comparison with its counterparts.

The 2025 target for issuing fund authorisation had been set at 18 days with a view to making the making the financial centre more attractive. Ultimately, in 2025, the average authorisation time for a fund was 15 days, three days less than targeted. The examination time is measured from the date on which the complete version of the initial authorisation application is submitted to the DGA to the date on which the application is approved by the Board. Any period(s) during which additional information requested from the AMCs is awaited are deducted from this period.

Unit	2023 Target	2023 Achieved	2024 Target	2024 Achieved	2025 Target	2025 Achieved	2026 Target	2027 Target
Working days	20	19	20	17	18	15	18	18



4. Average investigation completion time

The quality of the AMF's supervision is demonstrated, in part, by its ability to conduct investigations efficiently.

The 2024 and 2025 average time targets were raised to 21 months in anticipation of new operational and legal constraints. In the end, the average time taken to complete the investigations was longer than expected. In 2025, it took an average of 24 months to

complete an investigation, three months longer than anticipated. This is due to the fact that nine investigations were completed within a period of between four and 35 months, depending on the complexity of the case (technical nature, number of protagonists and regulatory breaches) and the difficulties encountered (time taken to cooperate with foreign counterparts, respondent cooperation, typology and volume of data collected, which posed new technical challenges).

Unit	2023 Target	2023 Achieved	2024 Target	2024 Achieved	2025 Target	2025 Achieved	2026 Target	2027 Target
Month	20	17	21	19	21	24	21	21

5. Proportion of supervisory actions carried out on market intermediaries presenting a medium or high risk

Relating to financial market integrity, this indicator is a guarantor of a risk-based approach to supervision, and one that has been refocused on the most important issues and which leads the AMF to increasingly concentrate its efforts on the most important and/or risky intermediaries.

Despite the workload inherent to a larger number of authorisation applications raising more complex issues, the monitoring of the implementation of new regulations and exchanges with American and European regulators, the 2025 target of 74% was exceeded due to the efforts undertaken to focus proactive individual or thematic supervisory work on the riskiest market participants.

Unit	2023 Target	2023 Achieved	2024 Target	2024 Achieved	2025 Target	2025 Achieved	2026 Target	2027 Target
Percentage	70%	70%	72%	79%	74%	77%	75%	75%

AREA 2.

Decisive international action

Objective:targeting theAMF's presence on European and international bodies

The AMF participates in international standard-setting and convergence work, giving priority to that of ESMA. The indicator set to monitor the attainment of this objective is:

6. participation rate in ESMA groups

The AMF's participation in ESMA groups reflects its involvement in high-stakes work.

With a higher than expected participation rate in ESMA groups in 2025, the AMF has confirmed its involvement in European work.

Unit	2023 Target	2023 Achieved	2024 Target	2024 Achieved	2025 Target	2025 Achieved	2026 Target	2027 Target
Percentage	70%	70%	72%	79%	74%	77%	75%	75%



AREA 3.

Protecting retail investors

Objective: strengthening oversight and tools in an increasingly digital and open financial world

Protecting retail investors is one of the AMF's key missions. This is reflected, in particular, through identifying and preventing financial scams. The following indicator has been set up to monitor the AMF's performance in relation to this objective:

7. Change in the number of website addresses blocked by court order

New practices in the marketing and promotion of financial products call for

particular vigilance, especially on the Internet. The AMF's ability to block fraudulent websites reflects its commitment to this objective.

In 2025, 135 website addresses were blocked by court order (on the basis of Article L. 621-13-5 of the Monetary and Financial Code). In 2024, the AMF had 117 addresses blocked by the judicial authorities. This 15% increase can be explained by the dedicated work of our staff.

Unit	2023 Target	2023 Achieved	2024 Target	2024 Achieved	2025 Target	2025 Achieved	2026 Target	2027 Target
Number	+6%	89 (35%)	+7%	117 (32%)	+5%	135 (15%)	+2%	+2%

AREA 4.

Promoting more sustainable finance

Objective: guaranteeing the quality of non-financial information

In 2018, the AMF made sustainable finance one of its priorities. The AMF's inspection and review activities are designed to help market participants implement the European regulatory framework and ensure that the information they provide is accurate and of high quality. Two indicators have been defined to ensure the attainment of this objective is monitored.

8. Proportion of inspections that look at sustainable finance

Carrying out inspections that look at sustainable finance enables the AMF to ensure that market participants properly understand and apply the legislative and regulatory provisions in force, and to assess the risk of greenwashing.

Between now and 2027, one or two SPOT inspection campaigns will be carried out each year, to continue to support the financial centre. Traditional inspections will be carried out at the same time, and will be stepped up at the end of the period following the educational phase, with a view to enforcement action where necessary.

In 2025, the AMF systematically included work on sustainability preferences into five traditional inspections of financial investment advisors (FIAs), one inspection of an FIA industry group and 15 document-based inspections of FIAs.

As regards investment services providers (ISPs), the AMF now systematically includes a component on sustainability preferences in its inspections on suitability (two inspections in 2025). One SPOT campaign has also been launched on compliance in the HR processes of ISP distributors, providing an insight into the training and certification system for sustainable finance.

The proportion of inspections covering sustainable finance was up in 2025 (38%) compared with 2024 (36%), and the target (27%) was significantly exceeded, due in particular to the systematic treatment of this topic in inspections of FIAs and their groups, and to a SPOT campaign covering this topic.

Unit	2023 Target	2023 Achieved	2024 Target	2024 Achieved	2025 Target	2025 Achieved	2026 Target	2027 Target
Percentage	18%	22%	25%	36%	27%	38%	28%	28%



9. Review rate of non-financial information statements (sustainability reports)

Non-financial information statement (NFIS) reviews should ensure that market participants disseminate reliable, high-quality information.

Of the 371 issuers required to file an annual report with the AMF in 2025, 237 must publish a NFIS. As at 31 December 2025, 51 NFIS reviews had been completed, representing an annual review rate of 21.2%. The 20% target was exceeded.

Unit	2023 Target	2023 Achieved	2024 Target	2024 Achieved	2025 Target	2025 Achieved	2026 Target	2027 Target
Percentage	18%	24%	18%	25%	20%	22%	18%	20%

AREA 5.

Supporting innovation

Objective: implementing the new European regulation on crypto-assets

Since 2019, the AMF has been working to promote a regulatory framework that is tailored to the innovation ecosystem and the potential risks it may generate, successively within the national framework set by the PACTE law (mandatory simple registration from 2019 to 2023, mandatory enhanced registration for new entrants in 2024, and optional authorisation), and then under the European framework laid down by the European MiCA and DORA Regulations. The attainment of this objective is reflected by the progress of the following indicator:

Proportion of DASPs subject to an enhanced regulatory and supervisory framework⁴⁹

The regulation and supervision of digital asset services providers (DASPs) is a key issue in the AMF's ability to ensure the implementation of the new European crypto-asset regulations.

Since 1 January 2025, the AMF has been granting authorisations under the MiCA Regulation. By the end of 2025, only 11 DASPs had obtained MiCA authorisation during 2025, and three others had previously obtained enhanced registration and/ or an optional PACTE authorisation in 2024.

Of the 90 DASPs still registered under the PACTE regime, only 30% have submitted an application to the AMF for MiCA authorisation, 40% will not apply to the AMF for authorisation (because they have ceased operations or are established in another EU country and are applying for authorisation in that country) and 30% have not yet indicated their intentions.

While the examination of applications that could not result in a favourable decision in 2024 has enabled the market participants concerned to make progress in their preparations for MiCA authorisation, the fact remains that the number of DASPs that currently have a simple registration and that will have to obtain MiCA authorisation or cease their activity by 1 July 2026 is significantly higher than anticipated. In a public communication dated 5 February 2026, the AMF urged DASPs that intended to continue operating but that had not yet submitted an application for authorisation to do so as soon as possible, while still ensuring the quality of the application submitted. It also invited DASPs that do not intend to continue their business to implement an orderly winding-down plan and to carry out only those operations that are strictly necessary to clear their situation, from 30 March 2026 at the latest.

(50) In the numerator, this indicator includes DASPs that had obtained enhanced registration and/or optional authorisation under PACTE and DASPs that had obtained MiCA authorisation, while in the denominator it includes all DASPs and CASPs.

Unit	2023 Target	2023 Achieved	2024 Target	2024 Achieved	2025 Target	2025 Achieved	2026 Target	2027 Target
Percentage	5%	1%	25%	6.4%	50%	14%	100%	100%

AREA 6.

An attractive, high-performance authority serving the general interest

Objective: confirming the AMF's status as an exemplary and attractive public employer

In a very competitive employment market for its skill sets, the AMF must strive to retain its staff. In order to attain this objective, the following indicator has been set.

Three-year employee retention rate

The increase in the employee retention rate in recent years shows that the AMF has put effective retention levers in place.

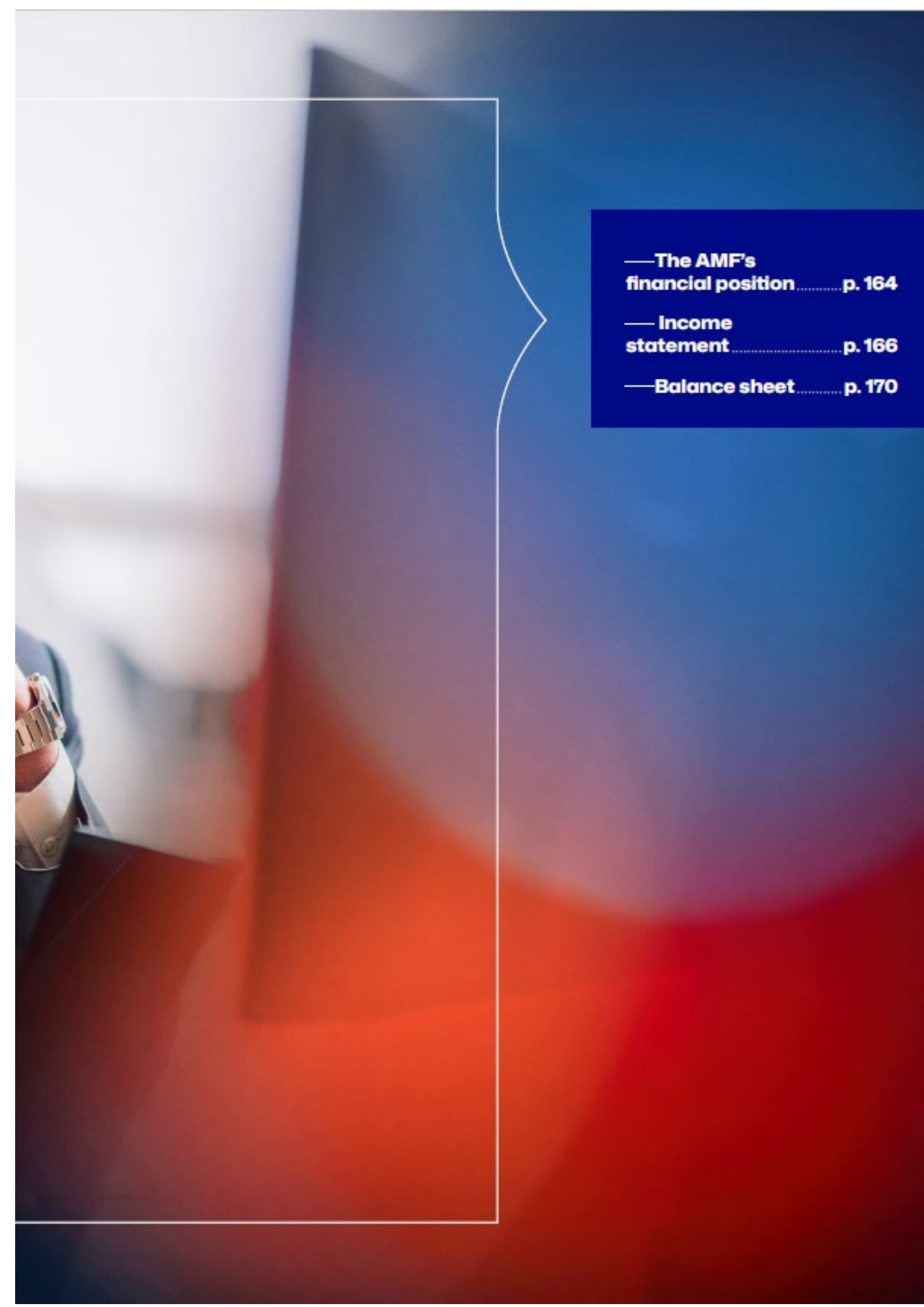
The AMF's human resources strategy is based on a number of levers to encourage employee loyalty, including professional training, internal mobility, improvements to quality of life at work, the CSR approach and managerial quality.

In 2025, the AMF had a retention rate of 85% for employees hired in 2022, which is better than the target (75%). Loyalty-building measures - mobility programmes, individual career and workload monitoring - set us apart this year.

Unit	2023 Target	2023 Achieved	2024 Target	2024 Achieved	2025 Target	2025 Achieved	2026 Target	2027 Target
Percentage	75%	66%	75%	81%	75%	85%	75%	75%

A professional business meeting scene. A man with a beard and dark hair, wearing a dark suit and a patterned tie, is seated at a table. He is looking towards a woman on his left, who is partially visible in profile. He has his hand resting on his chin, holding a pen. The background is bright and out of focus, suggesting a window or a well-lit office space. The overall tone is serious and professional.

Presentation of the financial statements for 2025



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financial position** **p. 164**

— **Income
statement** **p. 166**

— **Balance sheet** **p. 170**

The AMF's financial position

2025 results

After taking into account a repayment of €7.47 million to the general State budget, the AMF closed the 2025 financial year with a minimal net loss of €0.66 million, a clear improvement on the deficit of €3.83 million reported in 2024.

Resources from contributions by regulated market participants continued to rise, reaching €137.10 million compared with €131.40 million in 2024, against a backdrop of an increase in the revenue cap from €121 million to €126 million in 2025.

At the same time, operating expenses, excluding repayments, and depreciation, amortisation and provisions, amounted to €117.77 million, an increase of €4.04 million compared with 2024, are primarily comprised of staff costs (+€2.65 million), marked by an increase of 13 full-time equivalent employees (528.9 FTEs in 2025) and taxes (+€0.93 million) following confirmation in 2024 that the Réaumur and Vivienne buildings will not be subject to property tax from 2022.

Finally, the financial situation has improved significantly: the contribution of €10.42 million to working capital has enabled us to significantly reduce the accumulated deficit of previous years. Thus, working capital, which is still negative, rose from -€19.03 million in 2024 to -€8.61 million in 2025.

2026 budget outlook

The AMF implements a multi-year strategy, supplemented by annual action and supervisory priorities that guide its work throughout the year. For the period 2023-2027, the AMF drew up its 'Impact 2027' strategic orientations in an environment marked by a significant expansion of its remit, due to the growth of the Paris financial centre and the entry into force of structuring European directives.

These orientations aim to position the AMF as a high-impact regulator, committed to both drafting and implementing legislation and to supervising market participants.

The strategic orientations are broken down into six priorities:

- two cross-cutting areas: an exacting regulator for a leading European financial centre and decisive international action;
- three thematic areas: protecting retail investors, promoting more sustainable finance and supporting innovation;
- one core foundation: the AMF, an attractive and effective authority serving the general interest.

Each of these priorities is broken down into key actions, the implementation of which is monitored by a dedicated steering system and accompanied by precise and public indicators.

As part of a general policy of freezing expenditure, the AMF's resource cap (€126 million) and employment cap (545 FTEs) have been maintained at their 2025 levels in the 2026 budget.

In the absence of cash reserves and given the commitments made, expenditure will continue to be adjusted to the level of net revenue, after repayment to the State budget.

Against this backdrop, the 2026 budget has set income net of repayments to the State budget at €127.57 million, comprising:

- contribution revenue estimated at €140.46 million, including a forecast repayment of €14.46 million to the general State budget;
- miscellaneous revenue corresponding to expense recharges for €1.57 million;
- current operating expenses of €123.46 million euros (excluding repayments, charges to depreciation and amortisation, and provisions) to meet the challenges of the new missions entrusted to the AMF.

The expected net loss would then be -€7.69 million compared with -€0.66 million in 2025.

Investment will total €4.11 million. This will focus primarily on IT projects.

The construction of the 2026 budget is based on the paradigm aiming, on the one hand, to maintain a sustainable multiannual trajectory and, on the other hand, to consolidate a level of cash that meets ongoing operating requirements.

Multi-year expense optimisation plan

In 2025, the AMF set up a procurement planning process to define renewed procurement strategies, in particular by encouraging the grouping of purchases of the same nature. This approach helps to rationalise the number of contracts and suppliers and improve overall efficiency.

In addition, internal communication work has been carried out to promote the pooling of expenses, in compliance with the provisions of Article 21 of Law 2017-55 of 20 January 2017 on independent administrative authorities (AAIs) and independent public authorities (APIs).

A number of actions have been taken during the course of 2025 in this regard:

- new central procurement bodies have been identified: exchanges with new 'sector-specific' central procurement bodies have been initiated with a view to obtaining a complete overview of the offers immediately available on the market in order to meet the AMF's standard requirements;
- discussions with independent administrative and public authorities continued, in particular with a view to maintaining existing joint procurement groups: in collaboration with two other independent administrative or public authorities, the AMF set up a joint procurement group and worked on renewing the public contract for travel agency services. In addition, regular exchanges took place between the various AAIs/APIs on procurement practices;
- new Public Procurement Department
- (DAE) framework agreements have been identified: the AMF has joined several of the framework agreements proposed by the DAE, notably for IT intellectual services, and subscriptions to legal databases and the press.

Finally, targeted analyses have been carried out on small direct purchases in order to optimise the AMF's multi-year expenditure, with the aim of eventually defining levers for rationalisation.

Income statement

Operating income

2025 income, up by 7%, amounted to €148.16 million (€138.49 million in 2024). Excluding reversals of provisions, and financial and extraordinary income, income rose by 4.3% as compared to 2024 (€133.14 million) to €138.85 million.

Specific income (fees and contributions)

In 2025, AMF contributions amounted to €137.10 million, up from €131.40 million in 2024. These can be broken down as follows:

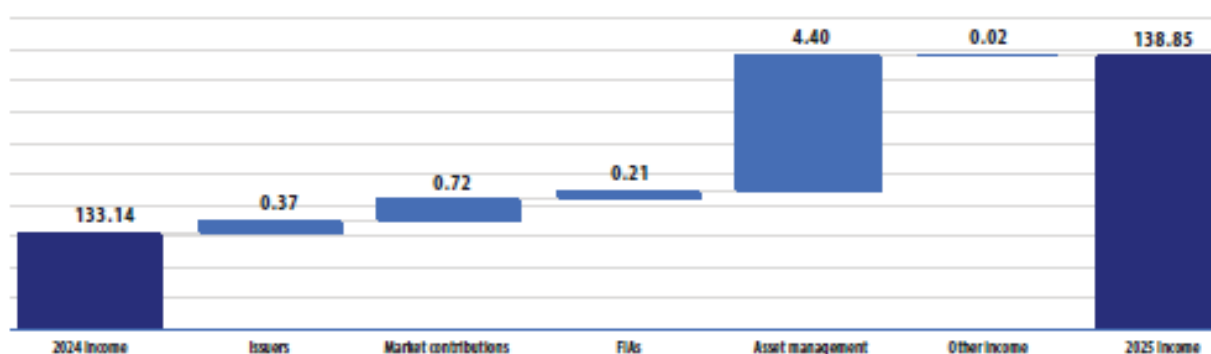
- €20.79 million (€21.28 million in 2024): contributions based on market capitalisation were down by 2.3%, as capitalisation had contracted compared with the end of 2024 given the loss of two obliged entities (126 in 2025 compared with 128 in 2024);

€11.93 million (€11.08 million in 2024): fees and contributions payable for the issue of financial instruments, the review of takeover bids and major holding notifications, which were up by 7.7%;

- €12.73 million (€12.12 million in 2024): contributions levied on the exercise of the 'dealing on own account' investment service, which was up by 5%;
- €89.37 million, including €69.06 million for the management service (€84.69 million, including €73.37 million for management in 2024): contributions levied on savings providers and products, up by 5.1%;
- €2.28 million (€2.23 million in 2024): contribution due by market infrastructures, based on operating income, up slightly by 2.5%.

GRAPH 13

Change in income between 2024 and 2025 (excluding reversals of provisions, and financial and extraordinary income)



The breakdown of the fees and contributions recorded in 2025 is as follows:

- contributions from savings providers and products: 74.47% compared with 73.67% in 2024;
- contributions from financial operations: 23.87% compared with 24.62% in 2024;
- contributions paid by market infra-structures: 1.67% compared with 1.71% in 2024.

Other income

The total of this income, for a sum of €1.75 million (€1.73 million euros in 2024) is from:

- the organisation of study and training days for €0.97 million;
- billing for data relating to investment funds for €0.20 million;

- the invoicing of operating costs for €0.22 million (agreement with the Belgian regulator FSMA/AMF);
- the payment from the Agence de l'Environnement et de la Maîtrise de l'Energie (ADEME) of €0.22 million for the LIFE project;
- non-allocated revenue affected by the four-year statute of limitations for €0.15 million euros.

Reversals of depreciation, amortisation and provisions

These amounted to €8.62 million (€5.35 million in 2024) and included reversals of impairment on receivables and reversals of operating provisions.

Operating expenses⁵⁰

Up by 4.1%, these expenses amounted to €148.10 million (142.32 million euros in 2024). The change is mainly due to the increase in staff costs, including incentive scheme and social security expenses (+€2.65 million), taxes (+€0.93 million) following confirmation

in 2024 that the Réaumur and Vivienne buildings will not be subject to property tax from 2022, and the provision created for contributions not yet collected at the year-end (+€3.55 million).

(51) The implementation of the cap on the fees allocated to operators provided for in Article 46 of the 2012 Finance Law, set at €126 million for the AMF in 2025, led to an expense of €7.47 million.

Purchases of goods, and purchases of materials and supplies not taken into inventory

At €0.84 million (€0.81 million in 2024), they are up by 4.1%.

Other purchases and external expenses

At €37.67 million (€36.71 million in 2024), these are up by 2.6%.

Leases (real estate and movable property) and leasing expenses

At €10.57 million (€9.33 million in 2024), this item has risen by 13.2% as a result of the accounting reclassification of certain licences under this item to better reflect their nature.

Servicing, repairs and maintenance

At €1.66 million (€3.51 million in 2024), the 52.8% reduction is due to the accounting reclassification of certain licences to better reflect the nature of the expenditure.

Documentation, conferences and seminars

At €2.07 million (€1.90 million in 2024), this item rose by 8.6% due to the computer workstations used to access

financial information feeds and databases, and the seminars and conferences organised by the AMF.

Remuneration of intermediaries and fees

At €1.22 million (€1.27 million in 2024), this item is down by 4.2%.

Miscellaneous

This item, which encompasses a range of expenditure, amounted to €21.90 million (€20.44 million in 2024) with an increase of 7.1%. It mainly comprises:

- outsourced IT services, essentially relating to project support and development (€14.09 million), an increase of €0.89 million;
- contributions paid to other bodies of €3.32 million (including ESMA: €3.17 million), up by €0.44 million primarily due to the increase in the ESMA contribution (+€0.47 million);
- the other most significant items are non-IT services (€2.86 million) (buildings, human resources, communication), professional fees (€0.68 million) and external training (€0.60 million).

Other expenses

These amounted to €8.03 million (€9.41 million in 2024) and included in particular:

- the expense for a sum of €7.47 million (€7.76 million euros in 2024) under Article 46 of the 2012 Finance Law relating to the capping of the fees allocated to the AMF (capped at €126 million in 2025 compared with €121 million in 2024) and calculated on the contributions collected in 2025.
- cancellations of collection orders from previous financial years amounting to €0.18 million, made following the processing of contributor claims;

Staff costs

In 2025, the average full-time equivalent (FTE) workforce rose from 532 in 2024 to 547 (including 2.8 fixed-term contracts), an increase of 15.1 FTEs.

Staff remuneration

Staff remuneration amounted to €46.32 million (€44.75 million in 2024), i.e. an increase of 3.5%, mainly due to:

- salary increases of €1.34 million, reflecting the impact of the growth in the workforce and to a lesser extent individual rises;
- an increase of €0.23 million in other remuneration, including bonuses and compensation for unused leave.

Social security contributions, pension fund contributions, employer's contributions and miscellaneous expenses

At €20.92 million (€20.19 million in 2024), these have risen by 3.6% in line with the rise in remuneration and incentive scheme bonuses.

Employee incentive scheme

This amounted to €3.05 million (€2.70 million in 2024), an increase of 12.9% compared with 2024, in line with the results of the performance indicators.

Taxes, duties and similar payments

This item amounted to €8.39 million, compared with €7.46 million in 2024. It is primarily comprised of payroll tax (€6.05 million) and transport tax (€1.39 million). The increase of €0.93 million is due to confirmation from the tax authorities, in 2024, that the AMF was not subject to property tax from 2022, which had the effect of reducing expenses in 2024.

Depreciation, amortization and provisions

The annual depreciation and amortisation charge was €11.29 million (€9.56 million for intangible fixed assets and €1.73 million for tangible fixed assets).

Charges to operating provisions amounted to €11.57 million and were primarily comprised of:

- the provision for costs resulting from outstanding amounts to be recovered as at 31 December 2025 on receivables covered by Article L. 621-5-3 of the Monetary and Financial Code for €9.1 million;
- a provision of €1.66 million for the employer's contribution to the employee savings plan/employee retirement savings plan (PEE/PERCO);
- a charge for unemployment benefit of €0.33 million;
- a provision of €0.48 million euros for employee disputes.

Balance sheet

Balance sheet assets

Intangible fixed assets: €36.86 million

The €6.49 million reduction in the balance of intangible investments is explained by the application of French accounting standards for IT expenditure, leading to increased recognition as an expense and a corresponding reduction in the amounts capitalised. It also reflects a lower proportion of capitalisable projects, in favour of off-the-shelf solutions.

Tangible fixed assets: €8.06 million

This line reflects the conversion and fittings work under the real estate programme to create flex office workspaces carried out in 2022 and 2023.

Operating receivables: €9.78 million

The client receivables and related accounts line is primarily broken down as follows:

- €6.64 million in collection orders included in the accounting officer's records in 2025, but not settled;
- €2.76 million in collection orders from prior to 2025 that have not been settled.

Cash assets: €16.70 million

This item is comprised of bank and cash account balances.

Prepaid expenses: €2.42 million

This item is comprised of licences, maintenance contracts and subscriptions to technical documentation, spread over several financial years.

Reminder

The legal framework governing the accounts of the Autorité des Marchés Financiers (AMF) is set out in Articles R. 621-15 et seq. of the Monetary and Financial Code under which:

- the AMF's financial statements are drawn up in accordance with the rules of the general chart of accounts;
- the financial account is drawn up by the accounting officer and submitted by the Chair to the Board, which hears the accounting officer. It is approved by the Board. It is sent to the *Cour des Comptes* by the AMF Chair.

In accordance with the provisions of Articles 121-1 to 121-5 of the French General Chart of Accounts, the financial statements for the 2025 financial year have been prepared in accordance with principles that provide a true and fair view of the assets, financial position and profit or loss of the entity at the balance sheet date, and in accordance with the principles of comparability, regularity, fairness, prudence and consistency of accounting policies.

Balance sheet liabilities

Reserves: €19.31 million

The net accounting loss for the 2025 financial year of -€0.66 million has been charged to the institution's reserves:

- Reserves before charge: €19.97 million;
- Net accounting loss: -€0.66 million;
- reserves after charge: €19.31 million.

After charging the loss, the reserves stood at €19.31 million. They are down 3.3% on the previous year.

Provisions for liabilities and expenses: €17 million

Provisions for liabilities amounted to €0.99 million.

The provisions for charges for a sum of €16.01 million primarily relate to:

- pension and similar benefit obligations;
- back-to-work unemployment benefits;
- PEE/PERCO employer's contributions for the 2025 incentive scheme;
- the expense arising from the outstanding amounts to be recovered as at 31 December 2025 in respect of receivables covered by Article L. 621-5-3 of the Monetary and Financial Code.

Operating liabilities: €32.42 million

Trade payables and related accounts: this item corresponds to invoices not yet received by the AMF amounting to €8.46 million and invoices in the process of being paid at year-end amounting to €8.88 million. This item also includes the expense of €7.47 million to be paid resulting from the revenue cap of €126 million.

Tax and social security liabilities: this item, amounting to €15.09 million euros, includes the liability for leave to be paid (€5.79 million, including charges), the incentive scheme (€4.08 million, including charges), the variable portion of remuneration (€3.76 million, including charges), and amounts due to various social security bodies (€0.98 million).

Accounts payable for fixed assets: €1.90 million

These correspond to invoices from suppliers of fixed assets that have not yet been received for €1.64 million and, for €0.26 million, invoices in the process of being paid at year-end.

Other liabilities: €3.18 million

This item corresponds to suspense accounts, mainly for unidentified cash receipts. This is up by 55.8% on 2024.

AMF INCOME STATEMENT		
INCOME STATEMENT	2025 FINANCIAL YEAR	2024 FINANCIAL YEAR
OPERATING INCOME		
Specific income (contributions):	137,101,057	131,404,868
Contributions from operations and financial information	32,720,781	32,355,019
Contributions from savings providers and products	102,096,959	96,821,703
Contributions from market infrastructures	2,283,316	2,228,146
Other income (study days and conferences, databases, miscellaneous leases, sales of publications, etc.)	1,752,188	1,733,700
Reversal of provisions	8,617,235	5,350,883
TOTAL I	147,470,480	138,489,451
OPERATING EXPENSES		
Materials and supplies not taken into inventory	839,461	806,268
Other external expenses, of which:	37,673,794	35,705,487
General subcontracting	256,540	237,629
Leases (real estate and movable property), leasing expenses	10,569,777	9,334,146
Servicing and repairs, maintenance	1,660,243	3,514,774
Documentation, conferences and seminars	2,066,243	1,902,866
Remuneration of intermediaries and fees, external staff	1,218,696	1,272,755
Miscellaneous (insurance, missions and receptions, postage and telecommunications costs, sundries, etc.)	21,902,295	20,443,318
Other expenses	8,031,987	9,406,814
Taxes, duties and similar payments	8,393,235	7,463,724
Staff remuneration	46,320,115	44,751,602
Social security contributions, pension fund contributions, employer's contributions and miscellaneous expenses	20,922,087	20,188,090
Employee incentive scheme	3,053,638	2,705,689
Charges to depreciation & amortisation and provisions	22,864,276	20,294,292
TOTAL II	148,098,593	142,321,966
1 - OPERATING PROFIT OR LOSS (I-II)	-628,113	-3,832,515
FINANCIAL INCOME (III) (foreign exchange gains)	4,847	1,554
FINANCIAL EXPENSES (IV) (foreign exchange losses)	1,659	2,712
2 - FINANCIAL PROFIT OR LOSS (III-IV)	3,188	1,158
3 - PROFIT OR LOSS BEFORE EXTRAORDINARY ITEMS (I-II+III-IV)	-624,925	-3,833,673
EXTRAORDINARY INCOME (V)	687,372	0
From management operations	687,372	0
From capital operations		0
EXTRAORDINARY EXPENSES (VI)	719,688	0
From management operations	719,688	0
From capital operations		0
4 - EXTRAORDINARY PROFIT OR LOSS (V-VI)	-32,316	0
TOTAL INCOME (I+III+V)	148,162,699	138,491,005
TOTAL EXPENSES (II+IV+VI)	148,819,940	142,324,678
DEFICIT (-) OR SURPLUS	-657,241	-3,833,673

AMF BALANCE SHEET AS AT 31 DECEMBER 2025

ASSETS		2025 FINANCIAL YEAR			2024 FINANCIAL YEAR
		GROSS	Depreciation & amortisation	NET	NET
			Provisions		
FIXED ASSETS	INTANGIBLE FIXED ASSETS	98,715,796	61,854,018	36,861,778	43,348,110
	Patents, licences, software	93,828,788	61,854,018	31,974,770	40,328,943
	Advances and payments on account	4,887,008	-	4,887,008	3,019,168
	TANGIBLE FIXED ASSETS	19,313,188	11,257,938	8,055,251	9,697,930
	Technical installations, industrial machinery, equipment and tools	189,727	189,727	0	0
	Other	18,939,028	11,068,211	7,870,817	9,283,052
	Advances and payments on account	184,433	-	184,433	414,879
	FINANCIAL ASSETS	1	-	1	1
	Other	1	-	1	1
	TOTAL 1	118,028,985	73,111,956	44,917,030	53,046,042
CURRENT ASSETS	RECEIVABLES				
	Client receivables and related accounts	9,494,311	130,163	9,364,148	5,774,476
	Other	417,307	-	417,307	447,475
	CASH ASSETS	16,701,955	-	16,701,955	11,777,040
	TOTAL 2	26,613,572	130,163	26,483,409	17,998,992
PREPAID EXPENSES (TOTAL 3)		2,417,035	-	2,417,035	2,332,280
GRAND TOTAL (1 + 2 + 3)		147,059,593	73,242,119	73,817,474	73,377,313

LIABILITIES		2025 FINANCIAL YEAR BEFORE CHARGE	2024 FINANCIAL YEAR BEFORE CHARGE
SHAREHOLDERS' EQUITY	Reserves	19,968,701	23,802,374
	Profit or loss for the financial year	-657,241	-3,833,673
	TOTAL 1	19,311,460	19,968,701
PROVISIONS	Provisions for liabilities	990,283	1,346,152
	Provisions for expenses	16,009,431	12,701,245
	TOTAL 2	16,999,715	14,047,397
LIABILITIES	Trade payables and related accounts	17,334,550	21,431,462
	Tax and social security liabilities	15,090,183	14,146,903
	Payables for fixed assets and related accounts	1,897,037	1,738,230
	Other liabilities	3,184,529	2,044,620
	TOTAL 3	37,506,299	39,361,215
DEFERRED INCOME (TOTAL 4)		0	0
GRAND TOTAL (1 + 2 + 3)		73,817,474	73,377,313

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